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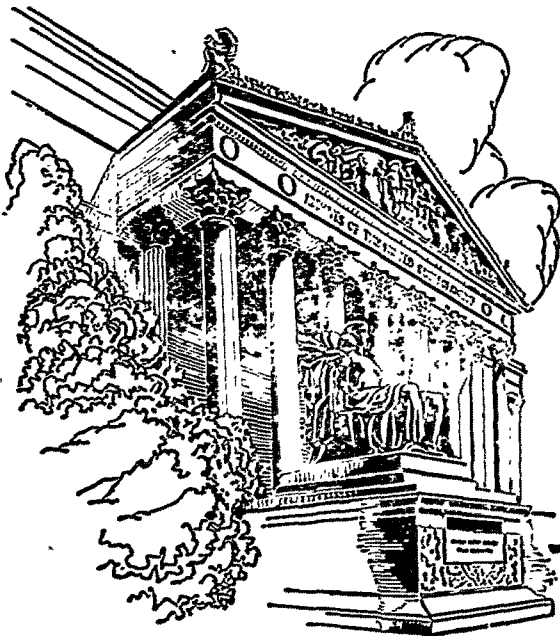
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Chapter VIII—Agricultural Stabilization and Conservation Service (Sugar), Department of Agriculture

SUBCHAPTER F—DETERMINATION OF NORMAL YIELDS AND ELIGIBILITY FOR ABANDONMENT AND CROP DEFICIENCY PAYMENTS

[Sugar Determination 846.3, Supp. 5]

PART 846—HAWAII

Approved Local Areas for 1970 Crop

§ 846.3 Approved local areas for the 1970 crop.

For purposes of considering eligibility for abandonment and crop deficiency payments of 1970-crop sugarcane, the State Executive Director of the Hawaii State Agricultural Stabilization and Conservation Service Office has determined with respect to the local producing area comprising the mill unit areas of Hutchinson Sugar Co., Ltd., and Hawaiian Agricultural Co., generally bounded in the upper (mauka) region by the Kau Forest Reserve, lower (makai) region by the Mamalahoe Highway, coast-wise towards Hilo by the Hawaiian Ranch Co., lands of Kapapala, and the South Point side by Waiohinu Pali, that due to drought, flood, storm, freeze, disease, or insects, the actual yields of commercially recoverable sugar from the acreages planted to sugarcane on farms in such area were below 80 percent of the applicable normal yields either for 10 percent or more of the number of such farms or for 10 percent or more of the total acres of sugarcane planted on all farms in such area.

Statement of bases and considerations. One of the conditions of eligibility of a sugarcane producer in Hawaii for an acreage abandonment or crop deficiency payment is that the farm of such producer is located in a local producing area in which the State Executive Director of the Hawaii State Agricultural Stabilization and Conservation Service Office determines that certain uncontrollable natural conditions have caused a prescribed amount of damage to the sugarcane crop.

The purpose of this supplement is to give notice that a specific local producing area has qualified under the requirements with respect to the 1970 crop of sugarcane and that any sugarcane producer operating a farm located in such area and which is otherwise qualified may apply for payment accordingly, if he has not already done so.

(Secs. 303, 403, 61 Stat. 930 as amended, 932; 7 U.S.C. 1133, 1153)

Effective date: Date of publication (4-9-71).

Signed at Washington, D.C., on April 5, 1971.

CHAS. M. COX,
Acting Deputy Administrator,
State and County Operations.

[FR Doc.71-4992 Filed 4-8-71;8:50 am]

Chapter XVIII—Farmers Home Administration, Department of Agriculture

SUBCHAPTER A—GENERAL REGULATIONS

[FHA Instruction 422.1]

PART 1809—APPRAISALS OF FARMS

Appraisal of Farms and Leasehold Interests

Subpart A of Part 1809 of Chapter XVIII, Title 7, Code of Federal Regulations, is revised to read as follows:

Subpart A—Appraisal of Farms and Leasehold Interests

- Sec.
- 1809.1 General.
 - 1809.2 Definition of values.
 - 1809.3 Basic farm valuation principles.
 - 1809.4 The three-way approach to normal value.
 - 1809.5 Normal long-time prices and costs.
 - 1809.6 Making the appraisal.
 - 1809.7 Loan to holders of leasehold interests.

AUTHORITY: The provisions of this Subpart A issued under sec. 339, 75 Stat. 318, 7 U.S.C. 1989; Orders of the Secretary of Agriculture, 29 F.R. 16210, 32 F.R. 6630.

Subpart A—Appraisal of Farms and Leasehold Interests

§ 1809.1 General.

This subpart prescribes the policies and procedures of the Farmers Home Administration (FHA) for appraisal of farms securing Farm Ownership (FO) loans, Soil and Water (SW) loans to individuals, Land Conservation and Development (LCD) loans, Labor Housing (LH), and Rural Housing (RH) loans other than nonfarm tracts or small farms. All farms, except small farms appraised for RH loans, will be appraised for their normal value under this subpart. The normal agricultural value and normal market value of farms will be considered in arriving at the normal value.

(a) **Definition of appraisal.** An appraisal is a determination of value based on facts which have been judiciously interpreted to arrive at a sound conclusion about the property. It is a written statement which identifies the property, adequately describes it and expresses an opinion as to its value. The dependability of the opinion is based on the thoroughness and accuracy with which facts are gathered and examined as well as the skill and experience of the person who

interprets them. The appraiser finds value based on facts but does not create it.

(b) **Appraisal reports.** Form FHA 422-1, "Appraisal Report (Farm Tract)," and Form FHA 422-3, "Map of Farm," will be used in recording appraisals. The forms will be prepared in accordance with instruction sheets entitled, "Directions for Preparing Form FHA 422-1, 'Appraisal Report (Farm Tract)'" and "Directions for Filling Out Form FHA 422-3, 'Map of Farm'" available at any FHA office. When applicable Form FHA 422-2, "Supplemental Report (Irrigation, Drainage, Levee, and Minerals)" will be prepared in conjunction with an appraisal. In no case will Form FHA 422-3, "Appraisal Report (Nonfarm Tracts and Small Farms)," be used to appraise a farm under this subpart.

(c) **Administrative responsibility.** The State Director will authorize qualified county employees to make appraisals under this subpart. Employees must be given intensive appraisal training to establish an acceptable level of competence before they are granted authorization to make appraisals. Job descriptions for these employees will include appraisal duties. Exceptions to this policy must have prior approval of the Administrator.

(1) The State Director will designate qualified members of the real estate loan staff only to provide appraisal training.

(2) An employee who has been delegated authority in writing to appraise real estate is not authorized to approve any real estate loan made in connection with property he has appraised.

(d) **Real estate improvements to be considered.** Appraisals will be based on the farm as developed. Appraisals will reflect value of existing improvements and those included in the development plan.

§ 1809.2 Definition of values.

There are different kinds of values used in farm appraisals which must be considered in arriving at the recommended normal value for farm properties.

(a) **Normal value.** This value is the amount a typical informed purchaser would be willing to pay under normal conditions and justified in paying for the property as improved for farming purposes, home advantages, and other assets the property may have. This assumes that the purchaser is a willing and informed but not anxious buyer, and the seller is a willing and informed but not a forced seller. Unless there are unusual developments in the area that have affected the value of the property, or that will affect it in the future, normal conditions may be assumed to have been reflected in the sales price of comparable farms in the area during the most recent

3-year period. The appraiser will recommend a normal value for all farm property being appraised. In making appraisals on farms he will consider the normal agricultural value, the normal market value, and the present market value of the property in arriving at the normal value.

(b) *Normal agricultural value.* The normal agricultural value of a farm is the amount a typical purchaser would, under usual conditions, be willing to pay and be justified in paying for the farm, as improved, for customary agricultural uses, including farm-home advantages, with the expectation of receiving normal net earnings from the farm. This value is based upon agricultural assets only and assumes an informed typical purchaser.

(1) The amount the purchaser would be justified in paying for a farm for farming purposes depends in a large measure on the earning ability of the farm.

(i) In determining the earning ability of a farm, the appraiser will assume that:

(a) The farm will be operated by a typical operator for the area.

(b) The cropping system used is typical for the farm under consideration and will maintain the anticipated productivity. In determining the proper cropping system, the appraiser will take into account acreage allotments for the basic crops.

(c) Crop yields used for the farm under consideration are representative of yields generally being obtained in the area.

(d) Approved commodity prices and farm expenses are employed in estimating net income.

(e) The property will be improved as shown in Form FHA 424-1, "Development Plan."

(f) The share of normal farm operating expenses, the cost of necessary repairs and replacements customarily paid by the landowner will be deducted from his share of income in determining net rental farm income.

(2) The appraiser will also consider the value of the farm as a home and will take this into account along with the amount that could safely be invested in the farm, based on the capitalization of the net rental farm income in arriving at its normal agricultural value.

(c) *Normal market value.* The normal market value is the amount for which a property would sell with reasonable effort under normal conditions. It is a value which recognizes nonagricultural as well as agricultural assets, and is predicated on the long-term balance between buyers and sellers. It is the amount that a typical purchaser would be willing to pay and be justified in paying for the farm as improved.

(1) In determining the recommended normal market value of a farm, the appraiser will consider:

(i) The net rental share income based on normal prices and costs.

(ii) Improvements shown on Form FHA 424-1.

(iii) Hazards and high-risk enterprises.

(iv) The location of the farm with respect to:

(a) Off-farm employment opportunities and dependability of such employment, and

(b) Community services such as schools, churches, markets, trading centers, and roads.

(v) The condition and suitability of buildings.

(vi) The condition and productivity of the land.

(vii) Assets such as timber, gravel, stone, or other proven minerals.

(viii) The desirability of the property as a home.

(ix) The quality and the stability of the surrounding community.

(x) The price at which comparable properties in the area have sold. These prices will be adjusted to normal market values.

(xi) The opinion of informed people who are familiar with real estate values in the area such as real estate brokers, private and cooperative lenders, and agricultural lenders.

(d) *Present market value.* The present market value is the amount a typical purchaser would be willing to pay and justified in paying for the property considering agricultural uses and nonagricultural assets the property may have. It is assumed that the property would sell for this amount with a reasonable sales effort and that the purchaser would be a willing but not anxious buyer, and the seller would be a willing but not forced seller.

(1) In determining the present market value, the appraiser will consider the same factors described in paragraph (c) of this section and § 1809.4 as they apply to present conditions rather than normal conditions. Present market value determination will be made for the acquisition of individual tracts or security servicing for the following:

(i) Security servicing actions required by Subpart A of Part 1872 of this chapter.

(ii) Rural Renewal Loans.

(iii) Emergency Loans.

(iv) Resource Conservation and Development Loans.

(v) Soil and Water Loans.

(vi) Cooperative Association Loans.

(vii) Timber Development Loans. (Appalachian Region only.)

§ 1809.3 Basic farm valuation principles.

Some of the more important principles and factors affecting value that should be considered in making farm appraisals are discussed as follows:

(a) *Fundamental assumptions.* The following is a summary of the assumptions an appraiser must make in the appraisal of farm property:

(1) The farm will be operated by a typical operator.

(2) The farm will be developed as planned.

(3) The crop yields are based on current practices and present farm technological methods in general use.

(4) General economic conditions will remain stable.

(b) *Location and state of development—(1) Value of property is affected by location in several ways. (i) The distance to market and trading centers in which applicant will conduct his business.*

(ii) Distance to the county seat or principal trading center and to the dominant city.

(iii) Kind and condition of roads to market.

(iv) Availability of competitive markets.

(v) Accessibility of the property such as convenience to schools, churches, and to main highways; potential for recreational developments, availability, and costs of utilities, including domestic water.

(vi) Location value is difficult to measure on the basis of a formula. It can be established by analysis of sales data. When location causes the property to have more value than justified on the basis of customary agricultural use, the appraiser should determine and include what he estimates the better features to be worth to a typical buyer.

(2) *State of development considerations.* Appraisers should carefully study a community to note the quality of farming, the standard of building maintenance, and similar economic patterns. Another important factor in location is the opportunity for off-farm employment in business or industrial areas within reasonable proximity of the property being appraised. The effect on value of the availability of rented land as a normal situation should be considered in making farm appraisals.

(c) *Home desirability.* This is an important factor in farm appraisals since the farm business provides an operator with an occupation and a home. An appraiser should consider those features which relate to family living and the satisfaction of a comfortable home. An appraiser should base his opinion on how he believes the various home features of a farm will appeal to a typical purchaser. Home use advantages have a bearing on the kind of typical buyer or operator attracted to the farm under consideration. This will affect the quality of management which will be assumed by the appraiser. The basic elements considered for home use value are the house and yard, location, all weather accessibility, water and other utilities, neighborhood, churches, schools, and recreational and scenic features. Properties with antiquated, poorly arranged and obsolete buildings will have less value than improved properties.

(d) *Earning power of the farm.* The net earnings of a farm is the result of a number of factors working together. These include the kind of crops grown, acreage, yields, soil types, the type and efficiency of the operation, markets and the normal prices of the products, and the cost of production, including fixed charges. Income as a factor in valuation must be based upon a typical operation. The valuation should not be influenced

by the present management, except to the extent it is expected to affect the future value of the property. A typical operator would be the most likely operator the farm would be expected to attract who would conduct a farming operation suited to the property. An appraiser should not assume practices which have become obsolete, but should be alert to changing types of production which may be altering the typical operation in the area. Yields should be estimates of the capability for the farm being appraised as operated by a typical farmer or rancher. This is the production level which can be assumed in the immediate future using current farm practices and present farm technology. Appraisers should avoid the fallacy of using average yields for wide areas instead of a yield level for the specific farm.

(e) *Hazards and detriments.* A hazard is a feature which affects farm value because it creates uncertainty in the farming operation. It causes loss or damage to property or its products at irregular intervals. Hazards include flooding, hail, tornado, insects, or disease. The frequency or regularity of hazards being encountered can best be judged by analyzing the occurrence and frequency of these factors over the last few years. The effectiveness of control measures to eliminate or reduce frequency of flooding hazards with dams, ditches, and dikes, will be recognized. A detriment is an ever-present handicap which regularly or permanently injures the property. Detriments include weed infestations, irregular fields, highway and railroad right-of-way which divide a farm, fumes, vapors, and smoke from factories. Rundown buildings, noncontiguous parcels of land, unsatisfactory building arrangements or unattractive farm landscaping are also detriments.

(f) *Availability of other income.* The availability of employment or other sources of income including rented land, are important considerations in present-day farm appraisals. Real property values usually reflect availability of other sources of income in a community which adds to the flexibility and utility of farm property. Off-farm employment opportunities often available to typical operators during periods when they are not needed on their farms may enhance farm value. Recognition of dependable sources of off-farm employment and land for rent should be on a normal basis and reflect the long-time outlook for a farm.

§ 1309.4 The three-way approach to normal value.

Farm appraisals made under this subpart will be based to the extent applicable on a three-way approach, using: Market data of prices of comparable properties; capitalization, and; summation of all resources and facilities. This combination will provide a means of arriving at a normal value for the full range of farm properties, which the FHA is now authorized to finance.

(a) *Market data approach.* Using the sale prices of comparable properties sold during the most recent 3-year period is a

sound and acceptable means of arriving at normal value. The level of normal (LON) will be the average for such 3-year period unless otherwise authorized. The appraiser should observe, study, and record pertinent facts for as many sales of comparable property as possible. He should be certain the properties selected as comparable are so similar to the property being appraised that a prospective purchaser would likely pay an equivalent price for the farm. The objective is to deduce from sale data on comparable property the price which the property being appraised would attract on the market. If there is a lack of similarity between the property being appraised and the properties on which sales data is being used, appropriate compensating adjustments will have to be made. If the differences are numerous or pronounced, sales data on more nearly comparable property should be selected. Property selected for comparative purposes should include those in which the terms and conditions of the sale are representative of true sale transactions occurring in the community. Form FHA 422-9, "Real Estate Sales Data," will be used to record sales information.

(1) Some family sales, certain contract sales, foreclosure, and purchase by uninformed or speculative buyers may not represent true sales transactions. These should be closely examined and only the true sales in this group used for comparison.

(2) The essential quality points that should be considered in comparing sales of similar properties are: Location, soil and topography, water resources, dwelling, other essential buildings, allotments, proportion of cropland to total land, farm layout and arrangement, general appearance, accessibility to services and facilities, state of cultivation, woodland, pasture, urban or rural orientation, and alternative uses. Form FHA 422-10, "Appraiser's Worksheet for Study of Comparable Properties," may be used on an optional basis since it provides a systematic method for considering quality points of comparison in analyzing the subject property in relation to properties sold on the market.

(b) *Capitalization approach.* An accurate estimate of earnings capitalized at an appropriate rate determines the earnings value. This value, generally known as capitalization value, is the amount that a prudent investor likely would pay for the property based on its future earnings and advantages. The capitalization rate to be used in evaluation is most important. State real estate staff members will assist County Supervisors establish capitalization rates by areas for various parts of the State.

(1) The following techniques can be used to find capitalization rates:

(i) Determine the rate of return received on comparable or nearly comparable properties or investments.

(ii) Questioning selected informed farm purchasers will also usually reveal the return investors expect from farm property.

(iii) The alternative choices for investment will indicate a rate of return that can be used for a capitalization rate.

(iv) When the sale price of a comparable farm has been determined and confirmed, the rate of return can be established by working and earnings statement for that farm. The net income thereby obtained will reflect the rate of return to the investment in the farm. If the exact annual income can be ascertained from the owner, a more precise capitalization rate can be determined. Several determinations in this manner can provide a good indication of a reliable capitalization rate for an area. A table entitled, "Work-Out Earnings Table on Several Sales" provides an example of a technique for determining the capitalization rate for an area. This table is available at any FHA office. The capitalization rate will be determined annually, at the same time the LON is determined.

(2) The rental income method will be used and appropriate adjustments made for home use advantages and other agricultural features. Capitalization of the rental share will translate farm earnings for the use of land and buildings into earnings value. Using this method for all size farms will reflect one that a typical operator would adopt for the farm considering the development planned in Form FHA 424-1. The rental income approach must be based on equitable rental terms. Studies of lease terms in each area is important to establish a fairly definite pattern of prevailing rental terms. When farm tenancy in a community is too low to determine typical rental terms, the appraiser can use rental terms for other comparable areas with similar properties in estimating returns for ownership of land and buildings.

(c) *Summation approach.* An indication of value under this approach is obtained by adding the value of essential buildings to the normal market value of the land. Depreciation must recognize functional and economic obsolescence as well as physical deterioration in determining building value. This approach is used for checking purposes in making the appraisal.

(1) The normal market value of land will be the value of the land without buildings. It will include land development of a permanent nature. A value per acre for the land resources will be determined by analyzing the prices of comparable land for a normal period. Per acre values of land can also be determined by adjusting present market values to normal.

(2) The value of buildings to a farm will be determined by an analysis of the reproduction costs of modest and essential buildings and their overall attractiveness and functional utility. The following are some techniques that may be used to determine the value of buildings to a farm:

(i) The appraiser will estimate the remaining number of years of life in each

building. He will also reduce the remaining period of years the building will be used when circumstances exist such as obsolescence due to undesirable design or arrangement, insect infestation, lack of utility or flexibility. The estimated remaining life of buildings will also be adjusted for superior or inadequate maintenance. To determine a percentage figure, based on the above consideration, the appraiser will estimate in years the original life of each essential building, and estimate the number of years of useful life remaining for each essential building; he will then divide the number of years determined as the original life into the number of years he has decided would be remaining as each building's useful life. For example, if the appraiser determines a building has 20 years of useful life remaining and it has a total original life of 50 years, it has 40 percent useful life remaining (20 years divided by 50 years.) The construction costs of a new, modest, and adequate essential building can then be multiplied by this percentage figure as a means of determining the value of the building to the farm.

(ii) Form FHA 426-1, "Valuation of Buildings," will also serve as another source for the value of buildings. Obsolescence should be applied to the depreciated replacement value shown in this form. Nonessential and extremely old buildings may have insurance value but would not add to overall building value. Such buildings would not likely be replaced and, therefore, would not be given a value to the farm.

(iii) Dwellings should receive separate consideration in establishing value of improvements to a farm since the action of buyers and sellers generally reflect added value for attractive and functional homes within certain limits.

(iv) Value attributable to buildings will need to reflect: Physical depreciation caused by use and by action of the elements; functional obsolescence caused by unserviceable or unattractive design and poor arrangements; and, environmental obsolescence caused by nuisance creating surroundings. Visual appeal and arrangement of buildings have a bearing on value. The flexibility of buildings for alternative uses and their functional utility are important in determining value of buildings.

(v) Location of farm buildings for possible farm reorganization including potential service as a headquarters unit, accessibility to markets and potential residential value for off-farm employment will give added value to farm buildings.

(vi) The U.S. census reports and studies by other Government and private agencies provide information which can serve as a guide in determining value of buildings to a farm.

(3) Other assets should be recognized and reflected as a part of summation value. Minerals, lakes, streams, and rivers are feature items in this group which reflect value.

(d) *Normal value.* The appraiser will consider the results of these three approaches and make needed adjustments

to these findings before reaching the final conclusion for his recommended normal value. His adjustments will usually be for unusual location and economic use features not otherwise recognized, and for home use features which contribute to family living satisfaction not previously reflected. After an indication of value reflected by each approach has been determined, the appraiser should reexamine his calculations and the adequacy of the data analyzed in each approach. He should give further consideration to the strong points and the weakness of each approach used. As a general rule the value indicated by the market data approach is the most reliable indicator of value.

(1) The final step is the correlation of the indications of value reflected by the three approaches. The appraiser will examine the spread between the minimum and maximum figures. He will determine which approach appears to be the most reliable answer to the appraisal problem. He will temper this determination of value by the degree of reliance to be placed on the other two indications of value.

(e) *Recommended normal value.* The appraiser's conclusion using the three approaches is the recommended normal value recorded in Part 7 of Form FHA 422-1.

§ 1809.5 Normal long-time prices and costs.

The normal price level for farm products and the related level of farm costs for use in making FHA appraisals has been developed to reflect a level of value which will be representative of the normal agricultural value of farm property in the foreseeable future.

(a) *National prices and costs.* The national level of normal average commodity prices and costs has been established on the basis of the future economic outlook. It is based primarily on the average of 1959-63 commodity prices and levels. It was assumed in establishing this national projected level of normal prices there would be Government participation in commodity programs. These prices also take into consideration expected future trends and such factors as population trends, national per capita income, farm production, and farm exports. The national commodity prices schedule is provided in a chart entitled "Long-Time Commodity Price Data," available at any FHA office.

(b) *State prices and costs.* A State schedule of normal farm commodity prices and costs consistent with the "Long-Time Commodity Price Data" chart provided in paragraph (a) of this section and a chart entitled "Long-Time Cost Data" available at any FHA office will be included in a manner prescribed by the State Director and approved by the national office. If significant price differences exist in marketing areas within a State, or if important grade or quality price differences exist, the State price schedule should reflect such differences.

(1) *Other appraisal data.* The State Director will also include other appraisal

data pertinent to conditions within his State. It will include such factors as the recognized systems of farming, maintenance costs of improvements, depreciation rates for buildings, those cost items on which landlords typically share expenses, and any other items which will be helpful to the appraiser.

§ 1809.6 Making the appraisal.

The method of making an appraisal will vary under different circumstances but a systematic pattern for analyzing the property should be followed.

(a) *County Supervisor responsibilities.* The property which will serve as security for the loan will be appraised after the applicant has been found eligible and the farm and home plan indicates there is a good possibility a loan can be made. The following should be available to make the appraisal:

(1) A preliminary development plan to include building construction plans, land development, and estimates, when applicable.

(2) The legal description of the property to be appraised.

(3) Other information needed will include:

(i) A legible aerial photo or a map of the property.

(ii) Information regarding real estate taxes.

(iii) Basic crop allotments and any yields for farm if available.

(iv) Soil Conservation Service Soil Surveys, Land-Use Maps, and plans, if available.

(v) Federal Crop Insurance Corporation program information, such as crops insured and premium charges.

(4) An accumulative record of verified sales of a sufficient number of properties is needed by the appraiser for each area of the county to provide a sound basis for using the market-data approach. Such verified sales information will be recorded on Form FHA 422-9.

(1) A sufficient number of real estate sales data cards will be fully completed to be able to make appraisals in all parts of the unit serviced by each County Office for various types of property. Complete sales information carefully analyzed and properly verified on a representative number of sales in each area is more valuable to an appraiser than a large number of unverified and unanalyzed sales. The number of good basic sales data cards should be gradually increased. These cards need to be amended to show any physical changes that have taken place since the date of the sale. The appraiser must analyze each property as it existed at the time of the sale. The reuse of recent sales information is usually considered most desirable. However, all sales data used will have to be adjusted to the LON for the most recent 3-year period. County staff members should continue to accumulate sales information in the regular course of business. They will learn about real estate sales during their regular field travel which can be verified and analyzed in more detail when needed at a later date. Form FHA 422-9 can be prepared with whatever information is obtained during the initial contact with

the source of such information. This will assure a continuous flow of current sales data after the system has been established without requiring a special project.

(ii) County Supervisors will furnish the State Office at the close of each calendar year, a list of bona fide farm sales showing the total sale price and total acres involved for each sale that has occurred during the calendar year. Guidelines will be furnished by a regulation issued by the State Office concerning the number of such sales that need to be furnished. The LON for broad areas will then be determined for the calendar year by the State Director and his real estate loan staff. The adjustment factor for that year will be included in the State Office regulation by March 1 each year. Farm sales should be reported without regard to size of farm or whether they contain buildings. Sales information on farm property sold for housing developments near large cities, industrial parks, airfields or similar purposes should not be included with sales data to establish a LON. It is important statistically for State staffs to have a sufficient number of sales transactions to establish a true LON. A large statistical sample will offset variances in the properties and should result in a reliable level for a broad area. Sales of farms in irrigated areas and dry land farms should be kept separate.

(b) *Preparation for the appraisal.* Before going to the property to make a physical inspection, the appraiser will fully review all information provided and also obtain any additional information which he considers pertinent to the appraisal. This will include the location or description, the sales price, and the date of sale of comparable property that was sold recently which is located in the area of the property to be appraised. The appraisal should be delayed until a future time if weather or field conditions are such that an adequate and thorough inspection of the property cannot be made. Appraisals cannot always be made under ideal conditions; however, it is expected that appraisers will use good judgment in individual cases in determining that conditions are satisfactory for making a sound appraisal.

(c) *Developing general information.* (1) The appraiser should be familiar with the general area with respect to types of farming, crop yields, production methods, and markets. There are a number of sources in addition to personal observations from which information of this type can be obtained. The appraiser should have a good working relationship with local businessmen, other lenders and farmers in the area, representatives of other agricultural agencies operating in the area, and local farmers. These sources of information are familiar with local agricultural conditions and can provide a continuing source of helpful information. The appraiser should be familiar with the general characteristics of the soil types. If questions arise about technical types, he should obtain the advice of a qualified soil technician.

(2) The appraiser should become adequately familiar with the immediate neighborhood in which the farm being appraised is located. He should observe the surrounding area sufficiently to determine whether any favorable or unfavorable factors of the neighborhood have an effect on the value of the property. He should note such factors as the type of farming practiced, community development, and the type and care given to buildings and land in the immediate area. He should also observe the conditions of roads, community services available, and undesirable features, such as a poor location and other related community conditions.

(3) Before beginning his detailed examination of the property to be appraised, the appraiser should make a general reconnaissance of the area around the property. After obtaining general information about the community, he is in a position to begin his examination of the property. After the inspection of the property he should observe and analyze comparable farms in the area on which he has sales data noting differences and similarities of the properties as a basis for comparison.

(d) *Inspecting the property.* The first step in making an appraisal is to identify the property. Boundary lines should be checked for accuracy with the map or legal description furnished by the County Supervisor. Minor discrepancies between the description and property lines can usually be reconciled sufficiently to continue the appraisal. If there are major discrepancies, boundary disputes, and so forth, the appraisal should not be completed until the correct description is obtained. This is especially important in farm appraisals where essential buildings or other improvements may be located close to property lines or in disputed areas.

(1) During the inspection of a farm, the appraiser should have a plat or a map made from an aerial photo showing the fields and their location indicating the approximate acreage in cultivation, pasture, timber, and wasteland. The map should be on a large enough scale to show the significant features of the farm. He should locate the farmstead on the map. Correct notations should also be made as to the topography, fence lines, water supplies, and any special features such as dams, gravel pits, or underpasses. All of this should be shown and identified on the map as to their proper location on the farm.

(2) The appraiser should also observe the type of farming being carried on by the present occupant and note crop yields, evidences indicating the potential of the farm, and any other indications which would show the productivity of the unit.

(3) The appraiser must be careful to avoid the mistake of permitting the management of the present operator of the property to influence his decision on value since the appraisal is made on a developed basis for a typical operator.

(e) *Evaluation of buildings.* The value of farm buildings is determined by careful examination of each building with

appropriate consideration to replacement costs and the amount the buildings have depreciated in value. The replacement cost is the amount required to replace the existing building with an appropriate new one serving the same general use. Depreciation includes any loss in value of the building when compared with the replacement cost. Loss in value may also be due to obsolescence in buildings that are out of style, misplaced, or do not meet the usual standards in the area. Because of the wide differences that exist and the many factors involved in the evaluation of older type buildings, a comparison with the value standards of newer type buildings forms the most dependable basis for the appraisal. The appraiser is responsible for recording his evaluation of buildings for insurance purposes on Form FHA 426-1.

§ 1809.7 Loan to holders of leasehold interests.

When it appears a loan authorized on a leasehold interest can be made, an appraisal of the leasehold interest will be required. When making appraisal on a leasehold interest, the following guides will be used in determining the normal value of the leasehold interest.

(a) Study the provisions of the lease and make sure that such provisions are in accordance with FHA policy with respect to mortgageability and unexpired time.

(b) If the unexpired time of the leasehold interest is for an assured period of 50 or more years, the normal values will be determined in the same manner as for a fee owner. However, the appraiser will check his recommended values by comparing them with the sales price of any comparable leaseholds in the area. If sales of comparable leasehold interests have been so infrequent in the area that such a comparison will not permit an adequate basis for establishing the normal value, the appraiser may use the annuity method described below in making a check of his recommended value.

(c) If the unexpired term of the leasehold interest is for an assured period of less than 50 years, the appraiser will recommend the normal value by a comparison of the leasehold interest being appraised with prices, adjusted to normal market values, that have been received for comparable leaseholds in the area. In this connection, consideration must be given to the residual value of any improvements to which the lessee will be entitled at the expiration of the lease. In areas where considerable demand for loans is expected, leaseholds sales data should be accumulated for appraisal purposes. If the appraiser concludes that comparable sales data do not fully support the value of the leasehold being appraised, he will use the annuity method as an additional check of his values.

(1) The annuity method is a means of calculating the value of the lease on the basis of the estimated future earnings of a leasehold interest for the lessee. This method involves a determination of the annual net farm income or net rental value, considering long-time prices and

costs, that would accrue to a lessee after allowing for the annual payments to the lessor by the lessee. The amount remaining is the annual net return on the leasehold interest to the lessee. The value of the lease to the lessee is determined by multiplying the annual net return by the appropriate factor for the number of unexpired years of the lease and the private or cooperative interest rates prevailing in the area for long-term farm real estate loans. A table entitled "Present Value of \$1 Per Annum" shows the factors for 5 percent, 6 percent, and 7 percent from 1 to 50 years and is available at any FHA office. The following examples will illustrate the annuity method of determining the value of a leasehold interest to the lessee.

(i) The annual net return to the leaseholder is \$600. The lease has an unexpired term of 40 years. The factor for 40 years at 6 percent is 15.046. $\$600 \times 15.046 = \$9,027$, the normal value of the lease to the leaseholder.

(ii) The annual net return to the leaseholder is \$500. The lease has an unexpired term of 20 years. The factor for 20 years at 6 percent is 11.470. $\$500 \times 11.470 = \$5,735$, the normal value of the lease to the leaseholder.

(2) In this case, the normal value of the lessee's interest will always be less than the normal value of the property appraised on a fee simple title basis.

Dated: April 1, 1971.

JOSEPH HASPRAY,
Deputy Administrator,
Farmers Home Administration.

[FR Doc.71-4993 Filed 4-8-71;8:50 am]

Title 12—BANKS AND BANKING

Chapter II—Federal Reserve System

SUBCHAPTER A—BOARD OF GOVERNORS OF THE FEDERAL RESERVE SYSTEM

[Reg. M]

PART 213—FOREIGN ACTIVITIES OF NATIONAL BANKS

Reserves Against Eurodollar Borrowings

1. Effective April 1, 1971, footnote 8 to § 213.7(a) of Regulation M is amended to read as follows:

*Including the principal amount paid by a foreign branch of the member bank for obligations held by such branch that were purchased by it from the Export-Import Bank of the United States pursuant to its program announced on January 15, 1971, or purchased by it from the U.S. Treasury pursuant to its program announced on April 1, 1971, and excluding assets representing credit extended to persons not residents of the United States.

2a. The change provides a means by which a member bank may retain its reserve-free base with respect to its Eurodollar borrowings from its foreign branches by counting within its base the amount of purchases by its foreign branches of certain U.S. Treasury obligations.

b. The requirements of section 553(b) of title 5, United States Code, with respect to notice, public participation, and deferred effective date were not followed in connection with this amendment because the Board found that following such procedures with respect to this amendment would be contrary to the public interest and serve no useful purpose.

By order of the Board of Governors,
April 1, 1971.

[SEAL] KENNETH A. KENYON,
Deputy Secretary.

[FR Doc.71-4973 Filed 4-8-71;8:48 am]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Administration, Department of Transportation

[Airworthiness Docket No. 71-SW-13; Amdt. 39-1190]

PART 39—AIRWORTHINESS DIRECTIVES

Bell Model 206A and 206A-1 Helicopters

Several instances of in-flight engine flame-out have occurred during flight in snow on Model 206A helicopters utilizing a "Particle Separator, Self Purging, P/N 206-706-201-1, or P/N 206-706-200-1," in the engine air induction system. In addition, military investigations of similar incidents, and actual tests on Army helicopters similar to the Model 206A-1, also equipped with this particle separator, revealed that ice can accumulate in the engine inlet during flight into snow, and that this ice subsequently breaks free to enter the engine compressor. Engine flame-out and possible compressor damage may be expected in this event.

Since this condition is likely to exist or develop in other helicopters of the same type design, an airworthiness directive is being issued to impose an operating limitation which prohibits flight into snow on all Bell Model 206A-1 helicopters, and on all Bell Model 206A helicopters equipped with Particle Separator Kit, Self Purging, P/N 206-706-201-1, or P/N 206-706-200-1.

Since a situation exists that requires immediate adoption of this regulation, it is found that notice and public procedure hereon are impracticable, and good cause exists for making this amendment effective in less than 30 days.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (31 F.R. 13697), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new airworthiness directive:

BELL. Applies to all Model 206A-1 helicopters and to all Model 206A helicopters equipped with Particle Separator Kit, Self Purging, P/N 206-706-201-1, or P/N 206-706-200-1, certificated in all categories.

Compliance required before further flight in snow, but no later than 25 hours time in service after the effective date of this airworthiness directive, unless already accomplished.

To prevent power interruption caused by ingestion into the engine of snow or ice which may have accumulated in the engine inlet during flight, crew notification of a limitation against flight into snow must be accomplished as follows:

Install a permanent type placard in full view of the pilot as near as possible to the basic limitations placard, worded as follows:

"FLIGHT INTO FALLING OR BLOWING SNOW IS NOT PERMITTED"

If approved placards are unavailable, the owner or operator may make and use a placard containing the above words. Letters must be at least one-eighth inch in height.

This amendment becomes effective April 12, 1971.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958, 49 U.S.C. 1354(a), 1421, 1423; sec. 6(c), Department of Transportation Act, 49 U.S.C. 1655(c))

Issued in Fort Worth, Tex., on April 1, 1971.

HENRY L. NEWMAN,
Director, Southwest Region.

[FR Doc.71-4968 Filed 4-8-71;8:48 am]

[Airworthiness Docket No. 70-WE-24-AD; Amdt. 39-1188]

PART 39—AIRWORTHINESS DIRECTIVES

Boeing Model 727 Series Airplanes

Amendment 39-1048 (35 F.R. 12058), AD 70-15-15, provides for inspection and repair of the wing center section front spar web per the manufacturer's Service Bulletin 57-107 or an equivalent inspection and repair of the web in a manner approved by the Chief, Aircraft Engineering Division, FAA Western Region. Amendment 39-1048 does not provide for installation of the time limited modification provided in Revision 3 to the Service Bulletin. The agency has determined that a time limited modification as provided in Service Bulletin 57-107, is an approved modification. Therefore, the AD is being amended to provide a time limited modification.

Since this amendment provides an alternative means of compliance and imposes no additional burden on any person, notice and public procedure hereon are unnecessary and the amendment may be made effective upon publication in the FEDERAL REGISTER (4-9-71).

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (31 F.R. 13697), § 39.13 of Part 39 of the Federal Aviation Regulations, Amendment 39-1048 (35 F.R. 12058), AD 70-15-15, is amended as follows:

Amend paragraph (D) to read:

D. The special inspections prescribed by A, B, and C, above, do not apply to aircraft on which:

1. The front spar has been reworked to incorporate the preventative modification described in Boeing Service Bulletin 57-107,

Revision I, dated June 17, 1970, or later FAA-approved revision, or an equivalent modification approved by the Chief, Aircraft Engineering Division, FAA Western Region, provided that the spar web was inspected at the same time in accordance with A, above, and found to be uncracked, or that any crack in the web had been properly repaired in accordance with C, above, or

2. The 12,000 landing limited modification described in Boeing Service Bulletin 57-107, Revision 3, dated January 19, 1971, or later FAA-approved revision, has been accomplished. The preventative modification referenced in D.1, above, must be accomplished not later than 12,000 landings after installation of the time limited modification.

This amendment becomes effective April 10, 1971.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958, 49 U.S.C. 1354(a), 1421, 1423; sec. 6(c), Department of Transportation Act, 49 U.S.C. 1655(c))

Issued in Los Angeles, Calif., on March 31, 1971.

LEE E. WARREN,
Acting Director,
FAA Western Region.

[FR Doc.71-4966 Filed 4-8-71;8:48 am]

[Airworthiness Docket No. 71-WE-9-AD;
Amdt. 39-1187]

PART 39—AIRWORTHINESS DIRECTIVES

Douglas Model DC-9 Series Airplanes

There have been reports of accidental tail cone release and subsequent failure of the aft evacuation slide to automatically deploy. The evacuation slide lanyard attach plate, P/N 5924584-3, separated from the tail cone due to installation of three thirty-seconds-inch diameter rivets instead of prescribed one-eighth-inch diameter rivets (MS20470-AD4). Since this condition is likely to exist or develop in other DC-9 airplanes of the same design, an airworthiness directive is being issued to require an inspection of the rivets attaching the Douglas P/N 5924584-3 evacuation slide lanyard attach plate to the tail cone ring and replacement, if necessary.

Since a situation exists that requires immediate adoption of this regulation, it is found that notice and public procedure hereon are impracticable and good cause exists for making this amendment effective in less than 30 days.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (31 F.R. 13697), § 39.13 of Part 39 of the Federal Regulations is amended by adding the following new airworthiness directive:

McDONNELL DOUGLAS. Applies to DC-9 series airplanes incorporating automatically deployed emergency evacuation slides in the tailcone area.

Compliance required within the next 300 hours' time in service after the effective date of this AD, unless already accomplished.

To prevent failure of the aft evacuation slide automatic deployment system, inspect the two attaching rivets for the evacuation slide lanyard attach plate and verify that the Douglas P/N 5924584-3 plate is attached to the tailcone ring with MS 20470AD4 (one-eighth-inch diameter) rivets as specified in

Douglas Aircraft Co. All Operators Letter (AOL) 9-527 dated November 19, 1970, and/or Douglas Aircraft Division DC-9 Service Bulletin No. 25-118 dated August 27, 1969, or later FAA-approved revisions. If rivets of less than one-eighth-inch diameter are installed, they must be replaced with MS 20470AD4 (one-eighth-inch diameter) rivets or No. 8 or No. 10 corrosion resistant steel screws and locknuts, or an equivalent method of attachment as approved by the Chief, Aircraft Engineering Division, FAA Western Region.

This amendment becomes effective April 20, 1971.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958, 49 U.S.C. 1354(a), 1421, 1423; sec. 6(c), Department of Transportation Act, 49 U.S.C. 1655(c))

Issued in Los Angeles, Calif., on March 30, 1971.

LEE E. WARREN,
Acting Director,
FAA Western Region.

[FR Doc.71-4965 Filed 4-8-71;8:48 am]

[Airworthiness Docket No. 71-WE-10-AD;
Amdt. 39-1187]

PART 39—AIRWORTHINESS DIRECTIVES

McDonnell Douglas DC-9 Series Airplanes

Inflight actuation of the DC-9 ground sense mechanism as a result of airloads compressing the nose gear strut has resulted in preventing retraction of the speed brakes until the landing gear had been retracted. Subsequent evaluation of the design has indicated that an additional unsafe condition exists in that actuation of the ground sense mechanism with ground spoilers armed can result in inflight deployment of ground spoilers. Since this condition is likely to exist or develop in other airplanes of the same type, an airworthiness directive is being issued requiring installation of placard(s) in the cockpit to prohibit gear extension with speed brakes deployed and arming of the ground spoilers prior to gear extension.

Since a situation exists that requires immediate adoption of this regulation, it is found that notice and public procedure hereon are impracticable and good cause exists for making this amendment effective in less than 30 days.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (31 F.R. 13697), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new airworthiness directive:

McDONNELL DOUGLAS. Applies to DC-9 airplanes certificated in all categories.

Compliance required within the next 50 hours' time in service after effective date of this AD, unless already accomplished.

To insure pilot control of speed brake retraction and to prevent in-flight deployment of ground spoilers, accomplish the following:

Affix a placard(s) in the cockpit in plain view of both crew members stating:

Do not extend gear with speed brakes deployed.

Do not arm ground spoilers prior to gear extension.

This amendment becomes effective April 13, 1971.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958, 49 U.S.C. 1354(a), 1421, 1423; sec. 6(c), Department of Transportation Act, 49 U.S.C. 1655(c))

Issued in Los Angeles, Calif., on March 31, 1971.

LEE E. WARREN,
Acting Director,
FAA Western Region.

[FR Doc.71-4967 Filed 4-8-71;8:48 am]

Title 21—FOOD AND DRUGS

Chapter III—Environmental Protection Agency

PART 420—TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

4-Amino-3,5,6-Trichloropicolinic Acid

A petition (PP 0F0863) was filed by the Dow Chemical Co., Post Office Box 1708, Midland, Michigan 48640, in accordance with the provisions of the Federal Food, Drug, and Cosmetic Act as amended (21 U.S.C. 346a) proposing establishment of tolerances for residues of the herbicide 4-amino-3,5,6-trichloropicolinic acid from its application in the acid form or in the form of its potassium, triethylamine or triisopropanolamine salts expressed as 4-amino-3,5,6-trichloropicolinic acid in or on the raw agricultural commodity group forage grasses at 70 parts per million; in kidney of cattle, goats and sheep at 8 parts per million; in liver of cattle, goats and sheep at 1 part per million; in meat and fat of cattle, goats and sheep at 0.2 part per million; and in milk at 0.02 part per million (negligible residue).

Subsequently the petitioner amended the petition by proposing tolerances as follows:

80 parts per million in or on forage grasses.
5 parts per million in the kidney of cattle, goats and sheep.
0.5 part per million in the liver of cattle, goats and sheep.
0.2 part per million in the meat, fat, and meat byproducts (other than kidney and liver) of cattle, goats and sheep.
0.05 part per million (negligible residue) in milk.

Prior to December 2, 1970, the Secretary of Agriculture certified that this pesticide chemical is useful for the purposes for which tolerances are being established and the Fish and Wildlife Service of the Department of Interior advised that it has no objection to these tolerances.

Part 120, Chapter I, Title 21, was redesignated Part 420 and transferred to Chapter III (36 F.R. 424).

Based on consideration given data submitted in the petition and other relevant material, it is concluded that the

tolerances established by this order will protect the public health.

Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408(d)(2), 68 Stat. 512; 21 U.S.C. 346a(d)(2)), the authority transferred to the Administrator (35 F.R. 15623), and the authority delegated by the Administrator to the Commissioner or Acting Commissioner of the Pesticides Office of the Environmental Protection Agency (36 F.R. 1228) Part 420 is amended by adding a new section in Subpart C as follows:

§ 420.292 4-amino-3,5,6-trichloropicolinic acid; tolerances for residues.

Tolerances are established for residues of the herbicide 4-amino-3,5,6-trichloropicolinic acid from its application in the acid form, or in the form of its potassium, triethylamine or triisopropanolamine salts expressed as 4-amino-3,5,6-trichloropicolinic acid in or on raw agricultural commodities as follows:

80 parts per million in or on forage grasses.

5 parts per million in the kidney of cattle, goats, and sheep.

0.5 part per million in the liver of cattle, goats, and sheep.

0.2 part per million in the meat, fat, and meat byproducts (other than kidney and liver) of cattle, goats, and sheep.

0.05 part per million (negligible residue) in milk.

Any person who will be adversely affected by the foregoing order may at any time within 30 days after its date of publication in the FEDERAL REGISTER file with the Objections Clerk, Environmental Protection Agency, 1626 K Street NW., Washington, D.C. 20460, written objections thereto in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on its date of publication in the FEDERAL REGISTER (4-9-71).

(Sec. 408(d)(2), 68 Stat. 512; 21 U.S.C. 346a(d)(2))

Dated: March 26, 1971.

R. E. JOHNSON,
Acting Commissioner,
Pesticides Office.

[FR Doc.71-4942 Filed 4-8-71;8:45 am]

Title 31—MONEY AND FINANCE: TREASURY

Subtitle A—Office of the Secretary PART 0—STANDARDS OF CONDUCT Use of Intoxicants

The Department of the Treasury has determined to amend a section of the

subdivision on Rules of Conduct in its Standards of Conduct for Treasury employees. This amendment will bring the Department's regulations on the use of intoxicants into closer conformity with the regulations of certain other Executive departments and of the Civil Service Commission.

The Department finds that notice and public procedure on this amendment are not necessary under 5 U.S.C. 553 since this amendment relates exclusively to agency personnel.

Section 0.735-42 is amended by deleting the last sentence of that section, causing that section to read as follows:

§ 0.735-42 Use of intoxicants.

Employees must refrain from using intoxicants habitually to excess or in any way which adversely affects their work performance (5 U.S.C. 7352).

(E.O. 11222, May 8, 1965, 18 U.S.C. 201 note; 5 CFR 735.104)

This amendment to Part 0 was approved by the Civil Service Commission on March 24, 1971.

Effective date. This amendment shall become effective immediately upon publication in the FEDERAL REGISTER (4-9-71).

Dated: April 5, 1971.

[SEAL] ERNEST C. BETTS, Jr.,
Assistant Secretary
for Administration.

[FR Doc.71-4997 Filed 4-8-71;8:50 am]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

SUBCHAPTER B—LAND RESOURCE MANAGEMENT (2000)

[Circular No. 2282]

PART 2850—POWER TRANSMISSION LINES

Environmental Considerations

On page 18399 of the FEDERAL REGISTER of December 3, 1970, there was published a notice and text of a proposed amendment to Subpart 2850 of Title 43, Code of Federal Regulations. The purpose of the amendment is to require applicants for power transmission line rights-of-way across public lands to submit an environmental impact statement of the project with the application. It also requires that the authorized officer consider the environmental impact in connection with such applications.

Interested persons were given 60 days within which to submit comments, suggestions, or objections to the proposed amendment. Four comments were received. One comment endorsed the regulations and suggested that the impact of

transmission lines on airspace, particularly in the vicinity of airports be considered. Two comments opposed the regulations. One other comment suggested that the regulations be amended to allow for modification of the project where beneficial purposes and effects of the project are outweighed by an adverse environmental impact.

The comments and suggestions received were given due consideration, and the changes have been made to provide that: (1) Required information about the project includes the effect on airspace. (2) "Environmental Criteria for Electric Transmission Lines," a joint publication of the Departments of Agriculture and the Interior shall be used by the applicant in the design and construction of the project. (3) Whenever the application cannot be approved as proposed, the authorized officer will, whenever possible, suggest alternatives or modifications which if adopted by the applicant would make the application acceptable.

The proposed amendment is hereby adopted as set forth below. This amendment shall become effective on publication in the FEDERAL REGISTER (4-9-71).

Section 2851.2-1(c) is amended by adding a subparagraph (6) to read as follows:

§ 2851.2-1 Applications.

(c) * * *

(6) (i) A detailed description of the environmental impact of the project shall be included with the application. It shall provide, among other things, information about the impact of the project on airspace, air and water quality, scenic and esthetic features, historical and archeological features, and wildlife, fish, and marine life.

(ii) The proposed site, design, and construction of the project shall be consistent with the "Environmental Criteria for Electric Transmission Lines," prescribed jointly by the Secretary of the Interior and the Secretary of Agriculture, as well as such other environmental criteria and guidelines as the Department shall from time to time prescribe. "Environmental Criteria for Electric Transmission Systems" is available from the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20420.

(iii) If all other requirements are met, the application may be approved if it is determined that the beneficial purposes and effects of the project will not be outweighed by an adverse environmental impact. If the authorized officer determines that the application cannot be approved as proposed, he will, whenever possible, suggest alternative routes or methods of construction, or other modifications which if adopted by the applicant would make the application acceptable.

ROGERS C. B. MORTON,
Secretary of the Interior.

APRIL 5, 1971.

[FR Doc.71-4955 Filed 4-8-71;8:46 am]

Title 49—TRANSPORTATION

Chapter X—Interstate Commerce Commission

SUBCHAPTER A—GENERAL RULES AND REGULATIONS

[Rev. S.O. 1064]

PART 1033—CAR SERVICE

Distribution of Boxcars

At a session of the Interstate Commerce Commission, Railroad Service Board, held in Washington, D.C., on the 31st day of March 1971.

It appearing, that an acute shortage of plain boxcars with inside length of 40 feet or longer and less than 50 feet, equipped with side doors 9 feet or wider or of plain boxcars with inside length 50 feet or longer and less than 70 feet, regardless of door width, exists throughout the United States; that shippers are being deprived of such cars required for loading creating great economic loss and resulting in a severe emergency; that present rules, regulations, and practices with respect to the use, supply, control, movement, distribution, exchange, interchange, and return of such boxcars to the owning railroads are ineffective; and that orders issued by the Association of American Railroads to promote more equitable distribution have proved ineffective. It is the opinion of the Commission that an emergency exists requiring immediate action to promote car service in the interest of the public and the commerce of the people. Accordingly, the Commission finds that notice and public procedure are impracticable and contrary to the public interest, and that good cause exists for making this order effective upon less than 30 days' notice.

It is ordered, That:

§ 1033.1064 Service Order No. 1064.

(a) *Distribution of boxcars.* Each common carrier by railroad subject to the Interstate Commerce Act shall observe, enforce, and obey the following rules, regulations, and practices with respect to its car service:

(1) Return to owners empty, except as otherwise authorized in subparagraphs (3) and (5) of this paragraph, all plain

boxcars which are listed in the registration of the specific railroads named herein in the Official Railway Equipment Register, ICC R.E.R. 378, issued by E. J. McFarland, or successive issues thereof as having mechanical designation XM, with inside length of 40 feet or longer and less than 50 feet and equipped with side doors 9 feet or wider, or with inside length 50 feet or longer and less than 70 feet regardless of door width, which bear the identification marks shown:

Burlington Northern Inc., identification marks—BN, CBQ, GN, NP, SPS.
Chicago, Milwaukee, St. Paul and Pacific Railroad Co., identification marks—Milw.
Southern Pacific Transportation Co., identification marks—SP.

(2) Plain boxcars described in subparagraph (1) of this paragraph include both plain boxcars in general service and plain boxcars assigned to the exclusive use of a specified shipper.

(3) Except as otherwise provided in subparagraph (5) of this paragraph, boxcars described in subparagraph (1) of this paragraph may be loaded to stations on the lines of the owning railroad, or to any other station which is closer to the owner than the station at which loaded. After unloading at a junction with the car owner, such cars shall be delivered to the car owner at that junction, either loaded or empty.

(4) Boxcars described in subparagraph (1) of this paragraph shall not be backhauled empty from a junction with the car owner.

(5) Boxcars described in subparagraph (1) of this paragraph located at a point other than a junction with the car owner shall not be backhauled empty, except for the purpose of loading to a junction with the car owner or to a station on the lines of the car owner.

(6) The return to the owner of a boxcar described in subparagraph (1) of this paragraph shall be accomplished when it is delivered to the car owner, either empty, or loaded as authorized by subparagraph (3) or (5) of this paragraph.

(7) Junction points with the car owner shall be those listed by the car owner in its specific registration in the Official Railway Equipment Register, ICC R.E.R. No. 378, issued by E. J. Mc-

Farland, or successive issues thereof, under the heading "Freight Connections and Junction Points."

(8) In using plain boxcars owned by railroads not listed in subparagraph (1) of this paragraph, the railroads named therein shall restrict the use of such cars to traffic destined to a station closer to the car owner than the station at which the car was last loaded, or to traffic routed via the lines of the car owner.

(9) In determining distances to the car owner from points of loading or unloading, tariff distances applicable via the lines of the carriers obligated under Car Service Rules 1 and 2 to move the car shall be used.

(10) No common carrier by railroad subject to the Interstate Commerce Act shall accept from shipper any loaded boxcar for movements contrary to the provisions of subparagraph (3) or (5) of this paragraph.

(b) *Application.* The provisions of this order shall apply to intrastate, interstate, and foreign commerce.

(c) *Effective date.* This order shall become effective at 12:01 a.m., April 5, 1971.

(d) *Expiration date.* This order shall expire at 11:59 p.m., June 30, 1971, unless otherwise modified, changed, or suspended by order of this Commission.

(Secs. 1, 12, 15, and 17(2), 24 Stat. 373, 383, 384, as amended; 49 U.S.C. 1, 12, 15, and 17(2). Interprets or applies secs. 1(10-17), 15(4), and 17(2), 40 Stat. 101, as amended, 54 Stat. 911; 49 U.S.C. 1(10-17), 15(4), and 17(2))

It is further ordered, That a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement, and upon the American Short Line Railroad Association; and that notice of this order be given to the general public by depositing a copy in the Office of the Secretary of the Commission at Washington, D.C., and by filing it with the Director, Office of the Federal Register.

By the Commission, Railroad Service Board.

[SEAL]

ROBERT L. OSWALD,
Secretary.

[FR Doc. 71-4939 Filed 4-8-71; 8:49 am]

Proposed Rule Making

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR Part 1]

DEFINITIONS AND SPECIAL RULES

Notice of Proposed Rule Making

Correction

In F.R. Doc. 71-4585 appearing at page 6429 in the issue of Saturday, April 3, 1971, the following change should be made in § 1.507-6: The word "only" in the 23d line of paragraph (a) (2) should be deleted.

[26 CFR Part 1]

INCOME TAX

Accounting for Long-Term Contracts; Notice of Hearing

Proposed amendments to the regulations under section 451 of the Internal Revenue Code of 1954, relating to accounting for long-term contracts, appear in the *FEDERAL REGISTER* for March 24, 1971 (36 F.R. 5509).

A public hearing on the provisions of these proposed amendments to the regulations will be held on Tuesday, May 11, 1971, at 10 a.m., e.d.s.t., in Room 3313, Internal Revenue Service Building, 1111 Constitution Avenue NW., Washington, DC 20224.

The rules of § 601.601(a) (3) of the Statement of Procedural Rules (26 CFR Part 601) shall apply with respect to such public hearing. Copies of these rules will be furnished on request. Under such § 601.601(a) (3) persons who desire to present oral comments (in addition to having submitted written comments or suggestions within the time prescribed in the notice of proposed rule making) should by April 26, 1971, submit an outline of the topics and the time they wish to devote to each topic. Such outlines shall be submitted to the Commissioner of Internal Revenue, Attention: CC:LR:T, Washington, D.C. 20224.

Persons who plan to attend the hearing and persons who desire a copy (furnished only at the above address) of such written comments or suggestions or outlines should notify the Commissioner at the above address or telephone (Washington, D.C.) 202-964-3935 by May 4, 1971.

K. MARTIN WORTHY,
Chief Counsel.

[F.R. Doc. 71-5071 Filed 4-8-71; 10:23 am]

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 1007]

[Docket No. AO-366-A7]

MILK IN GEORGIA MARKETING AREA

Notice of Hearing on Proposed Amendments to Tentative Market- ing Agreement and Order

Notice is hereby given of a public hearing to be held at Atlanta Airport Holiday Inn, Aldrin Room, 1380 Virginia Avenue, East Point, GA, beginning at 9:30 a.m., local time, on Tuesday, April 27, 1971, with respect to proposed amendments to the tentative marketing agreement and to the order, regulating the handling of milk in the Georgia marketing area.

The hearing is called pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900).

The purpose of the hearing is to receive evidence with respect to the economic and marketing conditions which relate to the proposed amendments, hereinafter set forth, and any appropriate modifications thereof, to the tentative marketing agreement and to the order.

The proposed amendments, set forth below, have not received the approval of the Secretary of Agriculture.

Proposed by Dairymen, Inc.:

Proposal No. 1. Amend § 1007.10 Pool plant by adding a new paragraph to be designated (c), as follows:

§ 1007.10 Pool plant.

(c) A plant operated by a cooperative association if, during the month, the sum of the milk received at other pool plants from producers who are members of such cooperative association, plus the milk which was transferred thereto from the plant operated by the cooperative association, is not less than 50 percent of the total volume of milk delivered to all plants by producers who are members of the association.

Proposal No. 2. Amend § 1007.16 Producer milk by rewriting paragraph (b) (1) to read as follows:

§ 1007.16 Producer milk.

(b) * * *

(1) Such milk shall be deemed to have been received by the diverting handler at the pool plant from which the milk was diverted.

Proposal No. 3. Substitute the following Class I base plan for the present seasonal base-excess plan:

§ 1007.110 History of production.

(a) *Initial history of production.* (1) The market administrator shall determine for each producer whose milk, in the immediately preceding months of September through January, was delivered to pool plants on not less than 100 days, an initial history of production by dividing the total pounds of such producer's deliveries to pool plants for the period of September 1969 through January 1970 or September 1970 through January 1971, whichever is higher, by the number of days' production represented by such deliveries or by 145, whichever is greater.

(2) For producers who delivered milk for less than 100 days during the period of September 1970 through January 1971 and who had not delivered milk during September 1969 through January 1970, the market administrator shall determine the history of production for such producer(s) by multiplying the average daily deliveries of such producer(s) during the most recent 5-month period by 0.80 and adjusting by a ratio obtained by dividing the average daily deliveries per producer during the most recent September through January period by the average daily deliveries per producer during the 5-month period used for such producer(s).

(3) For producers who have delivered milk for at least 90 days on the effective date of this order but who delivered no milk during the period of September 1, 1970, through January 1971 and who delivered no milk prior to that time, the market administrator shall determine a history of production for such producer(s) by multiplying by his average daily deliveries during his first 90 days' production by 0.80, and adjusting by a ratio obtained by dividing the average daily deliveries per producer during the most recent September through January period by the average daily deliveries per producer during the 3-month period used for such producer(s).

(4) Producers who have delivered milk for less than 90 days at the effective date of this order shall have no initial

history of production but shall be assigned a history of production in accordance with the provisions applicable for new producers.

(5) Any producer may appeal his assignment of initial history of production to the Hardship Committee established pursuant to § 1007.120 to show cause why such history of production is inequitable and should be adjusted.

(b) *Annual adjustment of history of production.* (1) Effective on March 1, 1972, the market administrator shall update the history of production for each producer as follows:

(i) For producers assigned an initial history of production prior to September 1, 1971, divide the total pounds of each producer's deliveries to pool plants for the period of September 1971 through January 1972, by the number of days' production represented by such deliveries or by 145, whichever is greater, and add to the quantity so obtained, such producer's initial history of production and divide the result by 2: *Provided*, That if during the immediately preceding September through January a producer delivers not less than his daily Class I base multiplied by the number of days in such period, then his history of production shall not be reduced: *And provided further*, That if during the immediately preceding September through January a producer's average daily deliveries are less than his daily Class I base, then such producer's existing daily history of production shall be reduced by the same amount as his daily Class I base exceeds his average daily deliveries during the immediately preceding September through January period; in no event shall a producer's history of production be reduced by more than 25 percent.

(ii) For a producer who had no initial history of production on September 1, 1971, the market administrator shall determine the history of production for each such producer by dividing the total pounds of such producer's deliveries to pool plants for the period of September 1971 through January 1972 by the number of days' production represented by such deliveries or by 145, whichever is greater, and multiplying such amount by 0.80.

(2) Effective March 1, 1973, the market administrator shall update the history of production for each producer as follows:

(i) For a producer assigned an initial history of production prior to September 1, 1971, divide the total pounds of each producer's deliveries to pool plants for the period of September 1972 through January 1973 by the number of days' production represented by such deliveries or by 145, whichever is greater, and add to the quantity so obtained such producer's initial history of production plus his history of production for the period of September 1971 through January 1972 and divide this sum by 3: *Provided*, That if during the immediately preceding September through January a producer delivers not less than his

daily Class I base multiplied by the number of days in such period, then his history of production shall not be reduced; and provided further that if during the immediately preceding September through January a producer's average daily deliveries are less than his daily Class I base, then such producer's existing daily history of production shall be reduced by the same amount as his daily Class I base exceeds his average daily deliveries during the immediately preceding September through January period; in no event shall a producer's history of production be reduced by more than 25 percent.

(ii) For producers assigned a history of production established after September 1, 1971, divide the total pounds of such producer's deliveries to pool plants for the period of September 1972 through January 1973 by the number of days' production represented by such deliveries or by 145, whichever is higher, and adding this amount to his previous history of production and dividing the sum by 2: *Provided*, That if during the immediately preceding September through January a producer delivers not less than his daily Class I base multiplied by the number of days in such period, then his history of production shall not be reduced: *And provided further*, That if during the immediately preceding September through January a producer's average daily deliveries are less than his daily Class I base, then such producer's existing daily history of production shall be reduced by the same amount as his daily Class I base exceeds his average daily deliveries during the immediately preceding September through January period; in no event shall a producer's history of production be reduced by more than 25 percent.

(iii) For producers with no history of production prior to September 1, 1972, a history of production for such producer shall be the total pounds of such producer's deliveries to pool plants for the period of September 1972 through January 1973 divided by the number of days' production represented by such deliveries or by 145, whichever is greater, and multiplying the results by 0.80.

(3) Effective March 1, 1974, and on March 1 of each year thereafter, the market administrator shall update the history of production for each producer as follows:

(i) For each producer whose milk was delivered to pool plants on not less than 100 days during the immediately preceding September through January, divide the total pounds of such deliveries by the number of days' production represented by such deliveries or by 145, whichever is greater.

(ii) For producers who have a history of production covering three or more periods, including the period used in subdivision (i) of this subparagraph, add the results obtained in paragraph (a) of this section, for such producer to his average daily history of production of the immediately preceding two periods and divide by 3: *Provided*, That if during the immediately preceding September through January a producer delivers not

less than his daily Class I base multiplied by the number of days in such period, then his history of production shall not be reduced: *And provided further*, That if during the immediately preceding September through January a producer's average daily deliveries are less than his daily Class I base, then such producer's existing daily history of production shall be reduced by the same amount as his daily deliveries during the immediately preceding September through January period; in no event shall a producer's history of production be reduced by more than 25 percent.

(iii) For a producer who has a history of production covering two periods, including the period used in subdivision (i) of this subparagraph, add to the results obtained for such producer in paragraph (a) of this section his previous average daily history of production and divide by 2: *Provided*, That if during the immediately preceding September through January a producer delivers not less than his daily Class I base multiplied by the number of days in such period, then his history of production shall not be reduced: *And provided further*, That if during the immediately preceding September through January a producer's average daily deliveries are less than his daily Class I base, then such producer's existing daily history of production shall be reduced by the same amount as his daily Class I base exceeds his average daily deliveries during the immediately preceding September through January period; in no event shall a producer's history of production be reduced by more than 25 percent.

(iv) For producers who had no history of production on the immediately preceding September 1, such producer's history of production shall be 80 percent of the amount obtained in paragraph (a) of this section.

(4) On March 1 of any year in which this plan is in effect, the market administrator shall determine a history of production for producers who delivered milk for less than 100 days during the immediately preceding period of September through January. Such history of production shall be 80 percent of milk shipments to pool plants during the first 80 days delivered and shall be effective on the first day of the third pay period in which such producer delivers milk to pool plants.

§ 1007.111 New producers.

(a) *History of production or Class I base for new producers.* The market administrator shall determine a history of production for each producer for whom a history of production was not determined pursuant to § 1007.110 as follows:

(1) Any producer who during the preceding September through January delivered his milk to a nonpool plant which became a pool plant, shall be assigned a history of production on the same basis as other producers under the order, pursuant to § 1007.110.

(2) Effective on the first day of the third pay period in which milk is delivered to a pool plant, a producer who delivered milk to a nonpool plant during

the representative period shall be allocated a history of production on the same basis as if he had been a producer under the order, provided that in no event shall the Class I base associated with such history of production exceed the amount of milk actually delivered under this order.

(3) Any new producer who delivered no milk to a pool plant or nonpool plant during the representative period for this order, and who has not acquired a history of production and Class I base by transfer pursuant to § 1007.113(b), shall be assigned a Class I base:

(i) In the event that such producer's first delivery of milk is made to a pool plant during the calendar months of February through August, a Class I base shall be assigned effective on the first day of the third pay period in which such producer delivers milk to a pool plant and such Class I base shall be equal to 50 percent of his average daily deliveries of milk each month until a base has been computed following deliveries during the subsequent production history period of September through January.

(ii) In the event that such producer's first delivery of milk is made to a pool plant during the calendar months of September through January, such Class I base shall be equal to 50 percent of his average daily deliveries of producer milk each month until a base has been computed on the deliveries in the production history period of September through January.

§ 1007.112 Class I base.

(a) On the effective date of this order, and on March 1 of each year thereafter, the market administrator shall assign each producer a Class I base proportionate to his history of production by multiplying such producer's current assigned history of production by a ratio computed as follows:

(1) Multiply the average daily producer milk utilized in Class I during the immediately preceding period of September through January by 1.10 and divide such result by the sum of the history of production of all producers.

(2) Such Class I base shall remain in effect from the effective date of this order to March 1 of the next year, and thereafter for a 12-month period beginning March 1 of each year.

(b) Seasonal adjustment of Class I base: The market administrator shall reduce Class I bases determined pursuant to paragraph (a) of this section for use in making payments to producers for milk, delivered in June, July, and August of any year, by the percentage reduction in average daily Class I sales of producer milk for June, July, and August of the preceding calendar year relative to Class I sales for the remaining 9 months.

§ 1007.113 Base rules.

The following rules shall apply in the establishment and assignment of bases; provided that for the purposes of this section any assignment or transfer of bases shall also apply to history of production associated with such base.

(a) Subject to the provisions of paragraph (b) of this section, the market ad-

ministrator shall assign a base calculated pursuant to § 1007.110 to each producer.

(b) Except for bases associated with a history of production determined pursuant to § 1007.110(a) (2) and (3) and pursuant to § 1007.110(b) (4) and bases assigned pursuant to § 1007.111(a) (1) and (3), a base may be transferred in its entirety, or in amounts of not less than 100 pounds, by a person holding such base to any other person who currently is, or will become, a producer as defined in § 1007.15 within the month in which the transfer is to be effective. Application for transfer must be made to the market administrator on forms approved by the market administrator and signed by the base holder(s), his heirs, executor, or trustee, and by the person(s) to whom such base is to be transferred, subject to the following conditions:

(1) A transfer of an entire base may be made effective any day of the month if application(s) for such transfer is filed with the market administrator within five (5) days of the effective date of the transaction. Otherwise such transfer shall be effective the first day of the month following that in which application is made;

(2) A transfer of a portion of a base shall be effective the first day of the month following that in which application for such transfer is made to the market administrator, except that a portion of a base may be transferred to be effective on March 1 of any year if application for such transfer is filed with the market administrator no later than March 15;

(3) A producer who has received base by transfer on or after March 1 of any year may not transfer any portion of his base for 3 full months following the effective date of such transfer;

(4) A producer who has transferred base on or after March 1 of any year may not receive additional base by transfer for 3 full months following the effective date of such transfer; and

(5) A base which is held jointly or as a partnership may be transferred in part, or in its entirety, only upon application signed by each point holder or partner, his heirs, executor or trustee, and by the person(s) to whom such base is to be transferred.

(c) A base which has been established by two or more persons operating a dairy farm jointly or as a partnership may be divided among the joint holders or partners if written notification of the agreed division of base signed by each joint holder or partner, his heirs, executor or trustee, is received by the market administrator prior to the first day of the month on which such division is to be effective.

(d) A producer who has transferred his entire base to another person shall not be eligible to receive a base as a new producer pursuant to this section until 3 years after the date on which such base was transferred.

(e) A producer who has been assigned a history of production pursuant to § 1007.110(a) (2) and (3) and a Class I base associated therewith and a producer who has been assigned a base pursuant to § 1007.111(a) (1) and (3) shall not be

eligible to transfer such base to another producer until 12 months after such base assignment.

(f) A producer to whom a base has been assigned and who fails to ship milk to a pool plant during the immediately preceding 12 months and who has not transferred his base shall forfeit such base effective March 1.

§ 1007.114 Announcement of history of production and Class I bases.

Within thirty (30) days after the adoption of this order, and on or before March 5 of each year, the market administrator shall notify each producer or the cooperative association of which he is a member and the handler of the producer's history of production and Class I base computed pursuant to §§ 1007.110, 1007.111, and 1007.112. Unless otherwise provided, such Class I base shall be effective from March 1 of such year through February of the following year.

§ 1007.120 Relief from hardship or inequity.

Requests of producers for relief from hardship or inequity arising from the provisions of §§ 1007.110 through 1007.114 will be subject to the following:

(a) A producer may request review of his assignment of production history and/or base because of alleged hardship or inequity for the following circumstances:

(1) His history of production pursuant to §§ 1007.110 and 1007.111 is alleged not to be representative of his level of milk production due to loss of milk production caused by factors beyond the control of such producer.

(2) His history of production is alleged to not be representative because of base transfers made on or after March 1, 1971, but not after the effective date of the Class I plan.

(3) He was not issued a Class I base pursuant to § 1007.110 or § 1007.111.

(b) The producer shall file with the market administrator a request in writing for review of hardship or inequity not later than 45 days after notice pursuant to § 1007.114 or not later than 45 days after date on which a notice of his base as a new producer was mailed to him or to the cooperative association of which he is a member by the market administrator. Such request shall set forth:

(1) Conditions that cause the alleged hardship or inequity.

(2) The extent of relief or adjustment requested.

(3) The basis upon which the amount of adjustment request was determined.

(4) The reasons why the relief or adjustment should be granted.

(c) A producer committee for the evaluation of hardship requests shall consist of five (5) producers appointed by the market administrator and shall function as follows:

(1) Review each request of relief from hardship or inequity referred to it by the market administrator at a meeting called by the market administrator at

which the applicant may appear in person if he so requests.

(2) Formally recommend the action which should be taken with respect to each request giving the reasons for any adjustments as well as the reasons for rejecting any and all such requests.

(d) The market administrator or his representative shall act as Recording Secretary at meetings of such committee and shall notify each producer whose request is considered at such meeting of action taken and reasons for such action. Such notice to producer shall be made within five (5) days following the meeting of the Hardship Committee.

(e) Committee members shall be reimbursed by the market administrator from funds collected under § 1007.77 for their services at a rate of \$30 per day or a portion thereof, plus the necessary travel and subsistence expenses incurred in the performance of their duties as Committee members.

(f) The market administrator shall maintain files of all requests for alleviation of hardship and the disposition made thereof. These files shall be open to inspection to any interested person during the regular business hours of the market administrator.

§ 1007.22 Base milk.

"Base milk" means producer milk received during the month which is not in excess of the producer's Class I base multiplied by the number of days of production that such milk was received at pool plants or diverted therefrom.

Proposed by the Dairy Division, Consumer and Marketing Service:

Proposal No. 4. Make such changes as may be necessary to make the entire marketing agreement and the order conform with any amendments thereto that may result from this hearing.

Copies of this notice of hearing and the order may be procured from the Market Administrator, E. Hickman Greene, Post Office Box 49025, Atlanta, GA 30329, or from the Hearing Clerk, Room 112-A, Administration Building, U.S. Department of Agriculture, Washington, D.C. 20250 or may be there inspected.

Signed at Washington, D.C., on April 5, 1971.

JOHN C. BLUM,
Deputy Administrator,
Regulatory Programs.

[FR Doc.71-4954 Filed 4-8-71;8:46 am]

17 CFR Parts 1063, 1070, 1078, 1079

[Dockets Nos. AO-105-A34, AO-229-A25, AO-272-A19, AO-295-A23]

MILK IN QUAD CITIES-DUBUQUE AND CERTAIN OTHER MARKETING AREAS

Supplemental Notice of Hearing on Proposed Amendments to Tentative Marketing Agreements and Orders

This notice is supplemental to the notice of hearing which was issued on

April 5, 1971, and published in the *FEDERAL REGISTER* on April 7, 1971. Notice is hereby given that the aforesaid hearing will be held as scheduled at the Howard Johnson's Motor Lodge, Quad Cities Airport, Moline, Ill., beginning at 9 a.m., on April 13, 1971, with respect to proposed amendments previously announced and to additional proposed amendments to the tentative marketing agreements and to the orders, regulating the handling of milk in the Quad Cities-Dubuque, Cedar Rapids-Iowa City, North Central Iowa, and Des Moines, Iowa, marketing areas.

The hearing is called pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900).

The purpose of the hearing is to receive evidence with respect to the economic and marketing conditions which relate to the previously announced proposed amendments, and to the additional proposed amendment hereinafter set forth, and any appropriate modifications thereof, to the tentative marketing agreements and to the orders.

Evidence also will be taken to determine whether emergency marketing conditions exist that would warrant omission of a recommended decision under the rules of practice and procedure (7 CFR 900.12(d)) with respect to the proposed amendments, and to determine whether such amendments should be made for a temporary period.

The proposed amendment, set forth below, has not received the approval of the Secretary of Agriculture.

Proposed by Carnation Co.:

Revise the order regulating the handling of milk in the North Central Iowa, marketing area, 7 CFR Part 1078, as follows:

Proposal No. 20. Change the first sentence in § 1078.50(b) to read: "The Class I milk price at plants in Zone 1 shall be the basic formula price for the preceding month plus \$0.95, and plus 20 cents."

Copies of this supplemental notice of hearing and the order may be procured from the Market Administrator, E. H. McGuire, Watch Tower Plaza, 924 37th Avenue, Post Office Box 691, Rock Island, IL 61201; Market Administrator, J. B. Rosenbury, 909 Sixth Street NW., Rochester, MN 55901; or from the Hearing Clerk, Room 112-A, Administration Building, U.S. Department of Agriculture, Washington, D.C. 20250 or may be there inspected.

Signed at Washington, D.C., on April 7, 1971.

JOHN C. BLUM,
Deputy Administrator,
Regulatory Programs.

[FR Doc.71-5032 Filed 4-8-71;8:51 am]

DEPARTMENT OF COMMERCE

Maritime Administration

146 CFR Ch. II

PROCEDURES FOR DETERMINATION OF OPERATING-DIFFERENTIAL SUBSIDY FOR WAGES OF OFFICERS AND CREWS

Notice of Proposed Rule Making

The Merchant Marine Act of 1970 (Public Law 91-469), in amending the Merchant Marine Act of 1936, as amended (46 U.S.C. 1101-1294) provides for substantial changes in the procedures for determining operating-differential subsidy for wages of officers and members of the crew under section 693 (46 U.S.C. 1173) of said 1936 Act.

Pursuant to section 204 (46 U.S.C. 1114) and section 693 (46 U.S.C. 1173) of said 1936 Act, notice is hereby given that the Maritime Subsidy Board and Assistant Secretary for Maritime Affairs are contemplating the adoption of procedures to be followed in connection with the determination of operating-differential subsidy for wages of officers and members of the crews of vessels subsidized under Title VI of said 1936 Act.

While the subsidy program is exempt from the requirements of section 4, Administrative Procedure Act (5 U.S.C. 553), interested parties are invited to submit in writing for consideration by the Maritime Subsidy Board and Assistant Secretary for Maritime Affairs data or views on the contemplated procedures, in triplicate, to the Secretary, Maritime Subsidy Board, Maritime Administration, Washington, D.C. 20235, by close of business on April 26, 1971. Copies of the proposed procedures may be obtained from the Secretary.

Dated: April 7, 1971.

By order of the Maritime Subsidy Board and Assistant Secretary for Maritime Affairs.

JAMES S. DAWSON, Jr.,
Secretary.

[FR Doc.71-5037 Filed 4-8-71;10:03 am]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

21 CFR Parts 1, 130

CONTROLLED SUBSTANCES

Labeling, Dispensing in Emergencies, Security and Accountability

Pursuant to the provisions of the Federal Controlled Substances Act (secs. 201, 305, 307, 309, 84 Stat. 1247, 1256, 1259, 1260) and the Federal Food, Drug, and Cosmetic Act, as amended (secs. 503(b), 505, 701(a), 52 Stat. 1051, 1052, 1055, 76 Stat. 761-765, 21 U.S.C. 353(b),

355, 371(a)), and under the authority delegated to him (21 CFR 2.120), the Commissioner of Food and Drugs, having consulted with the Attorney General, as directed by sections 307 and 309 of the Controlled Substances Act, proposes to promulgate regulations amending Parts 1 and 130 as follows:

1. Section 1.108 would be amended by adding new paragraph (c) which would read as follows:

§ 1.108 Drugs and devices, statement of policy re Spanish language version of required labeling statements.

(c) By direction of section 305(c) of the Federal Controlled Substances Act, § 1.109, promulgated under section 503(b) of the Federal Food, Drug, and Cosmetic Act, requires the following warning on the label of certain drugs: "Caution: Federal law prohibits the transfer of this drug to any person other than the patient to whom it was prescribed." The Spanish version of this shall be: "Precaucion: La ley Federal prohíbe el transferir de esta droga a otra persona que no sea el paciente para quien fue recetada."

2. A new § 1.109 would be added to read as follows:

§ 1.109 Drugs; statement of required warning on controlled substances listed in schedule II, III, or IV of Federal Controlled Substances Act.

The label of any drug listed as a "controlled substance" in schedule II, III, or IV of the Federal Controlled Substances Act shall, when dispensed to or for a patient, contain the following warning: "Caution: Federal law prohibits the transfer of this drug to any person other than the patient for whom it was prescribed."

3. A new § 1.110 would be added to read as follows:

§ 1.110 Definition of emergency situation.

For the purposes of authorizing an oral prescription of a controlled substance listed in schedule II of the Federal Controlled Substances Act, the term "emergency situation" means those situations in which the prescribing practitioner determines:

(a) That immediate administration of the controlled substance is necessary for proper treatment of the intended ultimate user; and

(b) That no appropriate alternative treatment is available, including administration of a drug which is not a controlled substance under schedule II of the Act, and

(c) That it is not reasonably possible for the prescribing practitioner to provide a written prescription to be presented to the person dispensing the substance, prior to the dispensing.

4. Section 130.3(a)(4) would be amended by adding one sentence at the end of the subparagraph. In paragraph (a)(12), item 6b of form FD-1572 would be amended by adding one sentence and

in paragraph (a)(13), item 4b of form FD-1573 would be amended by adding one sentence, as follows:

§ 130.3 New drugs for investigational use in human beings; exemptions from section 505(a).

(a) A shipment or other delivery of a new drug shall be exempt from section 505(a) of the act if all the following conditions are met:

(4) The sponsor maintains adequate records showing the investigator to whom shipped, date, quantity, and batch or code mark of each such shipment and delivery, until 2 years after a new-drug application is approved for the drug; or, if an application is not approved, until 2 years after shipment and delivery of the drug for investigational use is discontinued and the Food and Drug Administration has been so notified. Upon the request of a scientifically trained and properly authorized employee of the Department at reasonable times, the sponsor makes the records referred to in this subparagraph and in subparagraph (2) of this paragraph available for inspection, and upon written requests submits such records or copies of them to the Food and Drug Administration. If the investigational drug is subject to the Comprehensive Drug Abuse Prevention and Control Act of 1970 adequate precautions are taken, including storage of the investigational drug in a securely locked, substantially constructed cabinet, to prevent theft or diversion of the substance into illegal channels of distribution.

(12) * * *

6. * * *

b. The investigator is required to maintain adequate records of the disposition of all receipts of the drug, including dates, quantity, and use by subjects, and if the clinical pharmacology is suspended, terminated, discontinued, or completed, to return to the sponsor any unused supply of the drug. If the investigational drug is subject to the Comprehensive Drug Abuse Prevention and Control Act of 1970, adequate precautions must be taken, including storage of the investigational drug in a securely locked, substantially constructed cabinet, to prevent theft or diversion of the substance into illegal channels of distribution.

(13) * * *

4. * * *

b. The investigator is required to maintain adequate records of the disposition of all receipts of the drug, including dates, quantity, and use by subjects, and if the investigation is terminated, suspended, discontinued, or completed, to return to the sponsor any unused supply of the drug. If the investigational drug is subject to the Comprehensive Drug Abuse Prevention and Control Act of 1970, adequate precautions must be taken, including storage of the investigational drug in a securely locked, substantially constructed cabinet, to prevent theft or diversion of the substance into illegal channels of distribution.

5. Section 130.3a(b)(7)(ii) would be revised to read as follows:

§ 130.3a New drugs for investigational use in animals; exemptions from section 505(a).

(b) *New drugs for clinical investigation in animals.* A shipment or other delivery of a new drug intended for clinical investigational use in animals shall be exempt from section 505(a) of the act if all the following conditions are met:

(7) The sponsor shall assure himself that the drug is shipped only to investigators who:

(ii) Shall maintain complete records of the investigations, including complete records of the receipt and disposition of each shipment or delivery of the drug under investigation. Copies of all records of the investigation shall be retained by the investigator for 2 years after the termination of the investigation or approval of a new-drug application.

6. A new § 130.3b would be added to read as follows:

§ 130.3b Controlled substances for investigational use.

If an investigational drug is subject to the Comprehensive Drug Abuse Prevention and Control Act of 1970, records concerning shipment, delivery, receipt, and disposition of the drug, which are required to be kept by §§ 130.3(a)(4), (12), and (13) and 130.3a(a)(3) and (b)(3), (7), and (8) shall, upon the request of a properly authorized employee of the Bureau of Narcotics and Dangerous Drugs of the U.S. Department of Justice, approved by the Secretary, be made available by the investigator or sponsor to whom the request is made, for inspection and copying.

7. A new § 130.13b would be added to read as follows:

§ 130.13b New drugs with potential for abuse.

When a new-drug application is submitted for a drug which has a stimulant, depressant, or hallucinogenic effect on the central nervous system, if it appears that the drug has a potential for abuse, the Commissioner shall forward that information to the Attorney General of the United States.

Any interested person may, within 15 days after publication of this notice in the FEDERAL REGISTER, file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 6-62, 5600 Fishers Lane, Rockville, Maryland 20852, written comments (preferably in quintuplicate) regarding this proposal.

Dated: April 5, 1971.

SAM D. FINE,
Associate Commissioner,
for Compliance.

[FR Doc.71-4990 Filed 4-8-71;8:50 am]

[21 CFR Part 16]

ENRICHED MACARONI PRODUCTS
WITH IMPROVED PROTEIN QUALITYExtension of Time for Filing Comments
on Proposed Identity Standard

In the matter of establishing a standard of identity for enriched macaroni products with improved protein quality:

The notice of proposed rule making in the above-identified matter, published in the FEDERAL REGISTER of March 3, 1971 (36 F.R. 4061), provided for filing of comments thereon within 30 days after said date.

The Commissioner of Food and Drugs has received a request to extend such time and, good reason therefor appearing, the time for filing comments regarding the proposal is extended to May 2, 1971.

This action is taken pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055, as amended 70 Stat. 919, 72 Stat. 948; 21 U.S.C. 341, 371) and under authority delegated to the Commissioner (21 CFR 2.120).

Dated: March 30, 1971.

R. E. DUGGAN,
Acting Associate Commissioner
for Compliance.

[FR Doc. 71-4948 Filed 4-3-71; 8:45 am]

Public Health Service

[42 CFR Part 73]

BIOLOGICAL PRODUCTS

Additional Standards for Platelet
Concentrate (Human)

Notice is hereby given that the Director, National Institutes of Health, proposes to amend Part 73 of the Public Health Service regulations by prescribing specific standards of safety, purity and potency for Platelet Concentrate (Human).

Inquiries may be addressed, and data, views and arguments may be presented by interested parties, in writing, in triplicate, to the Director, National Institutes of Health, Public Health Service, 9000 Rockville Pike, Bethesda, MD 20014. All relevant material received not later than 45 days after publication of this notice in the FEDERAL REGISTER will be considered.

Notice is also given that it is proposed to make any amendments that are adopted effective 30 days after publication in the FEDERAL REGISTER.

It is therefore proposed to amend Part 73 as follows:

1. Amend Subpart D of the table of contents by inserting in numerical sequence the following:

PLATELET CONCENTRATE (HUMAN)

- Sec.
73.3060 The product.
73.3061 Processing.
73.3062 General requirements.

§ 73.503 [Amended]

2. Amend § 73.503 by inserting in the first sentence immediately after the words "Cryoprecipitated Antihemophilic Factor (Human)," as added by 35 F.R. 13990, the following: "Platelet Concentrate (Human)."

§ 73.505 [Amended]

3. Amend § 73.505 by inserting immediately following the listing "Cryoprecipitated Antihemophilic Factor (Human) —18° C. or colder," as added by 35 F.R. 13990, the following new listing: "Platelet Concentrate (Human) between 20°–25° C."

§ 73.730 [Amended]

4. Amend § 73.730(f) (4) by inserting immediately after the words "Cryoprecipitated Antihemophilic Factor (Human)," as added by 35 F.R. 13990, the following: "Platelet Concentrate (Human)."

§ 73.740 [Amended]

5. Amend § 73.740(b) by inserting immediately after the words "Normal Rabbit Serum;" the following: "Platelet Concentrate (Human)."

§ 73.870 [Amended]

6. Amend § 73.870 by inserting immediately after the listing "Plasma Protein Fraction (Human) (a) Five years (5° C., one year), (b) Three years, provided labeling recommends storage at no warmer than 30° C. (5° C., one year)." the following new listing:

Platelet Concentrate 24 hours from time of collection of source blood, provided labeling recommends storage between 20°–25° C. § 73.870 does not apply.

7. Amend Subpart D by adding immediately after § 73.3042, as added by 35 F.R. 13990, the following:

PLATELET CONCENTRATE (HUMAN)

§ 73.3060 The product.

(a) *Proper name and definition.* The proper name of this product shall be Platelet Concentrate (Human) which shall consist of a preparation containing the platelets, suspended in approximately 30 ml. of plasma, obtained from a single unit of human blood collected in acid citrate dextrose solution (hereinafter referred to as "ACD whole blood").

(b) *Source.* Platelet Concentrate (Human) shall be prepared from ACD whole blood meeting the following criteria:

(1) *Suitability of the donor.* Blood for Platelet Concentrate (Human) shall be obtained only from a donor who meets the criteria for suitability prescribed in § 73.3001.

(2) *Collection of the blood.* Blood for Platelet Concentrate (Human) shall be collected as prescribed in § 73.3002, except that paragraphs (d) (2) and (3),

(g), (h), and (i) shall not apply. The blood shall be collected with minimal damage to and minimal manipulation of the donor's tissue and with a single, uninterrupted free-flowing venipuncture.

(3) *Storage.* Immediately after collection the source blood shall be placed in storage between 20°–25° C. and shall be maintained continuously under such storage conditions until the platelet concentrate has been removed.

(4) *Testing the blood.* Blood for Platelet Concentrate (Human) shall be tested as prescribed in § 73.3003 (a), (b), and (c).

§ 73.306 Processing.

(a) *Separation of platelets.* The Platelet Concentrate (Human) shall be separated from the plasma within 4 hours after the collection of ACD whole blood in a closed system by a procedure which precludes contamination and has been shown to produce a product that has been demonstrated to have approximately 70 percent of the platelets found in 450 ml. of fresh ACD whole blood, when both are counted 4 hours after collection.

(b) *Final container.* Final containers used for Platelet Concentrate (Human) shall be uncolored and transparent to permit visual inspection of the contents and any closure shall be such as will maintain an hermetic seal and prevent contamination of the contents. The container material shall not interact with the contents under the customary conditions of storage and use, in such a manner as to have an adverse effect upon the safety, purity, and potency of the product. At the time of filling, the final container shall be marked or identified by number or other symbol so as to relate it to the donor.

§ 73.3062 General requirements.

(a) *Storage.* Immediately after processing the product shall be stored at 20°–25° C.

(b) *Labeling.* In addition to the items required by other provisions of this part, the package label shall bear the following:

(1) Designation of blood group and type of the source blood.

(2) Instructions to use a filter in the administration equipment.

(3) Instructions to use the product within 2 hours of entering the container.

(4) A statement indicating the volume of the source plasma and the type of anticoagulant solution present in the source plasma from which the product was prepared.

(Sec. 216, 53 Stat. 639, as amended; 42 U.S.C. 216; sec. 331, 53 Stat. 762, as amended; 42 U.S.C. 232)

Dated: April 1, 1971.

ROBERT Q. MARSTON,

Director,

National Institutes of Health.

[FR Doc. 71-4977 Filed 4-3-71; 8:45 am]

DEPARTMENT OF TRANSPORTATION

Coast Guard

[33 CFR Part 117]

[CGFR 71-25]

ALBEMARLE AND CHESAPEAKE CANAL (AIWW), VA.

Drawbridge Operation

The Coast Guard is considering amending the regulations for the Route 168 bridge across the Albemarle and Chesapeake Canal at Great Bridge, Chesapeake, Va., by extending by 1½ hours the periods in the morning and evening when the draw may remain closed to vessels, with a provision for passing vessels at 7 a.m., 8 a.m., 5 p.m., and 6 p.m. All other regulations applicable to this bridge would remain unchanged. This amendment is proposed to help relieve vehicular traffic congestion during morning and evening rush hours.

Interested persons may participate in this proposed rule making by submitting written data, views, or arguments to the Commander, Fifth Coast Guard District, 610 Federal Building, 431 Crawford Street, Portsmouth, VA 23705. Each person submitting comments should include his name and address, identify the bridge, and give reasons for any recommended change in the proposal. Copies of all written communications received will be available for examination by interested persons at the office of the Commander, Fifth Coast Guard District.

The Commander, Fifth Coast Guard District, will forward any comments received before May 10, 1971, with his recommendations to the Chief, Office of Operations, who will take final action on this proposal. The proposed regulations may be changed in the light of comments received.

Accordingly, it is proposed that § 117.350 be amended by revising paragraph (a) to read as follows:

§ 117.350 Albemarle and Chesapeake Canal (AIWW), VA, U.S. Government bridge at Great Bridge.

(a) The draw may remain closed to pleasure craft from 6:30 a.m. to 9 a.m. and from 4 p.m. to 6:30 p.m., except the draw shall open at 7 a.m., 8 a.m., 5 p.m., and 6 p.m. to allow vessels to pass. The draw shall open on signal for commercial vessels, public vessels of the United States and vessels in distress.

(Sec. 5, 28 Stat. 362, as amended, sec. 6(g) (2), 80 Stat. 937; 33 U.S.C. 499, 49 U.S.C. 1655(g) (2); 46 CFR 1.46(c) (5) (35 F.R. 4959), 33 CFR 1.05-1(c) (4) (35 F.R. 15922))

Dated April 5, 1971.

R. E. HAMMOND,
Rear Admiral, U. S. Coast Guard,
Chief, Office of Operations.

[FR Doc.71-4986 Filed 4-8-71;8:49 am]

Federal Aviation Administration

[14 CFR Part 39]

[Docket No. 10982]

HAWKER SIDDELEY AVIATION, LTD., MODEL DH-125 AIRPLANE

Proposed Airworthiness Directive

The Federal Aviation Administration is considering amending Part 39 of the Federal Aviation Regulations by adding an airworthiness directive applicable to Hawker Siddeley Model DH-125 airplanes. It has been determined that a hazardous drift may occur in the Rotax voltage sensing unit due to collector-emitter leakage currents. Since this condition is likely to exist or develop in other airplanes of the same type design, the proposed airworthiness directive would require replacement of the transistor T.1 in the Rotax voltage sensing unit with a new transistor on Hawker Siddeley Model DH-125 airplanes.

Interested persons are invited to participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should identify the docket number and be submitted in duplicate to the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, DC 20590. All communications received on or before May 10, 1971, will be considered by the Administrator before taking action upon the proposed rule. The proposals contained in this notice may be changed in the light of comments received. All comments will be available, both before and after the closing date for comments, in the Rules Docket for examination by interested persons.

This amendment is proposed under the authority of sections 313(a), 601, and 603 of the Federal Aviation Act of 1958 (49 U.S.C. 1354(a), 1421, 1423) and of section 6(c) of the Department of Transportation Act (49 U.S.C. 1655(c)).

In consideration of the foregoing, it is proposed to amend § 39.13 of Part 39 of the Federal Aviation Regulations by adding the following new airworthiness directive:

HAWKER SIDDELEY AVIATION, LTD. Applies to model DH-125 airplanes.

To prevent a hazardous drift in the Rotax voltage sensing unit, within the next 200 hours' time in service after the effective date of this AD, unless already accomplished, incorporate Rotax Modification No. SP. 7172 by replacing the transistor T.1 in the Rotax Voltage Sensing Unit Type U.3624 or U.3624/1 with a new transistor in accordance with Hawker Siddeley Aviation, Ltd., 125 Series Aircraft Service Bulletin 24-124-(7355), dated July 9, 1970, or an FAA-approved equivalent.

Issued in Washington, D.C., on April 2, 1971.

JAMES F. RUDOLPH,
Director, Flight Standards Service.

[FR Doc.71-4969 Filed 4-8-71;8:48 am]

[14 CFR Part 71]

[Airspace Docket No. 71-CE-42]

FEDERAL AIRWAY SEGMENT

Proposed Alteration

The Federal Aviation Administration (FAA) is considering an amendment to Part 71 of the Federal Aviation Regulations that would alter VOR Federal airway No. 429 so as to bypass Milwaukee, Wis., and terminate at Oshkosh, Wis.

Interested persons may participate in the proposed rule making by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Director, Central Region, Attention: Chief, Air Traffic Division, Federal Aviation Administration, 601 East 12th Street, Kansas City, MO 64106. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. The proposal contained in this notice may be changed in the light of comments received.

An official docket will be available for examination by interested persons at the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, DC 20590. An informal docket also will be available for examination at the office of the Regional Air Traffic Division Chief.

At present, the final segment of V-429 is described via the intersection of the Naperville, Ill., VORTAC 340° T. (338° M) and Milwaukee, Wis., VORTAC 198° T (196° M) radials to Milwaukee.

If the airspace action proposed in this docket is adopted, the final segment of V-429 would be described via the intersection of the Naperville VORTAC 340° T (338° M) and Oshkosh VORTAC 187° T (185° M) radials to Oshkosh. V-429 would then pass approximately 13 miles west of the Milwaukee VORTAC.

The proposed realignment of V-429 is needed to provide a north/south bypass airway to and from Chicago to relieve an increasingly congested traffic situation at Milwaukee. It is estimated that this bypass route would take over one-third of the traffic that now flies over Milwaukee.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348(a)) and section 6(c) of the Department of Transportation Act (49 U.S.C. 1655(c)).

Issued in Washington, D.C., on April 1, 1971.

H. B. HILSTROM,
Chief, Airspace and Air
Traffic Rules Division.

[FR Doc.71-4971 Filed 4-8-71;8:48 am]

I 14 CFR Part 75 I

[Airspace Docket No. 71-WA-11]

AREA HIGH ROUTES**Proposed Designation**

The Federal Aviation Administration (FAA) is considering an amendment to Part 75 of the Federal Aviation Regulations that would designate area high routes in the south and southwestern United States.

Amendments to Parts 71 and 75 of the Federal Aviation Regulations were published in the FEDERAL REGISTER (35 F.R. 10653) which established regulatory bases for the designation of specific area high and low routes.

Interested persons are invited to participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, DC 20590. All communications received within 60 days after publication of this notice in the FEDERAL REGISTER will be considered by the Administrator before taking action on the proposed rule. The proposal contained in this notice may be changed in the light of comments received. All comments submitted will be available, both before and after the closing date for comments, in the Rules Docket for examination by interested persons.

An official docket will be available for examination by interested persons at the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, DC 20590.

The FAA proposes to amend Part 75 of the Federal Aviation Regulations by designating area high routes as follows:

J-950R HOUSTON, TEX., TO OKLAHOMA CITY, OKLA.

Humble, Tex., 053.2°M/12.3 NM, lat. 30°03' 21" N., long. 95°09'16" W.;
Greater Southwest, Tex., 111.6°M/41.5 NM, lat. 32°27'52" N., long. 96°20'14" W.;
Oklahoma City, Okla., 135.3°M/20.3 NM, lat. 35°10'02" N., long. 97°31'55" W.

J-949R OKLAHOMA CITY, OKLA., TO HOUSTON, TEX.

Oklahoma City, Okla., 171°M/10 NM, lat. 35°16'32" N., long. 97°46'21" W.;
Greater Southwest, Tex., VORTAC, lat. 32°49'10" N., long. 97°02'28" W.;
Humble, Tex., 290.4°M/25 NM, lat. 30°09'17" N., long. 95°48'07" W.

J-948R NEW ORLEANS, LA., TO OKLAHOMA CITY, OKLA.

New Orleans, La., 230.9°M/4.9 NM, lat. 29°-59'05" N., long. 90°15'04" W.;
New Orleans, La., 230.9°M/4.9 NM, lat. 29°-30'30'42" N., long. 90°47'09" W.;
Shreveport, La., 212.5°M/3.1 NM, lat. 32°43'-53" N., long. 93°50'55" W.;
Oklahoma City, Okla., 135.3°M/20.3 NM, lat. 35°10'02" N., long. 97°31'55" W.

This amendment is proposed under the authority of section 307(a) of the

Federal Aviation Act of 1958 (49 U.S.C. 1348(a)) and section 6(c) of the Department of Transportation Act (49 U.S.C. 1655(c)).

Issued in Washington, D.C., on April 1, 1971.

H. B. HELSTROM,
Chief, Airspace and Air
Traffic Rules Division.

[FR Doc. 71-4970 Filed 4-3-71; 8:43 am]

**National Highway Traffic Safety
Administration**

[49 CFR Part 571]

[Docket No. 71-7; Notice 1]

**CENTER OF GRAVITY FOR TRUCK
CARGO AND CAMPERS**

**Notice of Proposed Motor Vehicle
Safety Standard**

This notice proposes a new motor vehicle safety standard, whose purpose would be to reduce the adverse effects on the handling and braking of light trucks and certain multipurpose passenger vehicles that can result from their carrying relatively high and heavy loads, particularly camper bodies.

A light truck carrying a load that has a high center of gravity, a condition inherent in many camper bodies and readily occurring in other loads, may suffer substantial degradation of its braking and handling ability as evidenced by recent reports and articles concerning these vehicles. In addition, such cargoes may create a condition of perpetual overload and increase the possibility of structural failures in certain vehicle components.

There is presently a lack of useful information to guide consumers in matching camper bodies to pickup trucks. Moreover, camper brochures frequently contain weight values that neither include the weight of optional equipment such as showers, lavatories, or additional tanks, nor estimate the weight of passengers, clothing, and supplies. They do not, therefore, provide an indication of the weight of a fully loaded camper.

To remedy these problems, the standard would impose requirements on manufacturers of trucks, incomplete vehicles, and campers. The requirements for truck manufacturers would be that each manufacturer specify, both on a placard attached to the dashboard or glove compartment door and in the owner's manual, the recommended spatial limits for placement of the center of gravity of loads representing various percentages (50, 75, and 100 percent) of the truck's cargo-carrying capacity. The spatial limits recommended for placement of the center of gravity would be expressed as the vertical, longitudinal, and lateral distances from certain reference points on the truck. Vertical and longitudinal distances would be measured from the left rear axle shaft, and lateral distance from the outermost left-side surface of the rear axle shaft.

The standard would also require manufacturers of incomplete vehicles that are intended, when completed, to be trucks or multipurpose passenger vehicles having a gross vehicle weight rating of 10,000 pounds or less to furnish the subsequent manufacturer with the above information, in the document that would be required pursuant to the proposed Part 563, "Vehicles Manufactured in Two or More Stages," 35 F.R. 4639 (March 17, 1970). The purpose of this requirement is to provide the information with these vehicles that, when completed, will have either camper bodies or truck bodies mounted on them.

The proposed requirements for campers would require each camper manufacturer to determine, to specified tolerances, the gross camper weight and the center of gravity of the camper when loaded to gross camper weight. The information would be provided on a placard that would also contain a reference point from which the distance to the camper's center of gravity would be measured in longitudinal, vertical, and lateral directions. These measurements would be stated on the placard. The placard would be required to be located on the exterior surface of the left side of the camper, with the reference point at or as close as practicable to the side-view location of the camper's center of gravity. By ascertaining the location of the camper's center of gravity from the information provided, the camper owner will then, using the information provided by truck manufacturers, be able to match the camper to an appropriate truck. Conversely, owners of trucks will be able to choose campers suitable for their particular truck.

The standard would additionally require the camper manufacturer to reproduce the placard in the owner's manual furnished with the camper, to be accompanied with a sketch or diagram of the camper indicating the weight and method of placement of the recommended load for each camper storage compartment. The standard would further require the camper manufacturer to place a label in each camper storage compartment that specifies the recommended weight for that compartment as indicated in the above-mentioned sketch or diagram. These requirements would provide the camper owner with readily available instructions on the recommended loading conditions for his camper.

Proposed effective date: September 1, 1972.

In consideration of the above, it is proposed that § 571.21 of Part 571, Title 49, Code of Federal Regulations, be amended as set forth below. Interested persons are invited to submit comments on the proposal. Comments should refer to the docket number and be submitted to: Docket Section, National Highway Traffic Safety Administration, Room 4223, 400 Seventh Street SW., Washington, DC 20591. Ten copies are requested but not required. All comments received before the close of business on July 6, 1971, will be considered, and will be available

for examination both before and after the closing date. To the extent possible, comments filed after the closing date will be considered. However, the rule-making action may proceed at any time after that date, and comments received after the closing date and too late for consideration in regard to the action will be treated as suggestions for future rule making. The Administration will continue to file relevant material, as it becomes available, in the docket after the closing date, and it is recommended that interested persons continue to examine the docket for new materials.

This notice of proposed rule making is issued under the authority of sections 103, 112, and 119 of the National Traffic and Motor Vehicle Safety Act (15 U.S.C. secs. 1392, 1401, 1407), and the delegations of authority at 49 CFR 1.51 and 49 CFR 501.8.

Issued on April 1, 1971.

RODOLFO A. DIAZ,
*Acting Associate Administrator,
Motor Vehicle Programs.*

§ 571.21 Federal Motor Vehicle Safety Standards.

**MOTOR VEHICLE SAFETY STANDARD NO. ----
CENTER OF GRAVITY FOR TRUCK CARGO AND
CAMPER; TRUCKS AND CAMPER**

S1. Scope. This standard requires manufacturers of light trucks and certain incomplete vehicles to indicate the spatial limits within the cargo area in which the center of gravity for cargo loads should be located, and requires manufacturers of campers to specify the camper's weight and center of gravity when fully loaded.

S2. Purpose. The purpose of this standard is to provide information that can be used to reduce overloading and improper load distribution in light trucks and certain multipurpose passenger vehicles, to reduce accidents resulting from the adverse effects of these conditions on the handling and braking of these vehicles.

S3. Application. This standard applies to trucks with a GVWR of 10,000 pounds or less, to campers, and to incomplete vehicles intended for completion as trucks or multipurpose passenger vehicles with a GVWR of 10,000 pounds or less.

S4. Definitions.

"Camper" means a structure designed to be loaded onto or affixed to a completed motor vehicle or a chassis-cab to provide sleeping or office facilities.

"Center of gravity" means the single point at which the entire weight of one or more objects is assumed to be concentrated for the purpose of computing the moment of gravitational forces about any axis.

"Gross camper weight" means the loaded weight of a camper, including—

(a) The weight of all equipment included in the camper by the manufacturer;

(b) The weight of all fluid containers filled to capacity;

(c) The maximum recommended load for each storage compartment, including compartments for food, clothing, supplies, sporting equipment, and compartments used to transport other vehicles; and

(d) 150 pounds for each designated occupant sleeping position.

"Incomplete vehicle" means an assembly consisting, as a minimum, of frame and chassis structure, power train, steering system, suspension system, and braking system, to the extent that those systems are to be part of the completed vehicle, that requires further manufacturing operations, other than the addition of readily attachable components, such as mirrors or wheels or minor finishing operations such as painting, to become a completed vehicle.

S5. Requirements.

S5.1 Trucks.

S5.1.1 Placard. Each vehicle shall have a placard, permanently affixed to the inside of the glove compartment door or the rearward surface of the instrument panel, that contains the following information in the form illustrated in Figure 1:

(a) The name of the vehicle manufacturer;

(b) The weight in pounds of 50 percent, 75 percent, and 100 percent of the vehicle's cargo-carrying capacity as determined by its manufacturer;

(c) The manufacturer's recommended spatial limits for placement of the center of gravity of cargo of the weights specified in (b), expressed as distance ranges in the longitudinal and vertical directions from the centerline of the rear axle shaft, and in the lateral direction from the farthest outboard surface on the left end of the rear axle shaft.

(d) Identification of the reference points from which the measurements specified in (c) have been made.

S5.1.2 Owner's manual. Each vehicle manufacturer shall include in a manual furnished with the vehicle the following information:

(a) A reproduction of the placard required pursuant to S5.1.1; and

(b) A sketch or illustration of the truck visually depicting the spatial limits defined pursuant to S5.1.1(c), the location of the reference points specified in S5.1.1(c), and the directions and distance from the reference points specified on the placard.

S5.2 Incomplete vehicles. Each incomplete vehicle manufacturer shall, for each incomplete vehicle with which a document must be furnished pursuant to

§ 568.4 of this chapter, as proposed 35 F.R. 4639 (March 17, 1970), include in the document the information specified in S5.1.1 and S5.1.2.

S5.3 Campers.

S5.3.1 Placard. Each camper shall have a placard, permanently affixed in the location specified in S5.3.2, that contains the following information the manner illustrated in Figure 2:

(a) The name of the camper manufacturer;

(b) The gross camper weight of the camper, within 1 percent or 50 pounds, whichever is greater;

(c) A reference point, at the intersection of two intersecting straight lines each at least 1 inch long, one of which is horizontal and the other perpendicular to it; and

(d) The distance to the camper's center of gravity, within 1 inch, in longitudinal, lateral, and vertical directions from the reference point provided pursuant to (c), with the camper loaded to gross camper weight and the load distributed according to the location of storage compartments and occupant sleeping positions.

S5.3.2 Placard location.

S5.3.2.1 Except as provided in S5.3.2.2, the placard shall be affixed to the exterior surface of the camper's left side, so that the reference point provided pursuant to S5.3.1(c) coincides with the side-view location of the camper's center of gravity under the loading conditions of S5.3.1(d).

S5.3.2.2 If the placard location specified in S5.3.2.1 is on a glazing or other surface, such as a louver or vent, that would prevent the attachment of the placard, the placard shall be located on the exterior surface of the camper's left side as close as practicable to the specified location.

S5.3.3 Owner's manual. Each camper manufacturer shall provide, in the camper owner's manual or other document delivered with the camper—

(a) A reproduction of the placard required pursuant to S5.3.1;

(b) A description of the loading and storage conditions on which the figures for gross camper weight and center of gravity location are based, including the maximum recommended cargo weight for each storage compartment; and

(c) A sketch or drawing illustrating the location and recommended distribution of load for each cargo compartment.

S5.3.4 Compartment label. A label shall be permanently affixed to the interior of each cargo compartment of the camper, visible from the compartment exterior in the absence of a compartment door, or when any compartment door is open, that specifies the maximum recommended weight for a load placed in the compartment.

(TRUCK MANUFACTURER'S NAME)

MANUFACTURER'S RECOMMENDED LOCATION FOR TIEUP CARGO CENTER OF GRAVITY

This table indicates the manufacturer's recommended limits for location of the cargo center of gravity, at the indicated percentages of rated load.

	50% CAPACITY TIEUP CARGO	75% CAPACITY TIEUP CARGO	100% CAPACITY TIEUP CARGO
DIRECTION	DISTANCE RANGE	DISTANCE RANGE	DISTANCE RANGE
LONGITUDINAL (A)	— TO — IN.	— TO — IN.	— TO — IN.
LATERAL (B)	— TO — IN.	— TO — IN.	— TO — IN.
VERTICAL (A)	— TO — IN.	— TO — IN.	— TO — IN.

(A) MEASURE FROM THE CENTERLINE OF THE LEFT REAR AXLE SHAFT

(B) MEASURE FROM THE FARTHEST OUTWARD SURFACE OF THE LEFT END OF THE REAR AXLE SHAFT

FIGURE 1. LABEL FOR TRUCKS

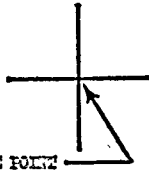
(CAMPER MANUFACTURER'S NAME)	
GROSS CAMPER WEIGHT _____ LBS.	
This table indicates the distances from the reference point indicated below to the center of gravity of this camper when fully loaded.	
DISTANCES TO CAMPER CENTER OF GRAVITY FROM REFERENCE POINT	
DIRECTION	DISTANCE
LONGITUDINAL	_____ in. (rearward or forward)
LATERAL	_____ in. (inboard)
VERTICAL	_____ in. (downward or upward)
	

FIGURE 2. LABEL FOR CAMPERS

[FR Doc.71-4899 Filed 4-2-71;8:45 am]

I 49 CFR Part 571 I

[Docket No. 1-5; Notice 7]

BRAKE HOSES AND BRAKE HOSE ASSEMBLIES

Proposed Motor Vehicle Safety Standard
Correction

In F.R. Doc. 71-4181 appearing at page 5855 in the issue of Tuesday, March 30, 1971, the following changes should be made in Motor Vehicle Safety Standard No. 106 in § 571.21:

1. The word "construction" in the heading for S5.1.3.7 should read "constriction".
2. The reference in the last line of S5.1.3.8 reading "(S71.10)" should read "(S7.1.10)".
3. The word "airbrakes" in the third line of S5.2.5 should read "airbrake".
4. The word "smoothbore" in the fifth line of S5.3.1 should appear as two words "smooth bore".
5. The word "construction" in the figure 2 heading under S7.1.1 should read "constriction".
6. Under S7.1.4 "Table IX" should read "Table VIII", and the heading in the table reading "1/16-in. and 1/4-in. hose"

should read "1/16-in. and 1/4-in. hose".

7. The figure "3 3/16" in the penultimate line of S7.1.8 should read "3 1/8".

8. The word "bridge" in the penultimate line of paragraph (d) in S7.1.11 should read "bridge".

9. The penultimate line in the first column of page 5863 should be deleted and the following substituted therefor: "S7.3.8 Bend test. Bend a specimen of".

10. The word "specimen" in the first line of paragraph (a) in S7.3.10 should read "specimen".

11. In the heading for S5.1.3.3 the word "Fatigue" should read "Fatigue".

FEDERAL HOME LOAN BANK BOARD

[12 CFR Parts 545, 556]

[No. 71-321]

FEDERAL SAVINGS AND LOAN SYSTEM

Eligibility Requirements for Branch Office Applications

MARCH 31, 1971.

Resolved that the Federal Home Loan Bank Board considers it advisable to amend Parts 545 and 556 of the Rules and

Regulations for the Federal Savings and Loan System (12 CFR Parts 545, 556) for the purpose of liberalizing the requirements which must be met for a Federal savings and loan association to be eligible to have a branch office application considered by the Board. Accordingly, the Federal Home Loan Bank Board proposes to amend said Parts 545 and 556, as follows:

1. Amend Part 545 by revising paragraph (b) of § 545.14 thereof to read as follows:

§ 545.14 Branch office.

(b) *Eligibility.* A Federal association shall be eligible to have an application for permission to establish a branch office considered and processed only if, at the date on which such application is filed with the Board:

(1) The association does not have on file with the Board more than one such application, excluding any application as to which more than 4 months have elapsed since the date of publication of notice thereof;

(2) More than 12 months have elapsed since the date of disapproval by the Board of an application to serve any substantial part of the same savings service area, as determined by the Supervisory Agent, but this requirement shall be applicable only if the association has filed two applications to serve any substantial part of such savings service area within the 12 months preceding such date of disapproval and both such applications have been disapproved by the Board;

(3) The sum of the applicant association's reserves and surplus is equal to at least 3 percent of its savings accounts;

(4) The association submits in support of its application evidence giving reasonable assurance, in the judgment of the Supervisory Agent, that the proposed branch office, if approved, will be opened within 12 months after the date of approval by the Board, or, if the proposed branch office is to be located in a shopping center having not less than 400,000 square feet of shopping space, within 24 months after the date of approval by the Board:

Provided, however, That the Board may, with respect to a particular application, determine to consider and process that application without regard to the eligibility requirements contained in subparagraph (1) of this paragraph.

2. Amend Part 556 by revising subparagraph (4) of paragraph (b) of § 556.5 thereof to read as follows:

§ 556.5 Establishment of Federal savings and loan associations and branch offices and mobile facilities of such associations.

(b) *Policy on approval of branch office and mobile facilities.* . . .

(4) (i) As a general policy under § 545.14(b) of this chapter, the Board will not consider or process any application by a Federal association for permission to establish a branch office unless the

PROPOSED RULE MAKING

applicant association meets all of the eligibility requirements contained in subparagraphs (1) through (4) of § 545.14(b) of this chapter. However, under the proviso to paragraph (b) of § 545.14 of this chapter, the Board may, in its discretion, permit the consideration and processing of particular branch applications even if the applicant association fails to meet the eligibility requirements contained in subparagraph (1) of § 545.14(b) of this chapter.

(ii) It is the intention of the Board to permit this special treatment in connection with applications for branches to serve low-income, inner-city areas which are inadequately served by existing savings and loan facilities. Applicant associations wishing such special treatment with respect to a particular application must furnish the Supervisory Agent with detailed information demonstrating that the application (or a prior branch application, if less than 4 months have expired from the date of publication of notice thereof) is for a branch office (a) to be located within an area characterized by substandard family incomes, chronically high unemployment, a high percentage of welfare recipients, and substandard housing, and (b) to fulfill the objectives of facilitating the granting of loans in such area, particularly for construction or rehabilitation of housing, stimulating thrift and providing financial guidance among low-income residents of such area, and providing opportunities for employment or job training for residents of such area. If the Supervisory Agent is satisfied that the above criteria for special treatment of the application have been met, he may determine that the association is eligible under § 545.14(g) of this chapter, and the application may be processed as provided therein.

(Sec. 5, 48 Stat. 132, as amended; 12 U.S.C. 1464, Reorg. Plan No. 3 of 1947, 12 F.R. 4981, 3 CFR, 1943-48 Comp., p. 1071)

Resolved further that interested persons are invited to submit written data, views, and arguments to the Office of the Secretary, Federal Home Loan Bank Board, 101 Indiana Avenue NW., Washington, DC 20552, by May 10, 1971, as to whether this proposal should be adopted, rejected, or modified. Written material submitted will be available for public inspection at the above address unless confidential treatment is requested or the material would not be made available to the public or otherwise disclosed under § 505.6 of the general regulations of the Federal Home Loan Bank Board (12 CFR 505.6).

By the Federal Home Loan Bank Board.

[SEAL]

JACK CARTER,
Secretary.

[FR Doc.71-4974 Filed 4-8-71; 8:48 am]

I 12 CFR Parts 582, 582b 1

[No. 71-522]

DISTRICT OF COLUMBIA SAVINGS
AND LOAN OFFICESEligibility Requirements for Branch
Office Applications

MARCH 31, 1971.

Resolved that the Federal Home Loan Bank Board considers it advisable to amend Parts 582 and 582b of the Regulations for District of Columbia Savings and Loan Offices (12 CFR Parts 582, 582b) for the purpose of liberalizing the requirements which must be met for a District of Columbia savings and loan association to be eligible to have a branch office application considered by the Board. Accordingly, the Federal Home Loan Bank Board proposes to amend said Parts 582 and 582b, as follows:

1. Amend Part 582 by revising paragraph (b) of § 582.1 thereof to read as follows:

§ 582.1 Branch offices.

(b) *Eligibility.* An association shall be eligible to have an application for permission to establish a branch office considered and processed only if, at the date on which such application is filed with the Board:

(1) The association does not have on file with the Board more than one such application, excluding any application as to which more than 4 months have elapsed since the date of publication of notice thereof;

(2) More than 12 months have elapsed since the date of disapproval by the Board of an application to serve any substantial part of the same savings service area, as determined by the Supervisory Agent, but this requirement shall be applicable only if the association has filed two applications to serve any substantial part of such savings service area within the 12 months preceding such date of disapproval and both such applications have been disapproved by the Board;

(3) The sum of the applicant association's reserves and surplus is equal to at least 3 percent of its savings accounts;

(4) The association submits in support of its application evidence giving reasonable assurance, in the judgment of the Supervisory Agent, that the proposed branch office, if approved, will be opened within 12 months after the date of approval by the Board, or, if the proposed branch office is to be located in a shopping center having not less than 400,000 square feet of shopping space, within 24 months after the date of approval by the Board:

Provided, however, That the Board may, with respect to a particular application, determine to consider and process that application without regard to the eligibility requirements contained in subparagraph (1) of this paragraph.

2. Amend Part 582b by revising § 582b.2 to read as follows:

§ 582b.2 Policy with respect to inner-city branch offices.

As a general policy under § 582.1(b) of this chapter, the Board will not consider or process any application by an association for permission to establish a branch office unless the applicant association meets all of the eligibility requirements contained in subparagraphs (1) through (4) of § 582.1(b) of this chapter. However, under the proviso to paragraph (b) of § 582.1 of this chapter, the Board may, in its discretion, permit the consideration and processing of particular branch applications even if the applicant association fails to meet the eligibility requirements contained in subparagraph (1) of § 582.1(b) of this chapter. It is the intention of the Board to permit this special treatment in connection with applications for branches to serve low-income, inner-city areas which are inadequately served by existing savings and loans facilities. Applicant associations wishing such special treatment with respect to a particular application must furnish the Supervisory Agent with detailed information demonstrating that the application (or a prior branch application, if less than 4 months have expired from the date of publication of notice thereof) is for a branch office (a) to be located within an area characterized by substandard family incomes, chronically high unemployment, a high percentage of welfare recipients, and substandard housing, and (b) to fulfill the objectives of facilitating the granting of loans in such area, particularly for construction or rehabilitation of housing, stimulating thrift and providing financial guidance among low-income residents of such area, and providing opportunities for employment or job training for residents of such area. If the Supervisory Agent is satisfied that the above criteria for special treatment of the application have been met, he may determine that the association is eligible under § 582.1(g) of this chapter, and the application may be processed as provided therein.

(Sec. 5, 48 Stat. 132, as amended; 12 U.S.C. 1464, Reorg. Plan No. 3 of 1947, 12 F.R. 4981, 3 CFR, 1943-48 Comp., p. 1071)

Resolved further that interested persons are invited to submit written data, views, and arguments to the Office of the Secretary, Federal Home Loan Bank Board, 101 Indiana Avenue NW., Washington, DC 20552, by May 10, 1971, as to whether this proposal should be adopted, rejected, or modified. Written material submitted will be available for public inspection at the above address unless confidential treatment is requested or the material would not be made available to the public or otherwise disclosed under § 505.6 of the general regulations of the Federal Home Loan Bank Board (12 CFR 505.6).

By the Federal Home Loan Bank Board.

[SEAL]

JACK CARTER,
Secretary.

[FR Doc.71-4975 Filed 4-8-71; 8:48 am]

Notices

DEPARTMENT OF THE TREASURY

Office of the Secretary

MICROANALYZERS FROM JAPAN

Notice of Discontinuance of Antidumping Investigation

APRIL 1, 1971.

On January 9, 1971, there was published in the FEDERAL REGISTER a "Notice of Intent to Discontinue Antidumping Investigation" of electron probe micro-analyzers manufactured by Hitachi, Ltd., Tokyo, Japan.

The statement of reasons for intending to discontinue this investigation was published in the above-mentioned notice, and interested parties were afforded until January 23, 1971, to make written submissions or requests for an opportunity to present views in connection with the intended action. No written submissions or requests having been received and for the reasons stated in the Notice of Intent to Discontinue the Antidumping Investigation, I hereby discontinue the antidumping investigation of electron probe microanalyzers manufactured by Hitachi, Ltd., Tokyo, Japan.

This "Notice of Discontinuance of Antidumping Investigation" is published pursuant to § 153.15(b) of the Customs Regulations (19 CFR 153.15(b)).

[SEAL] EUGENE T. ROSSIDES,
Assistant Secretary of the Treasury.

[FR Doc.71-5000 Filed 4-8-71;8:51 am]

PRECISION MINIATURE AND INSTRUMENT BALL BEARINGS FROM JAPAN

Notice of Discontinuance of Antidumping Investigation

APRIL 6, 1971.

On January 9, 1971, there was published in the FEDERAL REGISTER a "Notice of Intent to Discontinue Antidumping Investigation" of precision miniature and instrument ball bearings from Japan.

The statement of reasons for intending to discontinue this investigation was published in the above-mentioned notice, and interested parties were afforded until January 23, 1971, to make written submissions or requests for an opportunity to present views in connection with the intended action. No written submissions or requests having been received and for the reasons stated in the Notice of Intent to Discontinue Antidumping Investigation, I hereby discontinue the antidumping investigation of precision miniature and instrument ball bearings from Japan.

This "Notice of Discontinuance of Antidumping Investigation" is published

pursuant to § 153.15(b) of the Customs Regulations (19 CFR 153.15(b)).

[SEAL] EUGENE T. ROSSIDES,
Assistant Secretary of the Treasury.

[FR Doc.71-4998 Filed 4-8-71;8:51 am]

SHEET GLASS FROM BELGIUM

Determination of Sales at Not Less Than Fair Value.

APRIL 6, 1971.

On January 8, 1971, there was published in the FEDERAL REGISTER a "Notice of Tentative Negative Determination" that sheet glass from Belgium is not being, nor likely to be, sold at less than fair value within the meaning of section 201(a) of the Antidumping Act, 1921, as amended (19 U.S.C. 160(a)) (referred to in this notice as the "Act").

The statement of reasons for the tentative determination was published in the above-mentioned notice and interested parties were afforded an opportunity to make written submissions and requests to present oral views in connection with the tentative determination.

Presentations were made by the attorneys for both the complainant and the Belgian manufacturer. Upon review of these presentations and for the reasons stated in the tentative determination, I hereby determine that sheet glass from Belgium is not being, nor likely to be, sold at less than fair value (section 201(a) of the Act; 19 U.S.C. 160(a)).

This determination is published pursuant to section 201(c) of the Act (19 U.S.C. 160(c)) and § 153.33(c), Customs Regulations (19 CFR 153.33(c)).

[SEAL] EUGENE T. ROSSIDES,
Assistant Secretary of the Treasury.

[FR Doc.71-4999 Filed 4-8-71;8:51 am]

DEPARTMENT OF AGRICULTURE

Packers and Stockyards
Administration

HAMILTON STOCKYARDS, INC., ET AL.

Proposed Posting of Stockyards

The Chief, Registrations, Bonds, and Reports Branch, Packers and Stockyards Administration, U.S. Department of Agriculture, has information that the livestock markets named below are stockyards as defined in section 302 of the Packers and Stockyards Act, 1921, as amended (7 U.S.C. 202), and should be made subject to the provisions of the Act.

Hamilton Stockyards, Inc., Hamilton, Ala.
Middlesex Livestock Auction, Middlefield, Conn.

Tri-State Horse, Ponies and Mule Sale Co.,
Bude, Miss.
Cleveland Livestock Auction Co., Inc., Cleve-
land, Tenn.
Wisconsin Feeder Pig Marketing, Cooperative,
Lancaster, Wis.

Notice is hereby given, therefore, that the said Chief, pursuant to authority delegated under the Packers and Stockyards Act, 1921, as amended (7 U.S.C. 181 et seq.), proposes to issue a rule designating the stockyards named above as posted stockyards subject to the provisions of the Act as provided in section 302 thereof.

Any person who wishes to submit written data, views, or arguments concerning the proposed rule, may do so by filing them with the Chief, Registrations, Bonds, and Reports Branch, Packers and Stockyards Administration, U.S. Department of Agriculture, Washington, D.C. 20250, within 15 days after publication in the FEDERAL REGISTER.

All written submissions made pursuant to this notice shall be made available for public inspection at such times and places in a manner convenient to the public business (7 U.S.C. 127(b)).

Done at Washington, D.C., this 5th day of April 1971.

G. H. HOPPER,
Chief, Registrations, Bonds, and
Reports Branch, Livestock
Marketing Division.

[FR Doc.71-4994 Filed 4-8-71;8:50 am]

HOPE LIVESTOCK COMMISSION CO. ET AL.

Deposting of Stockyards

It has been ascertained, and notice is hereby given, that the livestock markets named herein, originally posted on the respective dates specified below as being subject to the Packers and Stockyards Act, 1921, as amended (7 U.S.C. 181 et seq.), no longer come within the definition of a stockyard under said Act and are, therefore, no longer subject to the provisions of the Act.

Name, location of stockyard, and date
of posting

Hope Livestock Commission Co., Hope, Ark.,
Dec. 18, 1933.
Wray Livestock Commission Company, Wray,
Colo., Mar. 5, 1937.
Middlesex Livestock Auction, Middlefield,
Conn., July 6, 1934.
Tama Livestock Auction Co., Tama, Iowa,
May 29, 1939.
Meade Livestock Commission Company,
Meade, Kans., Apr. 12, 1950.
Kennett Auction Co., Kennett Square, Pa.,
Jan. 23, 1960.

Notice or other public procedure has not preceded promulgation of the foregoing rule since it is found that the giving of such notice would prevent the

due and timely administration of the Packers and Stockyards Act and would, therefore, be impracticable and contrary to the public interest. There is no legal warrant or justification for not deposing promptly a stockyard which is no longer within the definition of that term contained in the Act.

The foregoing is in the nature of a rule granting an exemption or relieving a restriction and, therefore, may be made effective in less than 30 days after publication in the FEDERAL REGISTER. This notice shall become effective upon publication in the FEDERAL REGISTER (4-9-71).

(42 Stat. 159, as amended and supplemented; 7 U.S.C. 181 et seq.)

Done at Washington, D.C., this 5th day of April 1971.

G. H. HOPPER,
Chief, Registrations, Bonds, and
Reports Branch, Livestock
Marketing Division.

[FR Doc.71-4995 Filed 4-8-71;8:50 am]

DEPARTMENT OF COMMERCE

Office of the Secretary

[Dept. Organization Order 40-7]

OFFICE OF PUBLIC AFFAIRS FOR DOMESTIC AND INTERNATIONAL BUSINESS

Organization and Functions; Revocation

The Secretary of Commerce abolished the Office of Public Affairs for Domestic and International Business, effective March 17, 1971. This action rescinds Department Organization Order 40-7 of April 21, 1970 (35 F.R. 7027 of May 2, 1970).

Dated: April 5, 1971.

LARRY A. JOBE,
Assistant Secretary
for Administration.

[FR Doc.71-4941 Filed 4-8-71;8:45 am]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration DOW CHEMICAL CO.

Notice of Filing of Petition for Food Additive Mineral Oil

Pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409 (b) (5), 72 Stat. 1786; 21 U.S.C. 348(b) (5)), notice is given that a petition (MF-3370V) has been filed by The Dow Chemical Co., Post Office Box 1706, Midland, Mich. 48640, proposing that the food additive regulations (21 CFR Part 121) be amended to provide for the safe use of

mineral oil as a diluent carrier in the manufacturing process of feed grade biuret.

Dated: March 31, 1971.

R. E. DUGGAN,
Acting Associate Commissioner
for Compliance.

[FR Doc.71-4949 Filed 4-8-71;8:46 am]

UNION CARBIDE CORP.

Notice of Filing of Petition for Food Additives

Pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409 (b) (5), 72 Stat. 1786; 21 U.S.C. 348(b) (5)), notice is given that a petition (FAP 1B2648) has been filed by Union Carbide Corp., Chemicals and Plastics, River Road, Bound Brook, N.J. 08805, proposing that § 121.2514 *Resinous and polymeric coatings* (21 CFR 121.2514) be amended to provide for the safe use of vinyl chloride-vinyl acetate-glycidyl methacrylate copolymers as components of resinous and polymeric coatings intended to contact food.

Dated: April 2, 1971.

VIRGIL O. WODICKA,
Director, Bureau of Foods.

[FR Doc.71-4950 Filed 4-8-71;8:46 am]

[DESI 4286]

CERTAIN INSULIN PREPARATIONS Drugs for Human Use; Drug Efficacy Study Implementation

The Food and Drug Administration has evaluated reports received from the National Academy of Sciences-National Research Council, Drug Efficacy Study Group, on the following drugs:

I. LONGER-ACTING INSULINS

1. Semilente Iletin (prompt insulin zinc suspension), Eli Lilly and Co., Post Office Box 618, Indianapolis, Indiana 46206 (NDA 10-967).

2. Ultralente Iletin (extended insulin zinc suspension), Eli Lilly and Co. (NDA 10-966).

3. Lente Iletin, Pork Lente Iletin, and Special Lente Iletin (insulin zinc suspension), Eli Lilly and Co. (NDA 9-300).

4. NPH Iletin, Pork NPH Iletin, and Special NPH Iletin (isophane insulin suspension), Eli Lilly and Co. (NDA 7-514) (two reports).

5. NPH Insulin (isophane insulin suspension), E. R. Squibb and Sons, Inc., Georges Road, New Brunswick, N.J. 08903 (NDA 7-678).

6. Globin Insulin with Zinc (globin zinc insulin injection), Burroughs Wellcome and Company, 1 Scarsdale Road, Tuckahoe, New York 10707 (NDA 4-286).

II. HIGH POTENCY INSULIN

Regular (Concentrated) Iletin and Pork (Concentrated) Iletin (insulin injection), Eli Lilly and Co. (NDA 8-256).

The Food and Drug Administration concludes that: (1) The longer-acting insulins listed above are effective for the treatment of diabetes mellitus to regulate hyperglycemia after the patient has been stabilized on regular insulin and it is desirable to shift to a longer-acting insulin, and (2) high-potency insulin injection is effective for the treatment of diabetes mellitus to enable larger doses to be administered subcutaneously in a reasonable volume to patients with sustained, rather than temporary (such as with ketosis or infection), resistance to insulin and whose daily requirement is more than 200 units. The high-potency drug is also effective for insulin shock therapy.

Such preparations are considered new drugs for which approved new-drug applications are required. They are also subject to the insulin certification procedures pursuant to section 506 of the Federal Food, Drug, and Cosmetic Act.

Requests for certification of such drugs should include labeling which is in accord with (1) this reevaluation of the drugs; (2) all requirements of the Act and regulations, including § 164.6 (21 CFR 164.6) which sets forth specific labeling requirements for insulin-containing drugs; and (3) the Academy's comments (where applicable). The labeling for each kind of insulin should include information indicating the time of onset of action, peak of activity, and duration of effect.

A copy of the appropriate report has been furnished to each firm referred to above. Any other interested person may obtain a copy by request to the office named below.

Communications forwarded in response to this announcement should be identified with the reference number DESI 4286, directed to the attention of the following appropriate office, and addressed (unless otherwise specified) to the Food and Drug Administration, 5600 Fishers Lane, Rockville, Md. 20852:

Supplements (Identify with NDA number):
Office of Scientific Evaluation (BD-100),
Bureau of Drugs.

Requests for NAS-NRC report: Press Relations Office (CE-200), Food and Drug Administration, 200 O Street SW., Washington, D.C. 20204.

All other communications regarding this announcement: Drug Efficacy Study Implementation Project Office (BD-5), Bureau of Drugs.

This notice is issued pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (secs. 502, 503, 506, 52 Stat. 1050-53, as amended, 55 Stat. 851; 21 U.S.C. 352, 355, 356) and under authority granted to the Commissioner of Food and Drugs (21 CFR 2.120).

Dated: March 22, 1971.

SAM D. FINE,
Associate Commissioner
for Compliance.

[FR Doc.71-4951 Filed 4-8-71;8:46 am]

[DESI 5897; Docket No. FDC-D-265; NDA 5-897, etc.]

FOLIC ACID PREPARATIONS, ORAL AND PARENTERAL FOR THERAPEUTIC USE

Drugs for Human Use; Drug Efficacy Study Implementation

The Food and Drug Administration has evaluated reports received from the National Academy of Sciences-National Research Council, Drug Efficacy Study Group, on the following folic acid preparations:

1. a. Folvite Elixir; 5 mg. folic acid per 5 cc.;

b. Folvite Tablets; 5 mg. and 20 mg. folic acid per tablet; and

c. Folvite Parenteral Solution; sodium folate equivalent to 15 mg. folic acid per cc.; marketed by Lederle Laboratories, Pearl River, New York 10965 (NDA 5-897).

2. Folic Acid Tablets; 5 mg. per tablet; marketed by Eli Lilly and Co., Box 618, Indianapolis, Indiana 46206 (NDA 6-135).

3. Folic Acid Injection; 15 mg. folic acid, as the sodium salt, per cc.; marketed by S. F. Durst and Co., Inc., 5317 North Third Street, Philadelphia, Pennsylvania 19120 (NDA 6-338).

In addition to the above products, folic acid preparations for therapeutic use are marketed by other firms. A partial list of other suppliers of folic acid preparations limited to prescription dispensing, as indicated in readily available reference sources, is as follows:

ABA Pharmaceutical Co., Division of Bergher Distributing Co.
American Pharmaceutical Co.
American Drug Products.
American Quinine Co.
Approved Pharmaceutical Corp.
Arcum Pharmaceutical Corp.
Associated Labs., Inc.
Barre Drug Co., Inc., The.
Barry-Martin Pharmaceuticals, Inc.
Bell Pharmacal Co.
Carroll Chemical Co., The.
Columbia Medical Co.
Consolidated Midland Corp., CMC Research Division.
Corvitt Pharmaceuticals.
Daniels, Robert and Co., Inc.
DuMont Pharmacal Co.
Evron Pharmaceutical Co., Inc.
Faraday Laboratories, Inc.
Gold Leaf Pharmacal Co., Inc.
Gotham Pharmaceutical Co., Inc.
Halsey Drug Co., Inc.
Harvey Labs., Inc.
Jan Labs.
Kirkman Labs., Inc.
Lannett Co., Inc.
Lit Drug Co.
Lustgarten Laboratories, Inc.
Mifflin, McCambridge Co., Inc.
Penhurst Pharmacal Co.
Pharmex, Inc.
Preston Franklin Pharmacal Co.
Richlyn Labs.
Robinson Laboratory, Inc.
Spencer-Mead, Inc.
Stanlabs, Inc.
Supreme Pharmaceutical Co., Inc.
Thompson, Wm. T., Co.
Towne, Paulson and Co., Inc.
Vitamin Research Corp.
Vita-Fore Products Co.

West-Ward, Inc.
Williams Chemical Co.
Winsale Drug Co.

The drugs are regarded as new drugs (21 U.S.C. 321(p)). Supplemental new-drug applications are required to revise the labeling in and to update previously approved applications providing for such drugs. A new-drug application is required from any person marketing such drugs without approval.

The Food and Drug Administration is prepared to approve new-drug applications and supplements to previously approved new-drug applications under conditions described in this announcement.

A. Effectiveness classification. The Food and Drug Administration has considered the Academy reports, as well as other available evidence, and concludes that:

1. Folic acid is effective for the treatment of megaloblastic anemias of tropical and nontropical sprue, nutritional origin, pregnancy, infancy, and childhood.

2. There is a lack of substantial evidence that folic acid is effective for the following labeled indications: "macrocytic anemias associated with pellagra and similar deficiency states" and such vague, unspecific conditions as "macrocytic anemia of gastrointestinal origin" and "megaloblastic anemias other than pernicious anemia."

The Food and Drug Administration also concludes that there is no evidence that doses of folic acid greater than 1 mg. daily have greater efficacy than do those of 1 mg. Further, the usual therapeutic dose, oral or parenteral, should be 0.25 mg. to 1.0 mg. daily, and the maintenance dose should ordinarily be 0.1 to 0.25 mg. daily. Administration of higher doses greatly increases the possibility of masking vitamin B-12 deficiencies and the insidious development of or precipitation of neurological manifestations and/or lesions.

Preparations supplying no more than 0.1 mg. folic acid daily continue to be regarded as dietary supplements (21 CFR 3.42) and may be prescribed when a maintenance dose of 0.1 mg. a day is indicated.

B. Form of drug. Folic acid preparations are in (1) tablet form suitable for oral administration and contain no less than 0.15 mg. and no more than 1.0 mg. folic acid per tablet or (2) solution form suitable for parenteral administration in the dosages recommended in the labeling guidelines below.

C. Labeling conditions. 1. The label bears the statement "Caution: Federal law prohibits dispensing without prescription."

2. The drug is labeled to comply with all requirements of the Act and regulations promulgated thereunder, and those parts of its labeling indicated below are substantially as follows: (Optional additional information, applicable to the drug, may be proposed under other appropriate paragraph headings and should follow the information set forth below.)

FOLIC ACID

DESCRIPTION

(To be supplied by the manufacturer. This is to be confined to an appropriate description of the physical and chemical properties of the drug, and the formulation.)

ACTIONS

(To be supplied by the manufacturer. This is to be confined to an appropriate statement of the demonstrated pharmacologic/physiologic actions of the active ingredients of the drug in humans. When the mode of action has not been determined, this should be clearly indicated.)

INDICATIONS

Folic acid is effective in the treatment of megaloblastic anemias due to a deficiency of folic acid as may be seen in tropical or nontropical sprue, in anemias of nutritional origin, pregnancy, infancy, or childhood.

WARNINGS

Folic acid alone is improper therapy in the treatment of pernicious anemia and other megaloblastic anemias where vitamin B₁₂ is deficient.

PRECAUTIONS

Folic acid especially in doses above 1.0 mg. daily may obscure pernicious anemia, in that hematologic remission may occur while neurological manifestations remain progressive.

ADVERSE REACTIONS

Allergic sensitization has been reported following both oral and parenteral administration of folic acid.

DOSEAGE AND ADMINISTRATION

Oral administration: Folic acid is well absorbed and may be administered orally with satisfactory results except in severe instances of intestinal malabsorption.

Parental administration: Intramuscular, intravenous, and subcutaneous routes may be used if the disease is exceptionally severe, or if gastrointestinal absorption may be, or is known to be, impaired.

Usual therapeutic dosage: In adults: 0.25 mg. to 1.0 mg. daily. In children (regardless of age): 0.25 to 1.0 mg. daily. Resistant cases may require larger doses.

Maintenance dosage: When clinical symptoms have subsided and the blood picture has become normal, a maintenance dose of 0.1 mg. to 0.25 mg. daily should be used, but never less than 0.1 mg. per day. Patients should be kept under close supervision and adjustment of the maintenance dose made if relapse appears imminent.

In the presence of alcoholism, pregnancy, hemolytic anemia, anticonvulsant therapy, or chronic infection, the maintenance dose should be at least doubled.

D. Previously approved applications.

1. Each holder of a "deemed approved" new-drug application (i.e., an application which became effective on the basis of safety prior to October 10, 1962) for such drug is requested to seek approval of the claims of effectiveness and bring the application into conformance by submitting supplements containing:

a. Revised labeling as needed to conform to the labeling conditions described herein for the drug, and complete current container labeling, unless recently submitted.

b. Updating information as needed to provide for an oral dosage form containing no less than 0.15 mg. and no more than 1.0 mg. folic acid per tablet or a

parenteral dosage form containing an amount appropriate for administration as described herein, and to make the application current in regard to items 6 (components), 7 (composition), and 8 (methods, facilities, and controls) of the new-drug application form FD-356H to the extent described for abbreviated new-drug applications, § 130.4(f), published in the FEDERAL REGISTER April 24, 1970 (35 F.R. 6574). (One supplement may contain all the information described in this paragraph.)

2. Such supplements should be submitted within the following time periods after the date of publication of this notice in the FEDERAL REGISTER:

a. 60 days for revised labeling; or, for those products which must be reformulated, 180 days for revised labeling fully in accord with this announcement, provided claims for which substantial evidence of effectiveness is lacking are deleted within 60 days. The supplements should be submitted under the provisions of § 130.9 (d) and (e) of the new-drug regulations (21 CFR 130.9) which permit certain changes to be put into effect at the earliest possible time.

b. 180 days for updating information.

3. Marketing of the drug may continue until the supplemental applications submitted in accord with the preceding subparagraphs 1 and 2 are acted upon, provided that the labeling of the preparation shipped within the jurisdiction of the Act is in accord with the labeling conditions described in this announcement within the time periods described in subparagraph 2a.

E. *New applications.* 1. Any person who distributes or intends to distribute such drug which is intended for the conditions of use for which it has been shown to be effective, as described under A1 above, should submit an abbreviated new-drug application meeting the conditions specified in § 130.4(f) (1) and (2), published in the FEDERAL REGISTER April 24, 1970 (35 F.R. 6574). Such applications should include proposed labeling which is in accord with the labeling conditions described herein.

2. Distribution of any such preparation currently on the market without an approved new-drug application may be continued provided that:

a. Within 60 days from the date of publication of this announcement in the FEDERAL REGISTER, the labeling of such preparation shipped within the jurisdiction of the Act is in accord with the labeling conditions described herein, except that if the preparation must be reformulated, 180 days will be allowed for the dosage recommendations to be in accord with this announcement.

b. The manufacturer, packer, or distributor of such drug submits, within 180 days from the date of this publication, a new-drug application to the Food and Drug Administration.

c. The applicant submits within a reasonable time additional information that may be required for the approval of the application as specified in a written communication from the Food and Drug Administration.

d. The application has not been ruled incomplete or unapprovable.

F. *Opportunity for a hearing.* 1. The Commissioner of Food and Drugs proposes to issue an order under section 505(e) of the Federal Food, Drug, and Cosmetic Act withdrawing approval of all new-drug applications and all amendments and supplements thereto providing for the indications for which substantial evidence of effectiveness is lacking as described in paragraph A2 of this announcement. An order withdrawing approval of the applications will not issue if such applications are supplemented, in accord with this notice, to delete such indications. Promulgation of the proposed order would cause any such drug for human use offered for the indications for which substantial evidence of effectiveness is lacking, to be a new drug for which an approved new-drug application is not in effect. Any such drug then on the market would be subject to regulatory proceedings.

2. In accordance with the provisions of section 505 of the Act (21 U.S.C. 355) and the regulations promulgated thereunder (21 CFR Part 130), the Commissioner will give the holders of any such applications, and any interested person who would be adversely affected by such an order, an opportunity for a hearing to show why such indications should not be deleted from labeling. A request for a hearing must be filed within 30 days after the date of publication of this notice in the FEDERAL REGISTER. A request for a hearing may not rest upon mere allegations or denials, but must set forth specific facts showing that a genuine and substantial issue of fact requires a hearing, together with a well-organized and full-factual analysis of the clinical and other investigational data the objector is prepared to prove in a hearing. Any data submitted in response to this notice must be previously unsubmitted and include data from adequate and well-controlled clinical investigations (identified for ready review) as described in § 130.12(a) (5) of the regulations published in the FEDERAL REGISTER of May 8, 1970 (35 F.R. 7250). Carefully conducted and documented clinical studies obtained under uncontrolled or partially controlled situations are not acceptable as a sole basis for approval of claims of effectiveness, but such studies may be considered on their merits for corroborative support of efficacy and evidence of safety. If a hearing is requested and justified by the response to this notice, the issues will be defined, a hearing examiner will be named, and he shall issue a written notice of the time and place at which the hearing will commence.

G. *Unapproved use or form of drug.* 1. If the article is labeled or advertised for use in any condition other than those provided for in this announcement, it may be regarded as an unapproved new drug subject to regulatory proceedings until such recommended use is approved in a new-drug application, or is otherwise in accord with this announcement.

2. If the article is proposed for marketing in another form or for use other than

the use provided for in this announcement, appropriate additional information as described in § 130.4 or § 130.9 of the regulations (21 CFR 130.4, 130.9) may be required, including results of animal and clinical tests intended to show whether the drug is safe and effective.

Representatives of the Administration are willing to meet with any interested person who desires to have a conference concerning proposed changes in the labeling set forth herein. Requests for such meetings should be made to the Office of Scientific Evaluation at the address given below, within 30 days after the publication of this notice in the FEDERAL REGISTER.

A copy of the NAS-NRC report has been furnished to each firm referred to above. Any other interested person may obtain a copy by request to the appropriate office named below.

Communications forwarded in response to this announcement should be identified with the reference number DESI 5897, directed to the attention of the following appropriate office, and addressed (unless otherwise specified) to the Food and Drug Administration, 5600 Fishers Lane, Rockville, Maryland 20852:

Supplements (Identify with NDA number):
Office of Scientific Evaluation (BD-100),
Bureau of Drugs.

Original abbreviated new-drug applications (Identify as such): Drug Efficacy Study Implementation Project Office (BD-5), Bureau of Drugs.

Request for Hearing (Identify with Docket number): Hearing Clerk, Office of General Counsel (GC-1), Room 6-62, Parklawn. All other communications regarding this announcement: Drug Efficacy Study Implementation Project Office (BD-5), Bureau of Drugs.

Requests for NAS-NRC report: Press Relations Office (CE-200), 200 C Street SW., Washington, D.C. 20204.

This notice is issued pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (secs. 502, 505, 52 Stat. 1050-53, as amended; 21 U.S.C. 352, 355) and under authority delegated to the Commissioner of Food and Drugs (21 CFR 2.120).

Dated: March 19, 1971.

SAM D. FINE,
Associate Commissioner
for Compliance.

[FR Doc.71-4952 Filed 4-8-71; 8:46 am]

[DESI 10423]

LEVALLORPHAN TARTRATE INJECTION

Drugs for Human Use; Drug Efficacy Study Implementation

The Food and Drug Administration has evaluated a report received from the National Academy of Sciences-National Research Council, Drug Efficacy Study Group, on the following drug for intravenous use:

Lorfan Injection, containing levallorphan tartrate; Roche Laboratories, Division of Hoffman-LaRoche, Inc., 340 Kingsland Street, Nutley, New Jersey 07110 (NDA 10-423).

Such drugs are regarded as new drugs (21 U.S.C. 321(p)). Supplemental new-drug applications are required to revise the labeling in and to update previously approved applications providing for such drugs. A new-drug application is required from any person marketing such drug without approval.

A. Effectiveness classification. The Food and Drug Administration has considered the Academy's report, as well as other available evidence, and concludes that levallorphan injection is:

1. Effective for use in the treatment of narcotic-induced respiratory depression.
2. Probably effective for use in the treatment of narcotic overdosage.
3. Possibly effective for use in the prevention of narcotic-induced respiratory depression.

B. Conditions for approval and marketing. The Food and Drug Administration is prepared to approve abbreviated new-drug applications and abbreviated supplements to previously approved new-drug applications under conditions described herein.

1. **Form of drug.** The drug is a sterile aqueous solution suitable for subcutaneous, intramuscular, or intravenous administration.

2. **Labeling conditions.** a. The label bears the statement "Caution: Federal law prohibits dispensing without prescription."

b. The drug is labeled to comply with all requirements of the Act and regulations. The labeling bears adequate information for safe and effective use of the drug and is in accord with the guidelines for uniform labeling published in the FEDERAL REGISTER of February 6, 1970. The "Indications" section is as follows:

INDICATIONS

For use in the treatment of significant narcotic induced respiratory depression and in the treatment of narcotic overdosage.

(The possibly effective indication may also be included for 6 months.)

3. **Marketing status.** Marketing of such drugs may be continued under the conditions described in the notice entitled "Conditions for Marketing New Drugs Evaluated in Drug Efficacy Study" published in the FEDERAL REGISTER July 14, 1970 (35 F.R. 11273), as follows:

a. For holders of "deemed approved" new drug applications (i.e., an application which became effective on the basis of safety prior to Oct. 10, 1962), the submission of a supplement for revised labeling and an abbreviated supplement for updating information as described in paragraphs (a)(1)(i) and (iii) of the notice of July 14, 1970.

b. For any person who does not hold an approved or effective new-drug application, the submission of an abbreviated new-drug application as described in paragraph (a)(3)(i) of that notice.

c. For any distributor of the drug, the use of labeling in accord with this announcement for any such drug shipped within the jurisdiction of the Act as described in paragraph (b) of that notice.

d. For indications for which the drug

has been classified as probably effective (included in the "Indications" section above) and possibly effective (not included in the "Indications" section above), continued use as described in paragraphs (c), (d), (e), and (f) of that notice.

A copy of the Academy's report has been furnished to the firm referred to above. Any other interested person may obtain a copy by request to the Food and Drug Administration, Press Relations Office (CE-200), 200 C Street SW., Washington, D.C. 20204.

Communications forwarded in response to this announcement should be identified with the reference number DESI 10423, directed to the attention of the appropriate office listed below, and addressed to the Food and Drug Administration, 5600 Fishers Lane, Rockville, Maryland 20852:

Supplements (Identify with NDA number):
Office of Scientific Evaluation (ED-100),
Bureau of Drugs.

Original abbreviated new-drug applications (Identify as such): Drug Efficacy Study Implementation Project Office (BD-5),
Bureau of Drugs.

All other communications regarding this announcement: Drug Efficacy Study Implementation Project Office (BD-5), Bureau of Drugs.

This notice is issued pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (secs. 502, 505, 52 Stat. 1050-53 as amended; 21 U.S.C. 352, 355) and under authority delegated to the Commissioner of Food and Drugs (21 CFR 2.120).

Dated: March 22, 1971.

SAM D. FINE,
Associate Commissioner
for Compliance.

[FR Doc.71-4953 Filed 4-8-71;8:40 am]

DEPARTMENT OF TRANSPORTATION

Coast Guard
[CGFR 70-142]

STANDARD OIL COMPANY OF CALIFORNIA

Notice of Registration of House Flag and Funnel Mark

1. The Commandant, U.S. Coast Guard, in accordance with the provisions of 46 CFR 67.87-5, issued under the authority of the Act of May 20, 1908, as amended (46 U.S.C. 49), has registered the house flag and funnel mark of the Standard Oil Company of California as described below:

(a) House flag: The house flag is of white background and is rectangular in shape. The hoist is 4 feet and the fly 6 feet. Superimposed and centered on the white field is a design with the word "Chevron," in black letters, across the

top and two chevrons, pointing downward, directly below. The upper chevron is blue, the lower red. Proportionate dimensions (the hoist of 4 feet being equal in proportion to the figure 1.0) are: Hoist, 1.0; fly, 1.5; distance from top of word "Chevron" to tip of lower chevron (total vertical measurement of design), 0.75; height of lettering in word "Chevron," 0.14; width of each stripe in chevron, 0.21; and length of word "Chevron" and width of chevrons (total horizontal measurement of design), 0.625.

(b) Funnel mark: The funnel is white with a black band around the top 0.11 times the height of the funnel. The mark consists of the word "Chevron," in black, across the top and two chevrons, pointing downward, directly below. The upper chevron is blue, the lower is red. The length of the word "Chevron" and the width of the chevrons are the same. The width of the mark is 0.5 times the width of the funnel. The height of the mark is 1.2 times the width of the mark. Thickness of chevron stripes is 0.34 times the width of the mark. Height of tallest letter in word "Chevron" is 0.23 times the width of the mark. Thickness of letters is 0.05 times the width of the mark. The angle of the chevrons is 140°. The mark is positioned with the tip of the lower chevron at approximately half the height of the white portion of the funnel.

(c) A colored scale replica drawing of the house flag and funnel mark is on file with the Office of the Federal Register, National Archives and Records Service.

2. The registration of the house flag and funnel mark of the Standard Oil Company of California described in Treasury Decision 54516 dated January 14, 1956, is hereby canceled.

Dated: April 1, 1971.

C. R. BEIDER,
Admiral, U.S. Coast Guard,
Commandant.

[FR Doc.71-4967 Filed 4-8-71;8:50 am]

Federal Aviation Administration AREA OFFICES AT FAIRBANKS, JUNEAU, NOME, AND KING SAL- MON, ALASKA

Notice of Closing

Notice is hereby given that on or about April 2, 1971, the Area Offices at Fairbanks, Juneau, Nome, and King Salmon, Alaska, will be closed. Services to the public formerly performed by these offices will be coordinated by an Area Coordinator at each of these locations. This information will be reflected in the FAA Organization Statement the next time it is reissued.

(Sec. 313(a), 72 Stat.; 49 U.S.C. 1354)

Issued in Anchorage, Alaska, on March 23, 1971.

WILLIAM P. COMSTOCK,
Brigadier General, U.S. Air
Force, Acting Director, AL-1.

[FR Doc.71-4972 Filed 4-8-71;8:48 am]

CIVIL AERONAUTICS BOARD

[Docket No. 23217; Order 71-4-7]

COMBS AIRWAYS, INC.

Order To Show Cause Regarding Establishment of Service Mail Rate

Issued under delegated authority, April 1, 1971.

The Postmaster General filed a notice of intent March 19, 1971, pursuant to 14 CFR Part 298, petitioning the Board to establish for the above-captioned air taxi operator, a final service mail rate of 59.89 cents per great circle aircraft mile for the transportation of mail by aircraft between Roanoke, Va., and Baltimore, Md., via Lynchburg and Richmond, Va., based on five round trips per week.

No protest or objection was filed against the proposed services during the time for filing such objections. The Postmaster General states that the Department and the carrier agree that the above rate is a fair and reasonable rate of compensation for the proposed services. The Postmaster General believes these services will meet postal needs in the market. He states the air taxi plans to initiate mail service with Beechcraft 18 aircraft.

It is in the public interest to fix, determine, and establish the fair and reasonable rate of compensation to be paid by the Postmaster General for the proposed transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, between the aforesaid points. Upon consideration of the notice of intent and other matters officially noticed, it is proposed to issue an order¹ to include the following findings and conclusions:

The fair and reasonable final service mail rate to be paid to Combs Airways, Inc., in its entirety by the Postmaster General pursuant to section 406 of the Act for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, shall be 59.89 cents per great circle aircraft mile between Roanoke, Va., and Baltimore, Md., via Lynchburg and Richmond, Va., based on five round trips per week flown with Beechcraft 18 aircraft.

Accordingly, pursuant to the Federal Aviation Act of 1958, and particularly sections 204(a) and 406 thereof, and regulations promulgated in 14 CFR Part 302, 14 CFR Part 298, and 14 CFR 385.16(f):

It is ordered, That:

1. Combs Airways, Inc., the Postmaster General, Eastern Air Lines, Inc., National Airlines, Inc., Piedmont Aviation, Inc., United Air Lines, Inc., and all other interested persons are directed to show

¹ As this order to show cause is not a final action, it is not regarded as subject to the review provisions of 14 CFR Part 385. These provisions will apply to final action taken by the staff under authority delegated in § 385.16(g).

cause why the Board should not adopt the foregoing proposed findings and conclusions and fix, determine, and publish the final rate specified above for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith as specified above as the fair and reasonable rate of compensation to be paid to Combs Airways, Inc.;

2. Further procedures herein shall be in accordance with 14 CFR Part 302, and notice of any objection to the rate or to the other findings and conclusions proposed herein, shall be filed within 10 days, and if notice is filed, written answer and supporting documents shall be filed within 30 days after service of this order;

3. If notice of objection is not filed within 10 days after service of this order, or if notice is filed and answer is not filed within 30 days after service of this order, all persons shall be deemed to have waived the right to a hearing and all other procedural steps short of a final decision by the Board, and the Board may enter an order incorporating the findings and conclusions proposed herein and fix and determine the final rate specified herein;

4. If answer is filed presenting issues for hearing, the issues involved in determining the fair and reasonable final rate shall be limited to those specifically raised by the answer, except insofar as other issues are raised in accordance with Rule 307 of the rules of practice (14 CFR 302.307); and

5. This order shall be served upon Combs Airways, Inc., the Postmaster General, Eastern Air Lines, Inc., National Airlines, Inc., Piedmont Aviation, Inc., and United Air Lines, Inc.

This order will be published in the FEDERAL REGISTER.

[SEAL]

HARRY J. ZINK,
Secretary.

[FR Doc.71-4981 Filed 4-8-71; 3:49 am]

[Docket No. 23232; Order 71-4-20]

GILLEY AIRWAYS CORP.

Order To Show Cause Regarding Establishment of Service Mail Rate

Issued under delegated authority, April 2, 1971.

The Postmaster General filed a notice of intent March 24, 1971, pursuant to 14 CFR Part 298, petitioning the Board to establish for the above-captioned air taxi operator, a final service mail rate of 64.9 cents per great circle aircraft mile for the transportation of mail by aircraft between Syracuse and New York City (LGA), N.Y., based on five round trips per week.

No protest or objection was filed against the proposed services during the time for filing such objections. The Postmaster General states that the Department and the carrier agree that the above rate is a fair and reasonable rate of compensation for the proposed services. The

Postmaster General believes these services will meet postal needs in the market. He states the air taxi plans to initiate mail service with twin-engine Beechcraft aircraft.

It is in the public interest to fix, determine, and establish the fair and reasonable rate of compensation to be paid by the Postmaster General for the proposed transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, between the aforesaid points. Upon consideration of the notice of intent and other matters officially noticed, it is proposed to issue an order¹ to include the following findings and conclusions:

The fair and reasonable final service mail rate to be paid to Gilley Airways Corp., in its entirety by the Postmaster General pursuant to section 406 of the Act for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, shall be 64.9 cents per great circle aircraft mile between Syracuse and New York City (LGA), N.Y., based on five round trips per week.

Accordingly, pursuant to the Federal Aviation Act of 1958, and particularly sections 204(a) and 406 thereof, and regulations promulgated in 14 CFR Part 302, 14 CFR Part 298, and 14 CFR 385.16(f):

It is ordered, That:

1. Gilley Airways Corp., the Postmaster General, American Airlines, Inc., Mohawk Airlines, Inc., and all other interested persons are directed to show cause why the Board should not adopt the foregoing proposed findings and conclusions and fix, determine, and publish the final rate specified above for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith as specified above as the fair and reasonable rate of compensation to be paid to Gilley Airways Corp.;

2. Further procedures herein shall be in accordance with 14 CFR Part 302, and notice of any objection to the rate or to the other findings and conclusions proposed herein, shall be filed within 10 days, and if notice is filed, written answer and supporting documents shall be filed within 30 days after service of this order;

3. If notice of objection is not filed within 10 days after service of this order, or if notice is filed and answer is not filed within 30 days after service of this order, all persons shall be deemed to have waived the right to a hearing and all other procedural steps short of a final decision by the Board, and the Board may enter an order incorporating the findings and conclusions proposed herein and fix and determine the final rate specified herein;

¹ As this order to show cause is not a final action, it is not regarded as subject to the review provisions of 14 CFR Part 385. These provisions will apply to final action taken by the staff under authority delegated in § 385.16(g).

4. If answer is filed presenting issues for hearing, the issues involved in determining the fair and reasonable final rate shall be limited to those specifically raised by the answer, except insofar as other issues are raised in accordance with Rule 307 of the rules of practice (14 CFR 302.307); and

5. This order shall be served on Gilley Airways Corp., the Postmaster General, American Airlines, Inc., and Mohawk Airlines, Inc.

This order will be published in the FEDERAL REGISTER.

[SEAL]

HARRY J. ZINK,
Secretary.

[FR Doc.71-4982 Filed 4-8-71;8:49 am]

[Docket No. 23231; Order 71-4-21]

GILLEY AIRWAYS CORP.

Order To Show Cause Regarding Establishment of Service Mail Rate

Issued under delegated authority April 2, 1971.

The Postmaster General filed a notice of intent March 24, 1971, pursuant to 14 CFR Part 298, petitioning the Board to establish for the above-captioned air taxi operator, a final service mail rate of 64.9 cents per great circle aircraft mile for the transportation of mail by aircraft between Albany and New York City (LGA), N.Y., based on five round trips per week.

No protest or objection was filed against the proposed services during the time for filing such objections. The Postmaster General states that the Department and the carrier agree that the above rate is a fair and reasonable rate of compensation for the proposed services. The Postmaster General believes these services will meet postal needs in the market. He states the air taxi plans to initiate mail service with twin-engine Beechcraft aircraft.

It is in the public interest to fix, determine, and establish the fair and reasonable rate of compensation to be paid by the Postmaster General for the proposed transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, between the aforesaid points. Upon consideration of the notice of intent and other matters officially noticed, it is proposed to issue an order¹ to include the following findings and conclusions:

The fair and reasonable final service mail rate to be paid to Gilley Airways Corp., in its entirety by the Postmaster General pursuant to section 406 of the Act for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith, shall be 64.9 cents per great circle aircraft mile between Albany and

New York City (LGA), N.Y., based on five round trips per week.

Accordingly, pursuant to the Federal Aviation Act of 1958, and particularly sections 204(a) and 406 thereof, and regulations promulgated in 14 CFR Part 302, 14 CFR Part 298, and 14 CFR 385.16(f):

It is ordered, That:

1. Gilley Airways Corp., the Postmaster General, American Airlines, Inc., Mohawk Airlines, Inc., and all other interested persons are directed to show cause why the Board should not adopt the foregoing proposed findings and conclusions and fix, determine, and publish the final rate specified above for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith as specified above as the fair and reasonable rate of compensation to be paid to Gilley Airways Corp.;

2. Further procedures herein shall be in accordance with 14 CFR Part 302, and notice of any objection to the rate or to the other findings and conclusions proposed herein, shall be filed within 10 days, and if notice is filed, written answer and supporting documents shall be filed within 30 days after service of this order;

3. If notice of objection is not filed within 10 days after service of this order, or if notice is filed and answer is not filed within 30 days after service of this order, all persons shall be deemed to have waived the right to a hearing and all other procedural steps short of a final decision by the Board, and the Board may enter an order incorporating the findings and conclusions proposed herein and fix and determine the final rate specified herein;

4. If answer is filed presenting issues for hearing, the issues involved in determining the fair and reasonable final rate shall be limited to those specifically raised by the answer, except insofar as other issues are raised in accordance with Rule 307 of the rules of practices (14 CFR 302.307); and

5. This order shall be served on Gilley Airways Corp., the Postmaster General, American Airlines, Inc., and Mohawk Airlines, Inc.

This order will be published in the FEDERAL REGISTER.

[SEAL]

HARRY J. ZINK,
Secretary.

[FR Doc.71-4983 Filed 4-8-71;8:49 am]

[Docket No. 20993; Order 71-4-18]

INTERNATIONAL AIR TRANSPORT ASSOCIATION

Order Regarding Cargo Sales Agents

Issued under delegated authority, April 2, 1971.

An agreement has been filed with the Board, pursuant to section 412(a) of the Federal Aviation Act of 1958 (the Act) and Part 261 of the Board's Economic Regulations, between air carriers, foreign air carriers, and other carriers, embodied in the resolutions of the Traffic

Conferences of the International Air Transport Association (IATA). The agreement, which has been assigned the above-designated CAB agreement number, was adopted pursuant to the second meeting of the Cargo Agency Committee held November 2-7, 1970, in Montreal.

The agreement amends existing IATA resolutions relating to reduced rate transportation for cargo sales agents. These amendments merely clarify the terms of these resolutions so as to make reference to certain resolutions established under the relatively new cargo agency program as well as to the older program which will run through February of 1972 for agents not electing to become subject to the new program.

By our action herein, we propose to approve the instant resolutions, subject in two instances to conditions. With respect to the resolutions governing reduced fares for cargo agents, our condition would achieve conformity with action taken by the Board in Order 69-7-77 (July 16, 1969) in connection with free or reduced fare concessions for travel agents. At that time, we noted that certain provisions of the passenger sales agency rules had been interpreted to permit carriers to provide free transportation to travel agents in the guise of instructional and educational assistance. The cargo agency rules, both new and old, contain similar provisions, and we will therefore condition our approval of the resolution governing reduced fares for cargo agents so as to likewise preclude such interpretation and so as to assure that fare concessions to cargo agents will be limited to the intended purposes and criteria set forth in the basic resolution. In regard to our proposed condition on approval of the resolution entitled "Instruction of Agents—All Cargo Members," this merely clarifies that approval does not constitute approval of a resolution to which reference is made but which has not yet been adopted by the carriers nor submitted to the Board for approval.

Pursuant to authority duly delegated by the Board in the Board's regulations, 14 CFR 385.14:

1. It is not found, on a tentative basis, that the following resolutions, which are incorporated in the agreement indicated, are adverse to the public interest or in violation of the Act, provided that approval is subject to the proviso stated thereafter:

Agreement	
CAB:	IATA number
22185, R-1.....	162(CAC)293a.
	292(CAC)293a.
	302(CAC)293a.
	JT12(2 CAC)293a.
	JT23(2 CAC)293a.
	JT31(2 CAC)293a.
	JT123(2 CAC)293a.

Provided, That free or reduced rate transportation for U.S.-based agents shall be limited to the extent permitted by the provisions of these resolutions and may not be provided under entertainment or instruction provisions of any other cargo agency resolution.

¹ As this order to show cause is not a final action, it is not regarded as subject to the review provisions of 14 CFR Part 385. These provisions will apply to final action taken by the staff under authority delegated in § 385.16(g).

Agreement
CAB: IATA number
22186, R-3----- 102(CAC) 203f.
202(CAC) 203f.
302(CAC) 203f.

Provided, That approval shall not constitute approval of Resolution 203c, to which reference is made but which has not yet been adopted nor submitted to the Board for approval.

2. It is not found, on a tentative basis, that the following resolutions, which are incorporated in the agreement indicated, are adverse to the public interest or in violation of the Act:

Agreement
CAB: IATA Number
22186, R-2----- 102(CAC) 203d.
202(CAC) 203d.
302(CAC) 203d.
JT12(2 CAC) 203d.
JA23(2 CAC) 203d.
JT31(2 CAC) 203d.
JT123(2 CAC) 203d.

Accordingly, it is ordered, That:

1. Action on Agreement CAB 22186, R-1 and R-3, be and hereby is deferred, with a view toward eventual approval, subject to the conditions stated herein; and

2. Action on Agreement CAB 22186, R-2 be and hereby is deferred, with a view toward eventual approval.

Persons entitled to petition the Board for review of this order, pursuant to the Board's regulations, 14 CFR 383.50, may, within ten days after the date of service of this order, file such petitions in support of or in opposition to our proposed action herein.

This order will be published in the FEDERAL REGISTER.

[SEAL] HARRY J. ZINK,
Secretary.
[FR Doc.71-4984 Filed 4-8-71;8:49 am]

[Docket No. 20993; Order 71-4-23]

INTERNATIONAL AIR TRANSPORT ASSOCIATION

Order Regarding Specific Commodity Rates

Issued under delegated authority, April 2, 1971.

An agreement has been filed with the Board pursuant to section 412(a) of the Federal Aviation Act of 1958 (the Act) and Part 261 of the Board's Economic Regulations, between various air carriers, foreign air carriers, and other carriers, embodied in the resolutions of the Joint Conferences of the International Air Transport Association (IATA). The agreement, which has been assigned the above-designated CAB agreement number, was adopted for a May 1, 1971, early effectiveness by the 11th Meeting of the Joint Specific Commodity Rates Board which was held in Geneva, February 22-26, 1971.

As set forth below, the agreement would establish new specific commodity rates under existing commodity descriptions, and these rates reflect significant reductions from the otherwise applicable general commodity rate.

R-1:
Commodity Item 0495—Strawberries, 59 cents per kg., minimum weight 1,000 kgs., Brussels to New York.

R-2:
Commodity Item 1400—Floral and/or Nursery Stock and Bulbs, Flowers, Seeds and Tubers, N.E.S., 105 cents per kg., minimum weight 100 kgs., 83 cents per kg., minimum weight 500 kgs., New York to Athens.

Pursuant to authority duly delegated by the Board in the Board's regulations, 14 CFR 385.14, it is not found, on a tentative basis, that the subject agreement is adverse to the public interest or in violation of the Act, provided that tentative approval thereof is conditioned as hereinafter ordered.

Accordingly, it is ordered, That:

Action on Agreement CAB 22332, R-1 and R-2, be and hereby is deferred with a view toward eventual approval, provided that approval shall not constitute approval of the specific commodity descriptions contained therein for purposes of tariff publication: *Provided further*, That tariff filings shall be marked to become effective on not less than 30 days' notice from the date of filing.

Persons entitled to petition the Board for review of this order, pursuant to the Board's regulations, 14 CFR 385.50, may, within 10 days after the date of service of this order, file such petitions in support of or in opposition to our proposed action herein.

This order will be published in the FEDERAL REGISTER.

[SEAL] HARRY J. ZINK,
Secretary.
[FR Doc.71-4985 Filed 4-8-71;8:49 am]

ENVIRONMENTAL PROTECTION AGENCY

PPG INDUSTRIES, INC.

Notice of Filing of Petition Regarding Pesticide Chemicals

Pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408 (d) (1), 68 Stat. 512; 21 U.S.C. 346a(d) (1)), notice is given that a petition (PP 1F1119) has been filed by PPG Industries, Inc., 1 Gateway Center, Pittsburgh, PA 15222, proposing the establishment of tolerances (21 CFR Part 420) for residues of the herbicide CIPC (isopropyl N-(3-chlorophenyl) carbamate) in or on the raw agricultural commodities alfalfa clovers, and forage grasses at 50 parts per million; beans, peas, soybeans (each in dry form), beans and peas (each in succulent form), lettuce, spinach, and sugarbeet tops at 0.3 part per million; and blackberries, blueberries, carrots, cranberries, garlic, onions, peppers, raspberries, rice grain, safflower seed, sugarbeet roots, and tomatoes at 0.1 part per million.

The analytical method proposed in the petition for determining residues of the

herbicide is a gas-liquid chromatographic procedure with electron-capture detection.

Dated: April 5, 1971.

R. E. JOHNSON,
Acting Commissioner,
Pesticides Office.

[FR Doc. 71-4944 Filed 4-8-71;8:45 am]

PENNWALT CORP.

Notice of Filing of Petition Regarding Pesticide Chemicals

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408(d) (1), 68 Stat. 512; 21 U.S.C. 346a (d) (1)), notice is given that a petition (PP 1F1105) has been filed by the Pennwalt Corp., Post Office Box 1297, Tacoma, WA 98401, proposing the establishment of a tolerance (21 CFR Part 420) for negligible residues of endothall (7-oxabicyclo-(2.2.1) heptane-2,3-dicarboxylic acid) in or on the raw agricultural commodities sugar beets and in water at 0.2 part per million from the application of its dimethylalkylamine, potassium, or sodium salts as herbicides.

The analytical method proposed in the petition for determining residues of endothall in sugar beets is a procedure in which the endothall residues are reacted with 2-chloroethylamine hydrochloride to produce the imide derivative. The latter is determined by microcoulometric gas chromatography with a nitrogen detection system.

The analytical method proposed for determining residues of endothall in water is a procedure in which the endothall residues are reacted with allyl alcohol to produce the diallyl ester. The latter is determined by gas chromatography with a flame ionization detection system.

Dated: April 5, 1971.

R. E. JOHNSON,
Acting Commissioner,
Pesticides Office.

[FR Doc.71-4945 Filed 4-8-71;8:45 am]

PHELPS DODGE REFINING CORP.

Notice of Filing of Petition Regarding Pesticide Chemicals

Pursuant to provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408 (d) (1), 68 Stat. 512; 21 U.S.C. 346a(d) (1)), notice is given that a petition (PP 1F1093) has been filed by Phelps Dodge Refining Corp., 300 Park Avenue, New York, NY 10022, proposing the establishment of an exemption from the requirement of a tolerance (21 CFR Part 420) for residues of copper from the use of the aquatic herbicide copper sulfate pentahydrate.

The analytical method proposed in the petition for determining residues of the herbicide is that published in "Standard Methods of Examination of Water and

Waste Water", American Public Health Association, page 117 (1967).

Dated: April 1, 1971.

R. E. JOHNSON,
Acting Commissioner,
Pesticides Office.

[FR Doc.71-4943 Filed 4-8-71;8:45 am]

SHELL CHEMICAL CO.

Notice of Filing of Petition Regarding Pesticide Chemicals

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 408(d) (1), 68 Stat. 512; 21 U.S.C. 346a (d) (1)), notice is given that a petition (PP 1F1121) has been filed by Shell Chemical Co., Division of Shell Oil Co., Suite 1103, 1700 K Street NW., Washington, DC 20006, proposing the establishment of tolerances (21 CFR Part 420) for residues of the insecticide 2-chloro-1-(2, 4, 5-trichlorophenyl) vinyl dimethyl phosphate in the fat of hogs at 1.5 parts per million and in meat and meat by-products of hogs at 0.5 part per million.

The analytical method proposed in the petition for determining residues of the insecticide is a gas-liquid chromatographic procedure using a phosphorous-sensitive thermionic emission detector.

Dated: April 5, 1971.

R. E. JOHNSON,
Acting Commissioner,
Pesticides Office.

[FR Doc.71-4946 Filed 4-8-71;8:46 am]

FEDERAL MARITIME COMMISSION

CERTIFICATES OF FINANCIAL RESPONSIBILITY (OIL POLLUTION)

Notice of Certificates Issued

Notice is hereby given that the following vessel owners and/or operators have established evidence of financial responsibility, with respect to the vessels indicated, as required by section 11(p) (1) of the Federal Water Pollution Control Act, as amended, and, accordingly, have been issued Federal Maritime Commission Certificates of Financial Responsibility (Oil Pollution) pursuant to Part 542 of Title 46 CFR.

Certificate No.	Owner/operator and vessels
01921----	Berkeley Steamship Co., Ltd.: Ionian Mariner.
01922----	Vulcania Steamship Co., Ltd.: Ionian Leader.
01818----	Houston Line Ltd.: Clan Robertson. Clan Randal. Clan Ramsay. Clan Ross. Clan MacDougall.
01924----	Western Sea Transport Ltd.: Rokos V.
01925----	Pericosmic Petroleum Carriers Ltd.: Ionian Commander.

Certificate No.	Owner/operator and vessels
01805----	Suisse Atlantique Societe d'Arme- ment Maritime S.A.: Molecon. Celerina. Castasegna. Corviglia. Bregaglia. Yguazu. Grischuna. El Pampero. Lavau. St. Cergue. Romandie. Iguapa. Cereorade.
01926----	Bedford Steamship Co., Ltd.: Ionian Skipper.
02928----	PHS Van Ommen (France): Bacchus. Port Brcton. Port Au Prince. Port Maria. Port Briac. Port Navalo. Port Marly. Port Launay. Port Miguel.
02930----	Compania Sud-Americana de Va- peros: Andallen. Lebu. Laja. Len. Longavi. Limari. Aconecagua. Malpo. Imperial. Coplape. Illapel. Elqui.
01931----	Brigantine Transport Corp.: Clementine. Scraphino.
02977----	J. Ray McDermott & Co., Inc.: McDermott Tidelands No. 010. McDermott Lay Barge No. 22. McDermott Lay Barge No. 23. McDermott Derrick Barge No. 16. McDermott Derrick Barge No. 17. McDermott Derrick Barge No. 12. McDermott Oceanic No. 91. McDermott Derrick Barge No. 11. McDermott Jet Barge No. 2. McDermott Derrick Barge No. 3. McDermott Derrick Barge No. 9. McDermott Derrick Barge No. 4. McDermott Derrick Barge No. 7. McDermott Tidelands No. 011. McDermott Tidelands No. 03. McDermott Tidelands No. 03. McDermott Lay Barge No. 29. Venmac 2. Venmac 6. McDermott Lay Barge No. 21. McDermott Tidelands No. 1. McDermott Tidelands No. 2. McDermott Tidelands No. 3. Jirafa. McDermott Tidelands No. 81. McDermott Tidelands No. 82. McDermott Derrick Barge No. 5. McDermott 165. McDermott 169. Marlo 8. McDermott Derrick Barge No. 2. McDermott Derrick Barge No. 3. JO 535. JO 536. JO 537. JO 538. JO 539.

Certificate No.	Owner/operator and vessels
	TJ 510L. TJ 511L. TJ 512L. TJ 513L. TJ 514L. TJ 515L. TJ 516L. Marc L. T45. C. A. Eason. C. B. Dodgen. M. B. Willey. A. H. Stall. Ralph T. McDermott Dredge Creole. McDermott Dredge La Fourche.
01932----	AP Sranaha Ostasiatika Kompa- niet: Nicober. Nara. Tokyo. Hongkong. Hondo. Hokkaido. Hakono. Hirado. Indus. Icfahan. Nicober. Nagasaki. Nara. Travancore. Kyoto. Sabang. Minikol. Mandalay. Sudan. Burma. Japan. Ceylon. Hainan.
01933----	Atlelebolaget August Lofler & Son Tigrl.
01937----	Federichtlebolaget Bifrost: Eudolph. Eobus. Jarl E. Trepp.
01423----	Charante Steamship Co., Ltd., Thos & Jas Harrison Ltd., Managers: Benefactor. Craftman. Inventor. Custodian. Tactician. Plainsman. Author. Administrator. Adventurer. Crofter. Barister. Diplomat. Governor. Journalist. Dilectant. Explorer. Factor. Linguist. Trader. Philosopher. Statesman. Defender. Scholar. Wayfarer. Historian. Magician. Merchant. Discoverer. Naturalist. Novelist.
01423----	The Ocean Steam Ship Co., Ltd.: Deucalion. Talthybius. Aeneas.

NOTICES

Certifi- cate No.	Owner/operator and vessels
	Antiochus.
	Automedon.
	Clytoneus.
	Cyclops.
	Ascanius.
	Calchas.
	Theseus.
	Achilles.
	Anchises.
	Menelaus.
	Menestheus.
	Maron.
	Pyrrhus.
	Helenus.
	Hector.
	Ixion.
	Peleus.
	Daru.
	Dixcove.
	Degema.
	Dumurra.
	Dunkwa.
	Deldo.
	Dalla.
	Donga.
	Dumbala.
	Autolycus.
	Elpenor.
	Asryanax.
	Neleus.
	Atreus.
	Laomedon.
	Ajax.
	Memnon.
	Jason.
	Perseus.
	Patroclus.
01471---	Helmsman Shipping Co., Ltd.: Atlantic Helmsman.
01475---	Baron Shipping Co., Ltd.: Atlantic Baron.
01476---	Baroness Shipping Co., Ltd.: Atlantic Baroness.
01477---	Freedom Shipping Co., Ltd.: Atlantic Freedom.
02481---	Afros Shipping Co., Ltd., Nicosia, Cyprus: Apollonian.
01478---	Atlantic Sunrise Shipping Co., Ltd.: Atlantic Sunrise.
01479---	General Shipping Co., Ltd.: Atlantic General.
01483---	Strymon Shipping Co., Ltd.: Strymon.
01487---	Sunbeam Shipping Co., Ltd.: Atlantic Sunbeam.
02466---	Shell Oil Co.: Niobe. Phaedra. Artemis.
01493---	Lady Shipping Co., Ltd.: Atlantic Lady.
01494---	Glafkos Shipping Co., Ltd.: Glafkos.
01502---	Moore-McCormack Lines, Inc.: S/S Robin Trent. S/S Robin Hood. S/S Robin Gray. S/S Robin Goodfellow. S/S Mormacvega. S/S Mormactrade. S/S Mormacscan. S/S Mormacrigel. S/S Mormacpride. S/S Mormaclynx. S/S Mormaclake. S/S Mormacglen. S/S Mormacdraco. S/S Mormaccove. S/S Mormacargo. S/S Mormaccape. S/S Mormacbay. S/S Mormacaltair. S/S Brasil. S/S Argentina.

Certifi- cate No.	Owner/operator and vessels
01531---	Petromar S.A.: Grecian Temple. Golden Eagle.
01532---	Olinares Compania Naviera S.A.: Grecian Emblem. Grecian Valour.
01542---	Spirit Maritime Corp.: Grecian Spirit.
01543---	Compania Fortunaria S.A.: Ocean Regina.
01545---	Borges Rederi A/S: M/S Wyvern. M/S Woolgar.
01857---	Ong. I. Fa. Bernard Schulte: Gertrud Ten Doornkaat. Jan Ten Doornkaat. Moritz Schulte. Lissy Schulte. Friederike Ten Doornkaat. Judith Schulte. Antje Schulte. Hamburger Michel. Esther Charlotte Schulte. Hamburger Tor. Hamburger Burg. Astrid Schulte. Johann Christian Schulte.
01860---	Inesco Lines, Ltd.: M/V Inesco Producer. M/V Inesco Jem.
01867---	Adriatico Tirreno Jonio Ligure A.T.J.L. di Alberto Ravano & Figli: Charitas. Auctoritas.
01872---	Edmonton Shipping Co., Inc.: Van Warrior.
01873---	Montreal Shipping Co., Inc.: Vanguard.
01614---	Marchioness Shipping Co., Ltd.: Atlantic Marchioness.
01615---	Stavros Shipping Co., Ltd.: Stavros G. Livanos.
01616---	Marquess Shipping Co., Ltd.: Atlantic Marquess.
01617---	Breeze Shipping Co., Ltd.: Atlantic Breeze.
01618---	Evros Shipping Co., Ltd.: Evros.
01929---	Franconia Sea Transport Ltd.: George Vergottis.
01622---	Theofano Shipping Co., Ltd.: Theofano Livanos.
01874---	A/S Sobral: Mundogas Rio. Nopal Argus. Nopal Vega. Mundogas Brasilia. Nopal Star. Nopal Express. Nopal Rex. Nopal Progress. Mundogas Atlantic. Nopal Luna. Nopal Tellus. Nopal Sun. Mundogas Bermuda. Mundogas Caribe.
02879---	Isla Volcanica Compania Naviera S.A.: Capetan Tassos.
01900---	Red Anchor Line Ltd.: Rosetta Maud. Merryn Elizabeth. Nils Amelon. Isabel Erica.
01910---	Deutsche Dampfschiffahrts- Gesellschaft Hansa: Stockenfels.
01624---	Archangel Shipping Co., Ltd.: Archangelos.
01626---	Star Shipping Co., Ltd.: Atlantic Star.
01627---	Atlantic Oil Carriers Ltd.: George Livanos. Eugenie Livanos. Athena Livanos.

Certifi- cate No.	Owner/operator and vessels
01628---	Union Shipping Co., Ltd.: Atlantic Union.
01629---	Queen Shipping Co., Ltd.: Atlantic Queen.
01630---	King Shipping Co., Ltd.: Atlantic King.
01631---	Atlantic Princess Shipping Co., Ltd.: Atlantic Princess.
01660---	Artas Compania Naviera S.A.: Arlsteldes.
01661---	Eastern Seas Transport Corp.: Corsair.
01662---	Navigators Steamship Corp.: Defiant.
01663---	Hydroussa Compania Naviera S.A.: Hydroussa.
01664---	Compania Maritima la Empresa S.A.: Opportunity.
01666---	Compania Naviera Resolute S.A.: Dorlan.
01667---	Compania Naviera Dorlefs S.A.: Dorlefs.
02781---	Beaver Shipping Co., S.A.: Avgi.
02782---	Boreas Shipping Co., S.A.: Mythic.
01673---	Cyclades Compania Naviera S.A.: S. G. Embiricos.
01674---	Compania de Navegacion Ensen- ada S.A.: Andriotis.
01675---	Compania de Navegacion Casaya S.A.: Panaghia Theoskepasti.
01679---	Armadores Atlanticos S.A.: Niky.
01680---	Alba Steamship Co., Ltd.: George S. Embiricos.
01687---	Trinity Shipping Co., Ltd.: Michalis K.
01719---	Unterweser reederel G.m.b.H., Bremen/Germany, Blument- halstr. 15/16: Bornhelm. Eschershelm. Fraunhelm. Berkershelm. Glinnhelm. Schwanhelm. Eckenhelm. Langelshelm. Bremen.
01759---	Morania Compania Naviera S.A.: Etollis.
01765---	Caribbean Steamship Co., S.A.: S/S David P. Reynolds. S/S J. Louis. S/S Richard. S/S Louise. S/S Carl Schmedeman. M/V Exuma Sound. M/V Montagu Bay.
02772---	Phillips Petroleum Co.: Phillips California. Phillips Washington.
02778---	Albatross Shipping Co., S.A.: Atomic.
02779---	Atlantis Shipping Co., S.A.: Esperos.
02604---	Revere Sugag Refinery: Revere Barge No. 1.
02676---	Lauter-Elbe Reederel G.m.b.H.: Billstein.
02702---	Komrowski Befrachtungskontor K.G.—As Manager Owner for Partenreederel M/S Vulkan: Vulkan.
01411---	Sea Enterprises Corp., Panama: Delphic Miracle. Delphic Sky.
01412---	Shipping Developments Corp., Panama: Delian Apollon. Delian Leto.

Certifi- cate No.	Owner/operator and vessels	Certifi- cate No.	Owner/operator and vessels	Certifi- cate No.	Owner/operator and vessels
	Dellian Spirit. Santa Alexandra. Santa Anna. Santa Fotini.	02743----	Melbury Shipping Co., Panama S.A.: Olympic Phaethon.	02703----	Komrowald Befrachtungskontor K.G. (as Managing Owner for Partenreederei M/S Adrian): Adrian.
01416----	Athelempress Tankers Co., Ltd.: Anco Empress.	02816----	Star Shipping Co., S.A.: Napier.	01405----	Global Bulkcarriers S.A. Panama: Capetan Yiannis.
01421----	Bibby Line, Ltd.: Toronto City. Coventry City. Gloucestershire. Shropshire. Worcestershire. Derbyshire. Wiltshire. Warwickshire. Oxfordshire. Berkshire. Ocean Bridge.	02817----	Starcluster Shipping Co., S.A.: Ionic.	01406----	United Bulkcarriers S.A. Panama: Capetan Yemelos.
01303----	Prince Line, Ltd.: Cotswold Prince. Mendip Prince. Malvern Prince. Chiltern Prince.	02821----	Tiger Shipping Co., S.A.: Sonic.	01407----	United Chartering Enterprises S.A. Panama: Capetan Petros.
01309----	Atlantic Carriers S.A.: Aegean Nymph.	02788----	Constellation Shipping Co., S.A.: Liryc.	01016----	C. Clausen Dampskibsselskabet A/S: Linda Clausen. Cecilia. Ceres. Al-Kuwait. Dona Clausen. Diana Clausen. Cimbria. Alondra. Athene. Inger Clausen. Ida Clausen.
02708----	Bridgeport Maritime Panama S.A.: Olympic Archer.	02838----	Stardust Shipping Co., S.A.: Sonic.	01025----	Bernhard Hansen & Co. (Ship- cocktiedelskabet Aramis & Shipcocktiedelskabet Athos): Athena. Aramis.
02717----	Court Line, Ltd.: Halcyon Days. Halcyon Wave.	02831----	Isla Fedrugal Compania Naviera S.A.: Kalty.	02703----	Komrowald Befrachtungskontor K.G.—As Managing Owner for Partenreederei M/S Ossián: Ossián.
02733----	Victoria Marine Co.: Capt. W. D. Cargill. Carchester.	02883----	Sololi Compania Naviera S.A.: Mathes.	02704----	Komrowald Befrachtungskontor K.G.—As Managing Agent for Partenreederei M/S Marian: Marian.
02734----	Italia Società Per Azioni di Nav- igazione: Rossini. Donizetti. Verdi. Paolo Toscanelli. Raffaello. Michelangelo. Leonardo Da Vinci. Cristoforo Colombo. Galileo Ferraris. Alessandro Volta. Antonio Pacinotti.	02899----	Simaba Compania Maritima S.A.: Anna Maria S.	02035----	Kinndale Panama S.A.: Olympic Peace.
02735----	BP Australia Ltd. (Demise Char- terers): BP Endeavour. BP Enterprise.	02936----	Monterrey S.A.: Olympic Rider.	02036----	Clifton Shipping Co., Panama S.A.: Olympic Palm.
02738----	Foreland Navigation Co. S.A.: Olympic Star.	02951----	Vista Rios Compania Naviera S.A.: Eleni.	02037----	Olinda Panama S.A.: Olympic Prestige.
02739----	Lucerne Navigation Panama S.A.: Olympic Chivalry.	02967----	Sunshine Transport Corp.: M/V Sunny Ocean.	02038----	Falmouth Marine Panama S.A.: Olympic Pearl.
02744----	Concepcion Financiera Panama S.A.: Olympic Grace.	02975----	Venture Shipping (Managers), Ltd.: Y. S. Venture. Simmetal Venture. Consolidated Venture.	02046----	Marcedento Compania Naviera S.A.: Maraulio.
02586----	Marlin Drilling Co., Inc.: Marlin 1. Marlin 2. Marlin 3. Marlin 4.	01311----	Mardero Compania Naviera S.A.: Anthony II.	02050----	Menrovia Transportation Co.: Olympic Challenger.
01310----	Sociedad Financiera Valenciana S.A.: Antonios Coulouthros.	01321----	Compagnia Italiana Transoceanica di Navigazione S.P.A.: Transoceanica Elena. Transoceanica Giovanna. Transoceanica Francesca. Transoceanica Silvia.	02052----	Seawell Marine Panama S.A.: Olympic Garland.
02601----	Caralbische Scheepvaart Maat- schappij N.V.: Tiburon. Tinto.	01336----	Aktieselskabet Bergestad: Brynje. Brelm. Brevik. Bergestad. Bandak.	02073----	Portamar Navigation Co., Panama S.A.: Olympic Goal.
02783----	Cardinal Shipping Co., S.A.: Melodic.	01367----	Propartha Compania Naviera S.A.: Aristotels.	02039----	Oceanic Petroleum Carriers Inc.: Oceanic Grandeur. Oceanic Champion. Oceanic Unity.
02784----	Centaurus Shipping Co., S.A.: Myron.	02369----	Tonolmar Maritime Corp., Pan- ama S.A.: Evi T.	02091----	United Maritime Co., Inc.: Hongkong Delegate.
02785----	Celestial Shipping Co., S.A.: Pacific.	02370----	Arginuae Maritime Corp., Panama S.A.: Stavros T.	02124----	Fiorviki Compania Naviera S.A.: Georgia.
02786----	Clipper Shipping Co., S.A.: Tropic.	01297----	Caroline Navigation Co., Inc.: Eirini L.	02125----	Pan Mal Compania Naviera S.A., Panama: Dimitra.
02787----	Comet Shipping Co., S.A.: Phaethon.	01293----	Eltransport, Inc.: Panagiotis L.	02259----	Nikos Piontes Shipping Co. S.A.: Scatida.
02740----	Howland Panama S.A.: Olympic Progress.	01398----	Freedom General Shipping S.A. Panama: Khlan Zephyr.	02333----	Cory Brothers & Co. (Italy) Ltd., Naples: Wildrose.
02741----	Inwood Panama S.A.: Olympic Power.	01402----	Freedom Sea Transports S.A., Panama: Khlan Hill.	02011----	Wallenius Bremen G.m.b.H. & Co., K.G. Schiffahrtsgesellschaft: Ebhama.
02742----	Milford Navigation Co., Panama S.A.: Olympic Glory.	01403----	Freedom Global Transport S.A. Panama: Khlan Engineer.	02027----	Ridon Maritime Panama S.A.: Delco.
		01404----	Freedom Maritime Corp., Panama: Khlan Captain.	02028----	Exeter Marine S.A.: Olympic Ice.
				02029----	Bluefield Marine S.A.: Olympic Laurel.
				02030----	Greenwich Panama S.A.: Olympic Legio.
				02031----	Cartagena Shipping Co., Panama S.A.: Olympic Valley.

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03032---	Liberty Transportation Co.: Olympic Sky.	04508---	Akiyama Gyogyo Kabushiki Kaisha: Matsuseimaru No. 1.	04524---	Sasajima Gyogyo Kabushiki Kaisha: Sasanomaru No. 21.
03033---	Granton Marine Panama S.A.: Olympic Arrow.	04487---	Sanwa Enyo Cyogyo Seisan Kumiat: Sanwamaru No. 2.	04647---	South African Sugar Carriers (PTY) Ltd.: Sugela.
03034---	Swansea Marine Panama S.A.: Olympic Breeze.	04440---	Marine Carriers Corp.: Commander. Producer.	01081---	Skibsaktieselskapet Karlander: Slagen.
04768---	Carbridge Enterprises Ltd.: Sunjarv.	04404---	Lars Rej Johansen: M/S Jofrigo. M/S Jorivka.	04646---	Marlan Corp. Ltd.: Marland.
04759---	Marguardia Compania Naviera S.A.: Atys.	04390---	Titan Intercontinental Carriers, Inc.: Agios Nikolaos III.	04645---	Kulan Corp. Ltd.: Kuland.
04761---	Karaiskaki Compania Naviera S.A.: Nortrans Unity.	04309---	Thiessia Navigation Ltd., Mon- rovia: Thiessia Venizelos.	04644---	Koberg Corp. Ltd.: Koberg.
04762---	Maralma Compania Naviera S.A.: Aegis Fury.	04308---	Arietta Compania Naviera S.A., Panama: Arietta Venizelos.	04643---	Allamanda Ltd.: Burland.
04763---	Codros Shipping Co., Ltd.: Dora Papalios.	04307---	Hariclia Navigation Ltd., Mon- rovia: Hariclia Venizelos.	04632---	Lapeandra Shipping Co. S.A.: Evelpis.
04764---	Estrella Dichosa Navegacion S.A.: Aegis Spirit.	04306---	Ocean Transport Ltd., Monrovia: Helena Venizelos.	04614---	Messabec Limitee: Quebec.
04772---	Speedwell Shipping Co., Ltd.: Aegis Faith. Aegis Pioneer.	04272---	Zodiac Shipping Co. N.V.: M/V Saffoean Amsterdam. M/V Saffoean Adelaide.	04593---	Bow Shipping Corp.: Golar Sanko. Golar Toko. Golar Nikko. Golar Bow. Golar Arrow. Asis Momo.
04773---	Vencedora Transmar Navegacion S.A.: Aegis Pride.	04249---	Panamian Maao Corp.: Araneta Maao.	04621---	Lunmar, S.A.: M/T Spes. M/T Berna.
04785---	Pylareaux Maritime S.A.: Pylareaux.	04248---	Bacolod Panamanian Corp.: Bacolod.	04590---	Cayber Transportation Corp.: Cayber.
04830---	Western Shipping Co., Inc.: Captain Theo.	04288---	Horn Linie: Hornbelt. Hornsee. Hornwolf. Hornwind. Hornmeer. Hornland. Hornstern. Hornberg. Hornkliff.	05397---	Camelot Shipping Ltd.: Golden Jay.
04843---	Reederel Ferdinand Muller: M/V Arete.	03292---	Maritimecor S.A.: Clementina. Pecan.	05537---	Empresa Navegacion Mambisa: El Jigue. 5 de Septiembre. Victoria de Giron. Bahia de Cochinos. Playa Larga. 7 de Noviembre. Comandante Camilo Cienfuegos. Gonzalez Lines. Uvero. Guisa. 13 de Marzo. La Plata. Cerro Pelado. Baire. Imias. Maffo. Jiguani. Pino del Agua. Jose Antonio Echeverria. 30 de Noviembre. Sierra Maestra. Manuel Asuncion. Conrado Benitez. La Lima. Bahia de Nipo. Bahia de Matanzas. Bahia de Mariel. Luis Arcos Bergnes. Las Villas. Pinar del Rio. Habana. Matanzas. Camaguey. Lidia Doce. Bahia de Siguanca. Bahia de Santiago de Cuba. Bahia de Tanamo. Las Mercedes. Minas de Frio. 26 de Julio. Frucuba. Fundador. Clodomira. Combate de Palma Mocha.
04849---	Wicklow Shipping Co., Ltd.: Wicklow.	04185---	Toxotis Compania Naviera S.A. Panama: Agios Spyridon.	05434---	Libra Steamship Corp.: Master Stefanos.
04850---	Ardee Investments Ltd.: Glendalough. Glencaly.	04151---	Uiterwyk Shipping Ltd.: Maria U.	05415---	Lloret y Linares, S.L.: Rio Nansa.
04709---	M.S. Fulla Tunnecke Schiffahrts- gesellschaft, Bremen: M/V Joulla.	04133---	Consolidated Mariners, S.A.: Domina.	05414---	Transportes Frigorificos Mariti- mos, S.A.: Rio Miera. Rio Besaya.
04710---	Tunnecke M.S. Jodonna Schif- fahrtsgesellschaft, Bremen: M/V Jodonna.	04119---	Cia Naviera la Molinera S.A.: M/S La Molinera.		
04711---	M.S. Embla Tunnecke Schiffahrts- gesellschaft, Bremen: M/V Jowood.	04078---	Ina Tankers Corp.: Rosy. Noto.		
04712---	Tunnecke Schiffahrtsgesellschaft M.S. Joquita, Bremen: M/V Joquita.	04009---	Kameve Cia Nav. S.A.: Aegis Star.		
04713---	M.S. Joselin Tunnecke Schiffahrts- gesellschaft, Bremen: M/V Joselin.	04074---	Tankore Corp.: S/S Santander. M/S Weatherly. M/ Buckeye.		
04715---	Olympian Shipping Inc.: M/V Argostar. M/V Argosky.	04075---	Merchants Transport Corp.: S/S San Mateo.		
04718---	Compania de Navegacion Annitsa Inc.: M/V Annitsa L.	04575---	Southern Cross Steamship Co., Inc.: Margarite.		
04760---	Marathonodromos Compania Na- viera S.A.: Aegis Peace.	04574---	Companie Maritima de Sofia S.A.: Sophia.		
04706---	M.S. Joerka Schiffahrtsgesell- schaft Tunnecke, Bremen: M/V Joerka.	04573---	S.A. Pesquera Industrial Gallega: Federico Barreras.		
04708---	M.S. Jogela Tunnecke Schiffahrts- gesellschaft, Bremen: M/V Jogela.	04648---	Universal Bulk Carriers, Ltd.: Lankus.		
04720---	Elmini Line Inc.: M/V Mini Lion.	04568---	United Venture Navigation Co., Ltd.: S/S Grand Trust. S/S Grand Pride. M/V Olympia Faith. M/V Grand Fair.		
04721---	Elmini Lift Inc.: M/V Mini Lift.	04561---	Magnolia Line Inc.: Crystal Kobus. Crystal Pinus. Crystal Magnolia. Crystal Margaret.		
04751---	Fame Shipping Co., Ltd.: Aegis Fame.				
04752---	Banner Shipping Co., Ltd.: Aegis Banner.				
04753---	Coronet Shipping Co., Ltd.: Aegis Trade.				
04754---	Aktor Shipping Co., Ltd.: Miss Papalios.				
04756---	Alkon Shipping Co., Ltd.: Dorine Papalios. Aegis Hope.				
04757---	Nea Hellas Shipping Co., Ltd.: Nea Hellas.				
04522---	Nakamaru Gyogyo Kabushiki Kaisha: Nakamaru No. 1.				

Certifi- cate No.	Owner/operator and vessels	Certifi- cate No.	Owner operator and vessels	Certifi- cate No.	Owner operator and vessels																																														
05413----	Vallum Shipping Co., Ltd.: Mabel Warwick. St. Margaret.		M S Godafoss. M S Ljofafoss. M S Balhafoss. M S Reykafoss. M S Skogafoss. M S Tungufoss. M S Selafoss. M S Lagarfoss. M S Guulfoss. M/S Fjallfoss. M S Bruarfoss.		NT 1031. Radium 634. Radium 632. Radium 631. Radium 630. Radium 629. Radium 628. Radium 627. Radium 626. Radium 625. Radium 624. Radium 622. Radium 621. Radium 620. Radium 619. Radium 618. Radium 617. Radium 616. Radium 615. Radium 617. Radium 616. Radium 615. Radium 614. Radium 613. Radium 612. Radium 611. Radium 610. Radium 609. Radium 608. Radium 607. Radium 606. Radium 605. Radium 604. Radium 603. Radium 602. Radium 601. Radium 600. Radium 599. Radium 598. Radium 597. Radium 596. Radium 595. Radium 594. Radium 593. Radium 592. Radium 591. Radium 590. Radium 589. Radium 588. Radium 587. Radium 586. Radium 585. Radium 584. Radium 583. Radium 582. Radium 581. Radium 580. Radium 579. Radium 578. Radium 577. Radium 576. Radium 575. Radium 574. Radium 573. 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Radium 157. Radium 156. Radium 155. Radium 154. Radium 153. Radium 152. Radium 151. Radium 150. Radium 149. Radium 148. Radium 147. Radium 146. Radium 145. Radium 144. Radium 143. Radium 142. Radium 141. Radium 140. Radium 139. Radium 138. Radium 137. Radium 136. Radium 135. Radium 134. Radium 133. Radium 132. Radium 131. Radium 130. Radium 129. Radium 128. Radium 127. Radium 126. Radium 125. Radium 124. Radium 123. Radium 122. Radium 121. Radium 120. Radium 119. Radium 118. Radium 117. Radium 116. Radium 115. Radium 114. Radium 113. Radium 112. Radium 111. Radium 110. Radium 109. Radium 108. Radium 107. Radium 106. Radium 105. Radium 104. Radium 103. Radium 102. Radium 101. Radium 100. Radium 99. Radium 98. Radium 97. Radium 96. Radium 95. Radium 94. Radium 93. Radium 92. Radium 91. Radium 90. Radium 89. Radium 88. Radium 87. Radium 86. Radium 85. Radium 84. Radium 83. Radium 82. Radium 81. Radium 80. Radium 79. Radium 78. Radium 77. Radium 76. Radium 75. Radium 74. Radium 73. Radium 72. Radium 71. Radium 70. Radium 69. Radium 68. Radium 67. Radium 66. Radium 65. Radium 64. Radium 63. Radium 62. Radium 61. Radium 60. Radium 59. Radium 58. Radium 57. Radium 56. Radium 55. Radium 54. Radium 53. Radium 52. Radium 51. Radium 50. Radium 49. Radium 48. Radium 47. Radium 46. Radium 45. Radium 44. Radium 43. Radium 42. Radium 41. Radium 40. Radium 39. Radium 38. Radium 37. Radium 36. Radium 35. Radium 34. Radium 33. Radium 32. Radium 31. Radium 30. Radium 29. Radium 28. Radium 27. Radium 26. Radium 25. Radium 24. Radium 23. Radium 22. Radium 21. Radium 20. Radium 19. Radium 18. Radium 17. Radium 16. Radium 15. Radium 14. Radium 13. Radium 12. Radium 11. Radium 10. Radium 9. Radium 8. Radium 7. Radium 6. Radium 5. Radium 4. Radium 3. Radium 2. Radium 1.	05412---- Prince Shipping Co., Ltd.: Atlantic Prince.	05409---- A/S Standard: Stalheim.	05408---- Dolphin Navigation Co., Inc.: Dolphin.	05404---- Estrella Naciente Navegacion S.A., Panama: Messiniaki Minde.	05409---- Stratford Shipping Ltd.: Golden Falcon.	05400---- Okinawa Sanyo Gyogyo Kabushiki Kaisha: Sanyo Maru No. 38.	05393---- Okinawa Relto Suisan Kabushiki Kaisha: No. 28 Takuyo Maru. No. 18 Takuyo Maru.	05382---- Varnima Corporation of Panama: Manuella.	05372---- Rowan Drilling Co., Inc.: Rig No. 1. Rig No. 3. Rig. No. 14. Rig. 4. Drilling Tender Rowan I. Drilling Tender Rowan II.	05366---- Mr. Kinichi Sakagami: M/S Koyo Maru No. 23. M/S Koyo Maru No. 25. M/S Koyo Maru No. 17.	05365---- Hokko Kaiun Kabushi Kaisha: M/S Koei Maru No. 22. M/S Wakashio Maru No. 21. M/S Koei Maru No. 28.	05339---- Skymar Shipping Ltd.: Aries.	05298---- Erich Drescher: Ede Marmstorf. Ede Willstorf. Ede Sottorf.	05297---- Caribbean Navigation Co., Ltd.: Silvaplane. Netta. Tapanaahony.	05054---- Panama Overseas Shipping Co., Inc.: Conqueror.	05274---- Fluor Drilling Services, Inc.: Wodeco IV. Mr. Gus II. Mr. Sam. Mr. Arthur. Wodeco I. Rig 56. Wodeco II.	05272---- Movable Offshore, Inc.: Movable No. 1. Movable DB2. Rig No. 2. Rig No. 3. Movable CB-1. Movable CB-7.	05205---- Bluestar Shipping Co., Ltd.— Nicosia: Bluestar.	05167---- Consorcio Naviero Peruano S.A.: Lima. Piura. Ica. Cuzco.	05164---- Norfolk Dredging Co.: The Virginian. Pullen. Talcott. Stuart.	05032---- Talisay Corp. of Panama: M/V Talisay.	05018---- Amerada Hess Shipping Corp.: Good Hope.	05089---- H. F. Elmskipafelag Islands: M/S Laxfoss. M/S Dettifoss.	05141---- Drechtshipp N.V.: Ayedrecht. Mijrecht. Moordrecht.	05245---- Blaechjerg & Co.: Crystal Scan. Polar Scan. Frigo Scan. Freezer Scan. Reefer Scan. Cooler Scan. Titan Scan. Unit Scan. Atlas Scan. Hercules Scan.	03533---- Rederi AB Wallstar: Obcron. Anlara.	03575---- Interessentkapet Byggenr. 105 Moss: Reald Amundsen.	03628---- Canada Maritime S.A.: Ithaca Trader.	03629---- Avenier Maritime S.A.: Stolt Atlantic.	03632---- A/S Turid: Hovin. Frol. Ferra. Skauma.	03687---- Tank Barge 33, Inc.: Cedar.	05025---- Goodwood Shipping, Inc.: Mahogany.	05024---- Continental Shipping, Inc.: Constance.	05009---- (Cayman) Island Shipping Co. Ltd.: Island Prince III.	05007---- Northern Transportation Co., Ltd.: Angus Sherwood. AS 3. AS 2. AS 1. NT 1503. NT 1507. NT 1506. NT 1505. NT 1504. NT 1503. NT 1502. NT 1501. NT 1024. NT 1023. NT 1022. NT 1021. NT 1020. NT 1019. NT 1018. NT 1017. NT 1016. NT 1015. NT 1014. NT 1013. NT 1012. NT 1011. NT 1010. NT 1009. NT 1003. NT 1007. NT 1006. NT 1005. NT 1004. NT 1003. NT 1002.	03431---- K.K. Otake Zosen-Sho: Daitoku-Maru.	03432---- Ryutoku Kaiun Kabushiki Kaisha: Ryukomaru. Ryujimaru. Ryuyomaru. Ryuchomaru.	03436---- San Shin Kisen K.K.: Jingu Maru. Kurichibu Maru.	03495---- Shinwa Kisen Kabushiki Kaisha: Shincho Maru. Shinwa Maru. Kaiyu Maru.	03738---- Shibusakikokai Herva Horiof- son Shipping Co. A/S P.D. Horiofson Shibusakikokai Olegross: M/S Bulk Venture.	03732---- Interessentkapet Norbeth: Norbeth.	03324---- Towa Kisen Kabushiki Kaisha: Tonichi Maru.	03304---- Aggeliki Charis Compania Mari- tima S.A.: Angelle Grace.	03323---- Hudson Waterways Corp.: Transpanama. Transindiana. Transoregon. Transidaho. Transhawaii. Transerie. Transhuron. Transuperior. Transglebe. Transcolorado. Transcolumbia. Transchampaign. Transnelda. Seatrains San Juan. Transontario. Seatrains Delaware.	03393---- Compania Shell de Venezuela Ltd.: Shell Murachi. Shell Charaima. Shell Caricuso. Shell Naiguata. Shell Aramare. Shell Mara.	03397---- Hilmar Bolstad: T/T Vespeidan. T/T Arrian. M/T Majorian. T/T Lucian. T/T Cyprian.

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	T/T Hadrian. T/T Julian. T/T Valentinian. T/T Gratian. T/T Clementine Churchill. T/T Sir Winston Churchill. T/T King Haakon VII T/T Aurelian. T/T Nerva. M/S Trajan.		Ore Transport. Ore Titan. Ore Mercury. Ore Jupiter. Ore Venus. Ore Meteor. Ore Neptune. Ore Saturn. Ore Monarch. Ore Prince. Ore Meridian.	02705---	Komrowski Befrachtungskontor K.G.—As Managing Owner for Partenreeder M/S Bar- ber Mangan:
03400---	Nicolas J. Vardinoyannis: Demosthenes V. Pyrros V. Neil Armstrong. Theodoros V. Iosif V. Eleni V. Georgios V.	03283---	Galbraith Wrightson Ltd.: Vianna.	02498---	United States Steel Corp.: D. G. Kerr. Arthur M. Anderson. Cason J. Callaway. Philip R. Clarke. Benjamin F. Fairless. A. H. Forbert. Leon Fraser. Irving S. Olds. Enders M. Voorhees. Sewell Avery. Robert C. Stanley. William A. Irvin. Governor Miller. Ralph H. Watson. John Hulst. Thomas W. Lamont. Eugene P. Thomas. Eugene W. Pargay. Homer D. Williams. Horace Johnson. B. F. Affleck. Joshua A. Hatfield. Richard V. Lindabury. D. M. Clemson. William A. McGonagle. August Ziesing. James A. Farrell. Percival Roberts, Jr. Richard Trimble. George G. Crawford. William J. Filbert. William P. Palmer. Eugene J. Buffington. Alva C. Dinkley. J. P. Morgan, Jr. William B. Schiller. Thomas F. Cole. Henry Phipps. Henry H. Rogers. Peter A. B. Widener. Clifford F. Hood. John G. Munson. George A. Sloan. Calisto II. Myron C. Taylor. T. W. Robinson. Rogers City. Irvin L. Clymet. W. F. White. Geneva. Columbia. Derrick Boat No. 2. John H. Elliott. B. F. Fairless.
03414---	Biko Kisen Kabushiki Kaisha. Biko Maru. Shosel Maru. Horyu Maru. Hoei Maru. Hoko Maru.	03295---	Huron Cement Division National Gypsum Co.: J. A. W. Ighart. S. T. Crapo. E. M. Ford. J. B. Ford. P. H. Townsend. L. G. Harriman. Samuel Mitchell.		
03415---	Chiyoda Kisen K.K.: Chikugo Maru. Shima Maru. Jujo Maru. No. 12 Toyota Maru. Wakaura Maru. Caledonia Maru. Astoria Maru. Miku Ni Maru. Mikasa Maru. Nagaura Maru. Anakan Maru. Wakatake Maru. Mishima Maru.	03303---	Sanmamas Compania Maritima S.A.: Captain Diamantis. Klosters Rederi A/S: Trailer Express.		
03416---	Chuyo Kyodo Kisen K.K.: Akishima Maru.	01067---	Neptune Maritime Co. of Mon- rovia: Katherine. Evi.		
03418---	Daiichi Senpaku K.K.: Muko Maru. Takatori Maru. Rokko Maru. Maya Maru. Peking Maru. Shang Hai Maru.	01152---	Marvalor Sociedad de Transportes S.A.: Don Manuel.		
03433---	Hiroumi Kisen Kabushiki Kaisha: Japan Carryall.	01209---	Partenreeder Ingva Bastian: Ingva Bastian.		
03229---	Palamedes Compania Naviera S.A. of Panama: North Empress.	01216---	Interessentskapet Melsonvik: Melsonvik.		
03473---	Nippon Shoun K.K.: Tohnanmaruno. 8. Tohnanmaruno. 10.	01278---	Leonhardt & Blumberg: Adolf Leonhardt. Otto Leonhardt. Klaus Leonhardt. Finn-Leonhardt. Helde Leonhardt. Marie Leonhardt. Ingrid Leonhardt. Frank Leonhardt. Bernd Leonhardt. August Leonhardt. Marita Leonhardt.		
03230---	Principe Compania Naviera S.A. of Panama: North Princess. North Highness.	01283---	Atlanta Maritima S.A.: Polyxene C.		
03231---	Priam Compania Naviera S.A. of Panama: North Lord.	01284---	Standard Ocean Carriers S.A.: Aegean Neptune.		
03240---	Prado Compania Naviera S.A. of Panama: Victoria I. Destrehan.	01286---	Oceanways Carriers S.A.: Aegean Triton.		
03269---	Sorodisi Compania Naviera S.A., Panama: Cape Nerita.	01288---	Elmarina Inc.: Marina L. Capt. George L.		
03276---	Universe Tankships, Inc.: Universe Kure. Universe Aztec. Universe Appolo. Universe Daphne. Universe Leader. Universe Commander. Harold H. Helm. Universe Admiral. Universe Defiance. George Champion. Frisia. Universe Defender. Phoenix. Petro Pan. Ore Chief.	01289---	Elnaval Inc.: Peter L.	02201---	International Harvester Co.: The International.
		01291---	Elcapitaine Inc.: Fotini L.	01145---	Det Gergenske Dampskibsselskab: Nordstjernen. Team Vega. Estrella. Leda. Crux. Meteor. Polarys. Nordlys. Midnatsol. Ursa. Ara. Uranus. Sirius. Deneb. Canis. Iris. Team Castor. Team Pollux.
		01292---	Elmotores Inc.: Julia L.		
		01293---	Elcommodore Inc.: Marka L.	01054---	Wilhelm Wilhelmsen: Talleyrand. Turcoman. Tonsberg.
		01295---	Elprimero Inc.: Evy L.		
		01296---	Elseguro Inc.: Janice L.		
		02287---	International Union Lines Ltd.: Union Leader. Union Defender. Union Venus. Union Progress. Union Glory. Union Wisdom. Union Friendship. Union Expansion.		
		02222---	Pythagoras Navegacion S.A.: Genie.		
		02223---	Aristofle Navigation Co., Ltd.: Agios Vlasios V.		

**Certifi-
cate No. Owner/operator and vessels**

Tysla.
Tyr.
Turandot.
Tungsha.
Tulane.
Tugela.
Troubadour.
Trinidad.
Tricolor.
Trianon.
Traviata.
Trafalgar.
Toulouse.
Talisman.
Talabot.
Tai Ping.
Taimyr.
Taiko.
Tagus.
Tagaytay.
Troll Forest.
Tanabata.
Takara.
Teheran.
Tuareg.
Troms.
Toscana.
Toluma.
Titus.
Tibetan.
Tiberius.
Templar.
Taurus.
Tarim.
Tamano.
Tabriz.
Tortugas.
Torrens.
Toronto.
Toro.
Toreador.
Toledo.
Titania.
Tiranna.
Tijuca.
Tiber.
Thermopylae.
Themis.
Theben.
Texas.
Terrier.
Tennessee.
Temerlare.
Tema.
Tatra.
Taronga.
Tarn.
Tarantel.
Tancred.
Tampa.
Tamerlane.
03735---- Penrod Drilling Co.:
Penrod 51.
Penrod 53.
Penrod 54.
Penrod 50.
Penrod 56.
Penrod 57.
Penrod 48.
Penrod 46.
Penrod 43.
Penrod 44.
Penrod 47.
Penrod 42.
03734---- Santa Fe Marine, Inc.:
Blue Water No. 2.
03733---- Great Lakes Dredge & Dock Co.:
G.L. No. 40.
G.L. No. 41.
G.L. No. 42.
G.L. No. 43.
G.L. No. 90.
G.L. No. 91.
G.L. No. 92.
G.L. No. 93.
G.L. No. 94.

**Certifi-
cate No. Owner/operator and vessels**

G.L. No. 95.
G.L. No. 65.
G.L. No. 61.
John A. Downa.
G.L. 134.
G.L. 136.
No. 53.
No. 143.
No. B-23.
No. 59.
No. 152.
No. B-23.
M-31.
Duplex.
Puerto Rico.
03729---- Halliburton Co.:
Halliburton-101.
Halliburton-103.
Halliburton-104.
Welch-601.
Welch-602.
Welch-603.
Welch-604 (MEMI).
03730---- Brown & Root, Inc.:
L. B. Meaders.
Bar-267.
Bar-297.
George R. Brown.
Foster Parker.
H. A. Linday.
Bar-278.
Bar-289.
Bar-282.
M-211.
Shell No. 1.
Bar-280.
MM-262.
MM-240.
Bar-266.
M-228.
Bar-64.
L. T. Bolln.
M-213.
M-233.
M-298.
Carl Burkhardt.
T. K. Montgomery.
B. L. Frenneccon.
03890---- Seaways Shipping Co.:
M/V Melvin H. Baker.
03891---- Inverness Shipping Co.:
M/V Inverness.
03892---- Dartmouth Shipping Co.:
M/V Dartmouth.
03893---- Skarup Shipping Corp., Manag-
ing Agent:
M/V Morven.
03926---- Harumi Senpaku Kabushiki Kai-
sha:
Munakata Maru.
02004---- Rederiet for MS Columbialand:
Columbialand.
G.L. No. 62.
G.L. No. 63.
G.L. No. 64.
G.L. No. 69.
G.L. No. 69.
G.L. No. 57.
G.L. No. 58.
G.L. No. 59.
Alaska.
G.L. No. 15.
G.L. No. 16.
G.L. No. 17.
G.L. No. 89.
G.L. No. 81.
New York.
G.L. No. 11.
G.L. No. 12.
G.L. No. 13.
G.L. No. 14.
Crest.
G.L. No. 5.
G.L. No. 6.
G.L. No. 9.
G.L. No. 10.
No. 54.

**Certifi-
cate No. Owner/operator and vessels**

G.L. No. 7.
G.L. No. 8.
Telede.
G.L. 1.
G.L. 2.
G.L. 3.
G.L. 4.
No. 9.
Georgia.
Cleveland.
G.L. 72.
Boston.
Chicago.
G.L. 73.
No. 53.
No. 59.
Megul.
G.L. 70.
G.L. 71.
No. 27.
No. 59.
G.L. 52.
Algenquin.
Central.
No. 53.
No. 23.
No. 30.
Drillboat No. 7.
No. 103.
William P. Feeley.
G.L. 137.
02018---- Warwick Tanker Co., Ltd.:
Brandon Priory.
Bldford Priory.
02123---- Ocean Gas Transport Ltd.:
Foreday.
Humboldt.
Clark-Maxwell.
02130---- Empire Transport Co., Ltd. and
Houlder Line Ltd.:
Ocean Transport.
Swan River.
02131---- Houlder Line Ltd.:
Boyton Grange.
Hardwicke Grange.
Oswestry Grange.
Stolt Grange.
02132---- South American Saint Line Ltd.:
St. Merrick.
02133---- Pickands Mather & Co.:
Walter B. Watson.
Samuel Mather.
Robert Hobson.
Col. James Pickands.
Henry G. Dalton.
Willis B. Boyer.
L. G. Grace.
Frank Armstrong.
Charles M. Schwab.
Harry Coulby.
Liten Hoyt 2d.
J. L. Mauthe.
H. C. Jackson.
Chas. M. Beeghly.
John Sherwin.
02170---- Karen Shipping Co., Ltd.:
Zaira.
02197---- Matson Navigation Co.:
S/S Hawaiian Progress.
S/S Hawaiian Enterprise.
S/S Hawaiian Monarch.
S/S Hawaiian Queen.
S/S Hawaiian.
S/S Californian.
S/S Pacific Banker.
S/S Pacific Trader.
S/S Hawaiian Citizen.
S/S Hawaiian Legislator.
S/S Hawaiian Motorist.
S/S Hawaiian Farmer.
S/S Hawaiian Merchant.
S/S Hawaiian Rancher.
S/S Hawaiian Refiner.
M/V Hawaiian Princess.
Islander.
S/S Eagan.

NOTICES

<i>Certifi- cate No.</i>	<i>Owner/operator and vessels</i>	<i>Certifi- cate No.</i>	<i>Owner/operator and vessels</i>	<i>Certifi- cate No.</i>	<i>Owner/operator and vessels</i>
01045---	Reinante Transoceanica Naviga- cion S.A.: Apiliotis.	02541---	Komar General Enterprises S.A. of Panama: Kaliopi Yemelos.		Barge PS 201. Barge PS 202. Barge 253. Barge 254. Barge 255. Barge 256. Barge Mountain Hood. Barge Florence.
03739---	Venore Transportation Co.: Oswego Venture.	02542---	Pellicon Marine Enterprises Ltd. of Cyprus: Paraskevi Yemelos.		Santa Fe-Pomero, Inc.: Seminole. Derrick Barge No. 05. ZB-19. Derrick Barge No. 125. Redwood V. Pacific Giant. YC-1384. YFN-1161. Redwood II. Cherokee. Choctaw.
03753---	Canadian Transport Co., Ltd.: Nootka Carrier. Nanoose Carrier. Nahmint Carrier.	02569---	Bournemouth Shipping Co., Ltd.: Bournemouth.	03715---	
03841---	American Export Isbrandsten Lines, Inc.: Flying Cloud. Exbrook. Exford. Exchester. Executor. Exporter. Epeditor. Flying Endeavor. Flying Hawk. Export Adventurer. Export Aide. Export Agent. Flying Clipper. Flying Enterprise II Export Banner. Export Bay. Export Builder. Export Buyer. Export Commerce. Export Challenger. Export Champion. Export Courier. Container Forwarder. Container Despatcher. C/V Staghound. C/V Lightning. C/V Sea Witch. Atlantic. Constitution. Independence.	02571---	Dover Shipping Co., Ltd.: Dover.		
		02573---	Cardiff Shipping Co., Ltd.: Cardiff.		
		02579---	Gadot Yam Ltd.: Chemical Enterprise.		
		03737---	Interocean Shipping Co.: Oswego Freedom. Oswego Defender. Oswego Reliance.		
		03738---	Marven Steamship Corp.: Oswego Independence. Oswego Liberty.		
		02500---	Collier Carbon and Chemical Corp.: Kenal.	03716---	Dunbar & Sullivan Dredging Co.: Omadhoun. Toledo. Handy Andy. Dunbar. Iroquois. No. 29. Empire. Sullivan. Alabama. No. 117. No. 116. JK80-440. No. 16. No. 12. 121. 120. Scow No. 11. Napper Tandy. Niagara. Cherokee. DS 15. DS 14. Dunbar II. 119. 118.
		02519---	S.A. Louis Dreyfus & Cie.: Leopold L.D.		
		02520---	Northern Petroleum and Bulk Freighters Ltd.: Wearfield. Avonfield.		
		02529---	Pacific Bulk Carriers Ltd.: August Pacific. Amber Pacific.		
		02530---	Chowgule Steamships (Bahamas) Ltd.: Maratha Envoy.	04462---	Empresa Nacional Elcano de la Marina Mercante S.A.: Artico.
		02539---	Cordial Shipping Co. of Liberia: Kostantis Yemelos.	04465---	Ohyashima Enyo Gyogyo Kyodo Kumiai: Kalkatamaru No. 80.
		02540---	Yemelos Marine Enterprises S.A. of Panama: Marigo Yemelos.	01816---	The Bowater Steamship Co., Ltd.: Nicolas Bowater. Gladys Bowater. Constance Bowater. Elizabeth Bowater. Phyllis Bowater. Nina Bowater.
03842---	Mediterranean Marine Lines, Inc.: Great Republic. Defiance. Young America. Red Jacket.	02203---	The Superior Oil Co.: Arcadia. Barge 14. Barge No. 22. W. M. Keck, Sr.	05454---	Samelet M/S Gol: Gol.
03843---	Victory Carriers, Inc.: Mankato Victory. Jefferson City Victory. Longview Victory. Northwestern Victory.	03726---	Brown & Root, S.A.: B&R—HM 7. B&R—HM 2. Atlas 1. Bar 279.	01677---	Santiago Steamship Co., Ltd.: Santiago.
01874---	A/S Sobral: Nopal Trader. Algocen. Agawa Canyon. Algorail. Sir Denys Lowson. Roy A. Jodrey. E. B. Barber. Michipicoten. A. S. Glossbrenner. V. W. Scully.	03720---	Global Marine Inc.: Cuss I. Glomar II. Glomar III. Glomar IV. Glomar V. Glomar Sirte. Glomar Tasman. Glomar North Sea. Glomar Grand Isle. Glomar Conception. Glomar Challenger. Western Explorer.	01676---	Compania de Navegacion Yavisa S.A.: San Nicolaos.
03856---	Mercuria Transportation Co., Inc.: Gem.	02428---	The Kinsman Marine Transit Co.: George E. Seedhouse. Merle M. McCurdy. Kinsman Independent. Kinsman Enterprise. Henry Steinbrenner. Buckeye Monitor. Paul L. Tietjen. Henry Laliberte. Uhlmann Brothers. George M. Steinbrenner. R. E. Webster. Kinsman Voyager. James E. Ferris.	01678---	Maremblesma Navegacion S.A.: Mina L. Cambanis.
03867---	Dasco Compania Naviera S.A. of Panama: Nicolaos.			04189---	Fullmoon Maritime Corp.: Fullmoon.
03868---	Stanipa Compania Naviera S.A. of Panama: Elena.			03535---	Herlofson Shipping Co. A/S Skib- saktieselskapet Herva: M/T Tank Duchess.
03869---	Silver Coast Shipping Co., Ltd. of Cyprus: Silver Coast.			01908---	The Union-Castle Mail Steamship Co., Ltd.: Rotherwick Castle. Rotheray Castle. Tintagel Castle. Tantallon Castle.
03871---	Greeksea Shipping Co. S.A. of Panama: Silver Sea.	02440---	Johs. Hansen's Rederi A/S: M/T Ellen.	03731---	Brown & Root, Inc., T. L. James & Co., Inc., and Raymond Inter- national Co., Inc., doing busi- ness as Tammany Leasing Co.: LB-1. TLC-9.
03872---	Silver Hope Shipping Co., Ltd. of Cyprus: Silver Hope.	03708---	Puget Sound Tug & Barge Co.: Tug Active. Barge 155. Barge 156. Barge 157.		
03880---	Societe Maritime & Commerciale S.A.: La Turbie. Roquebrune.				
03889---	Iron Ore Transport Co., Ltd.: S/S Sept Iles.				

**Certifi-
cate No. Owner/operator and vessels**

TLC-17.
TLC-24.
TLC-39.
LB-7.
TLC-22.
TLC-14.
TLC-2.
TLC-3.
TLC-19.
LB-18.
TLC-15.
TLC-31.
TLC-32.
TLC-33.
TLC-34.
TLC-35.
TLC-36.
TLC-38.
TLC-27.
TLC-28.
TLC-13.
TLC-21.
TLC-25.
TLC-29.
TLC-26.
TLC-20.
LB-11.
TLC-30.
TLC-12.
TLC-37.
LB-10.
03058--- The American Oil Co.:
Amoco Missouri.
Amoco A-52.
Amoco A-51.
Amoco A-55.
Amoco A-56.
Amoco A-54.
Amoco A-53.
Amoco 6.
Amoco 5.
Amoco 4.
Amoco 3.
Amoco 2.
Amoco 1.
Amoco 300.
Amoco 7.
Amoco 10.
Amoco 11.
Amoco 9.
Amoco Wisconsin.
Amoco Illinois.
Amoco Indiana.
04595--- Antillean Carriers N.V.:
Antillian Baron.
Antillian Tiger.
Antillian Brewer.
Antillian Hawk.
Antillian Star.
03446--- Kinsai Kisen K.K.:
Kanekiyo-Marui.
03007--- Partrederiet for M/S Mignon:
Mignon.
04716--- Jason Shipping Inc.:
Argo Master.
03491--- Satokuni Kisen K.K.:
M/S Kiccho Maru.
M/S Kichiei Maru.
04548--- Mr. Yasohachi Nakamura:
Kaiomaru No. 32.
Kaiomaru No. 35.
03429--- Hakodate Shosen K.K.:
Hakodate Maru No. 1.
Hakodate Maru No. 2.
Yoho Maru.
05346--- Sociedad Anonima de Navegacion
Petrolera:
Punta Arenas.
Magallanes.
Cabo de Hornos.
Cabo Tamar.
01096--- Anglo Norrness Shipping Co., Ltd.:
Naess Talisman.
Naess Parkgate.
Naess Pioneer.
05455--- Samelet M/S Fro:
Fro.

**Certifi-
cate No. Owner/operator and vessels**

01634--- Star Financing Ltd.:
Atlantic Empress.
02499--- Union Oil Company of California:
P. O. 2301.
P. O. 2702.
P. O. 2701.
P. O. 2003.
P. O. 2003.
P. O. 1902.
P. O. 1901.
L. W. Sweet.
Pure Oil.
Lompca.
Santa Maria.
Avila.
David D. Irwin.
Sansinena.
Lake Palourde.
05275--- Fluor Ocean Services, Inc.:
DB 5.
WB 110.
DB 4.
WB 103.
RB 2.
DB 3.
DB 6.
WB 102.
WB 101.
WB 107.
WB 103.
WB 103.
Ranger.
Sanford No. 2.
02129--- Ore Carriers Ltd.:
Orecca.
Oremina.
Oreola.
Orella.
Oreclian.
Orepton.
Joya McCance.
Orotava Bridge.
01623--- Everglades Shipping Company of
Panama S.A.:
Atlantic Merchant.
01534--- Little Bear S.A.:
Grecian Light.
01535--- Compania Roblen de Oro S.A.:
Grecian Flame.
01536--- Compania Maritima Villa Nova
S.A.:
Grecian Isles.
01537--- Compania Ultramarine S.A.:
Ocean Seigneur.
01538--- Compania Armadora Pegasus S.A.:
Ocean Pegasus.
01539--- Compania Mare Nostrum S.A.:
Ocean Triton.
01540--- Aquila Tankers S.A.:
Golden Arrow.
01541--- Legend Maritime Corp.:
Grecian Legend.
04289--- Dixie Carriers, Inc.:
Eastern-4.
Drake 932.
Dixie Vanguard.
B-23.
B-23.
B-27.
B-26.
B-25.
B-24.
NEC-1019.
DXE-3006.
B-1014.
Superior.
Erie.
B-19.
Dobbie.
DXE-103.
DXE-102.
DXE-101.
DXE-75.
Chemical-803.
DXE-900-T.
DXE-1103.
DXE-1103.

**Certifi-
cate No. Owner/operator and vessels**

DXE-1167.
DXE-1166.
DXE-1165.
DXE-1104.
ETT-111.
ETT-110.
ETT-103.
ETT-103.
ETT-107.
Chemical-810.
DXE-1501.
No. 1163.
No. 1162.
No. 1101.
ETT-103.
ETT-103.
ETT-103.
ETT-104.
ETT-102.
ETT-101.
APW-101.
Offshore-1402.
Offshore-1401.
Chemical-102.
Chemical-101.
DXE-531.
DXE-23.
B-117.
Colle-151.
Colle-153.
TTC-1.
CCH-302.
CCH-303.
DXE-25.
DXE-24.
DXE-23.
DXE-27.
DXE-10.
DXE-13.
D-204.
AEC-2312.
AEC-2311.
DXE-2309.
DXE-2305.
DXE-2304.
DXE-2303.
DXE-2302.
DXE-2301.
DXE-23.
DXE-28.
JCS-4000.
BTT-973.
B-321.
B-421.
DXE-22.
DXE-21.
Rockwood.
Offshore-2405.
Offshore-2404.
Offshore-2403.
Offshore-2402.
Offshore-2391.
DXE-3005.
DXE-3004.
DXE-3003.
DXE-3001.
02372--- Marine Carriers Co. S.A.:
Fance.
02377--- Itolika Compania Naviera S.A.:
Argella.
02331--- S.A. Compania de Inversiones
S.A.:
Dimitra.
02393--- Orient Sea Transport S.A.:
Orient Star.
02393--- Orient Mid-East Lines, Inc.:
Orient Liner.
02421--- Yankonauch Steamships Ltd.:
Yankonauch.
02223--- Socrates Navegacion S.A.:
Dona Rita.
02230--- Prometheus Navegacion Co. Ltd.:
Evgenia.
02231--- United Sea Carriers, Ltd.:
Silver Star.

NOTICES

<i>Certificate No.</i>	<i>Owner/operator and vessels</i>	<i>Certificate No.</i>	<i>Owner/operator and vessels</i>
02302----	First Steamship Co., Ltd.: Ever Life. Ever Success. Ever Sureness. Ever Peace. Ever Faith. Ever Honor. Ever Reliance.		Esso San Francisco. Esso Houston. Esso New Orleans. Esso Boston. Esso Baltimore. Esso Lexington. Esso Jamestown. Esso Washington. Esso Gettysburg. Esso Seattle. Esso Lima. Esso Dallas. Esso Huntington. Esso New York. Esso Florence. Esso Newark. Esso Bangor. Esso Chester. Esco Gloucester. Esso Miami. Esco Port Everglades. Esso 5. Esco 100 ^b . Esso 268. Esso Connecticut. Esso 30. Esso 29. Esso 118. Esso 119. Esso Tow No. 1. Esso 204. Esso 209. Esso 202. Esso 203. Esso 207. Esso 208. Esso Pennsylvania. Esso W. Virginia. Esso 9. Esso 12. Esso 13. Esso 14. Esso 15. Esso 16. Esso 17. Esso 18. Esso 22. Esso 23. Esso Tennessee. Esso 253. Esso 257. Esso 258. Esso Arkansas. Esso 111. Esso 117. Humble 823. Humble 866. Esso Fuel Oil. Humble 839. Humble 840. Humble 841. Humble 120. Humble 101. Humble 831. Humble 832. Humble 833. Humble 834. Humble 835. Humble 836. Humble 837. Humble 838. Esso 110. Esso 33.
02340----	Esperide Societa di Navigazione S.P.A.: M/S Gemini.		
02343----	Soc. Off. G. Malvicini—Vapori: San Felice.		
02356----	Seaside Navigation Co. S.A.: Georgios Paravalos.		
02366----	Canadian Pacific Railway: Princess Patricia. Princess Marguerite. Empress of Canada. Beaverelm.		
02228----	Bambi Navegacion S.A.: Dona Ourania.		
02224----	Thoukidides Navegacion S.A.: Dona Alexandra.		
02225----	Euripides Navegacion S.A.: Dona Katerina.		
02227----	Hermes Navegacion S.A.: Dona Marika.		
02202----	Humble Oil & Refining Co.: Humble DB-1 (173). Humble ST-10. Humble ST-12. Esso 222. Esso 31. Esso 220. Esso 236. Esso 237. Humble 847. Esso 238. Esso 32. Esso 221. Esso 229. Esso 230. Esso 241. Esso 213. Esso 214. Esso 233. Esso 234. Esso 227. Esso 228. Esso 239. Esso 242. Esso 235. Esso 225. Esso 226. Esso 219. Esso 217. Esso 205. Esso 210. Esso 211. Esso 212. Esso 201. Esso 206. Esso 224. Esso 266. Esso 267. Esso 24. Esso 25. Esso 26. Esso 223. Esso 231. Esso 232. Esso 240. Esso 215. Esso 216. Esso Baton Rouge. Esso Philadelphia.		

By the Commission.

FRANCIS C. HURNEY,
Secretary.

[FR Doc.71-4860 Filed 4-8-71;8:45 am]

INTERIM COMPLIANCE PANEL
(COAL MINE HEALTH AND SAFETY)

JOHNS CREEK ELKHORN COAL CORP.

Application for Renewal Permit; Notice of Opportunity for Public Hearing

Application for a Renewal Permit for Noncompliance with the Interim Mandatory Dust Standard (3.0 mg./m.³) has been received for consideration as follows:

(1) ICP Docket No. 10288, Johns Creek Elkhorn Coal Corp., Mine No. 2, USBM ID No. 15 02101 O, Kimper, Filco County, Ky., section ID No. 001 (No. 2 main), section ID No. 002 (1st right main).

In accordance with the provisions of section 202(b)(4) of the Federal Coal Mine Health and Safety Act of 1969 (83 Stat. 742, et seq., Public Law 91-173), notice is hereby given that requests for public hearing as to an application for renewal may be filed within 15 days after publication of this notice. Requests for public hearing must be completed in accordance with 30 CFR Part 505 (35 F.R. 11296, July 15, 1970), copies of which may be obtained from the Panel on request.

A copy of the application is available for inspection and requests for public hearing may be filed in the office of the Correspondence Control Officer, Interim Compliance Panel, Suite 800, 1730 K Street NW., Washington, DC 20006.

GEORGE A. HORNBECK,
Chairman,
Interim Compliance Panel.

APRIL 5, 1971.

[FR Doc.71-4947 Filed 4-8-71;8:46 am]

FEDERAL POWER COMMISSION

[Docket No. RM71-888, etc.]

SUN OIL CO. ET AL.

Order Providing for Hearing on and Suspension of Proposed Changes in Rates, and Allowing Rate Changes To Become Effective Subject to Refund¹

MARCH 31, 1971.

Respondents have filed proposed changes in rates and charges for jurisdictional sales of natural gas, as set forth in Appendix A below.

The proposed changed rates and charges may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

¹ Does not consolidate for hearing or dispose of the several matters herein.

The Commission finds: It is in the public interest and consistent with the Natural Gas Act that the Commission enter upon hearings regarding the lawfulness of the proposed changes, and that the supplements herein be suspended and their use be deferred as ordered below.

The Commission orders:

(A) Under the Natural Gas Act, particularly sections 4 and 15, the regulations pertaining thereto (18 CFR Ch. I),

and the Commission's rules of practice and procedure, public hearings shall be held concerning the lawfulness of the proposed changes.

(B) Pending hearings and decisions thereon, the rate supplements herein are suspended and their use deferred until date shown in the "Date Suspended Until" column. Each of these supplements shall become effective, subject to refund, as of the expiration of the suspension period without any further action by the respondent or by the Commission. Each respondent shall comply

with the refunding procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder.

(C) Unless otherwise ordered by the Commission, neither the suspended supplements, nor the rate schedules sought to be altered, shall be changed until disposition of these proceedings or expiration of the suspension period, whichever is earlier.

By the Commission.

[SEAL] KENNETH F. PLUMIE,
Acting Secretary.

APPENDIX A

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until	Contingency		Rate in effect to date of suspension
									Rate in effect	Proposed increase	
RI71-883...	Sun Oil Co.	243	1	Natural Gas Pipe Line Co. of America (High Island Field, Offshore Texas).	\$35,812	3-1-71		10-2-71	\$12.5	\$21.25	
		352	11	United Gas Pipe Line Co. (Ridge Field Lafayette and Vermilion Parishes) (Southern Louisiana).	172,039	3-1-71		10-10-71	12.5	\$23.44	
		374	19	United Gas Pipe Line Co. (Gibson Field, Terrebonne Parish) (Southern Louisiana).	212,657	3-1-71		10-10-71	\$12.5	\$22.375	
RI71-889...	Texas Gas Exploration Corp. et al.	3	5	Texas Gas Transmission Corp. (Perry et al. Fields, La Fourche and Vermilion Parishes) (Southern Louisiana).	113,070 17,477	3-1-71 3-1-71		10-10-71 4-23-71	\$12.0 20.025	\$23.3 \$22.375	
		4 77	4 10	Transcontinental Gas Pipe Line Corp. (Southeast Graydon Field) (Vermilion Parish) (Southern Louisiana).	8,334 219	3-1-71 3-3-71		4-23-71 10-19-71	20.025 12.75	\$22.375 \$20.75	RI69-314
RI70-1744	Getty Oil Co. et al.	11	18	Tennessee Gas Pipeline Co., a division of Tenneco Inc. (Various Fields, Colorado et al. Counties, Tex., R.R. District No. 3).	(315)	3-2-71	12-2-70	Accepted	\$10.6210	\$10.6225	RI70-1744
RI70-1743	do	12	14	do	(381)	3-2-71	12-2-70	Accepted	10.9210	\$10.9225	RI70-1743
RI71-1	Getty Oil Co.	183	1	Franklin Gas Co. (South 83 Bearhead Creek Field) (Beauregard Parish) (Southern Louisiana).	21,423	3-4-71		10-12-71	12.5	\$12.11	
RI71-892	Roger H. Ogden and George W. Schneider, Jr.	1	2	United Gas Pipe Line Co. (Chouvin Field, Terrebonne Parish) (Southern Louisiana).	5,025	3-1-71		10-10-71	22.0	\$21.25	
RI71-893	Pect Oil Co. et al.	1	13	Transcontinental Gas Pipe Line Corp. (Grata Field, Refugio County, Tex., R.R. District No. 2).		3-3-71	4-3-71	Accepted			
do	do	1	14	do	\$21,657	3-3-71		10-4-71	\$11.0125 \$12.0125 \$12.0175	\$21.0 \$21.0 \$22.0	
do	do	3	10	do		3-3-71	4-3-71	Accepted			
do	do	3	11	do	\$33,825	3-3-71		10-4-71	\$11.0125 \$12.0125	\$21.0 \$21.0	
do	do			do		3-3-71	4-3-71	Accepted			
RI71-894	Edwin L. Jones Oil Co.	2	20	Transcontinental Gas Pipe Line Corp. (Grata Field, Refugio County, Tex., R.R. District No. 2).		3-8-71	4-8-71	Accepted			
do	do	2	21	do	\$69,075	3-8-71		10-9-71	\$11.0125 \$12.0125 \$12.0175	\$21.0 \$21.0 \$22.0	
do	do	10	23	Transcontinental Gas Pipe Line Corp. (Northeast Harris Field, Live Oak County, Tex., R.R. District No. 2).		3-8-71	4-8-71	Accepted			
do	do		4	do	\$15,531	3-8-71		5-9-71	\$11.0125 \$12.0125 \$12.0175 \$12.0225	\$21.0 \$21.0 \$22.0 \$22.0	
RI71-895	Marathon Oil Co.	12	17	Transcontinental Gas Pipe Line Corp. (La Gloria Field, Jim Wells and Brooks Counties, Tex., R.R. District No. 4).	\$23,131	3-5-71		10-6-71			
RI71-896	Union Oil Co. of California.	40	19	United Gas Pipe Line Co. (Houma Field, Terrebonne Parish) (Southern Louisiana).	120,470	3-1-71		10-10-71	22.25	\$22.0	RI69-452
.....		165	17	Transcontinental Gas Pipe Line Corp. (Block 233, Ship Shoal Area Offshore Louisiana).	14,070	3-1-71		10-10-71	12.0	\$22.0	
RI69-91	Atlantic Richfield Co. et al.	4	15	Tennessee Gas Pipeline Co., a division of Tenneco Inc. (Midland Field, Acadia Parish, Southern Louisiana).		3-8-71	4-8-71	Accepted			RI69-91
.....		4	16	do	\$13,432	3-8-71		10-23-71	20.025	\$22.375 \$22.0	RI69-91

See footnotes at end of table.

NOTICES

APPENDIX A—Continued

Docket No.	Respondent	Rate scheduled No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Cents per Mcf ^a		Rate in effect subject to refund in docket No.
									Ratio in effect	Proposed increased rate	
RI71-897..	Hunt Industries....	7	7	Michigan Wisconsin Pipe Line Co. (Blocks 24 and 25 Offshore Louisiana).	19,000	3-8-71	-----	5-27-71	21.25	\$22.25	
RI71-898..	Hunt Oil Co.....	64	6	do.....	20,000	3-8-71	-----	5-27-71	21.25	\$22.25	
RI71-899..	George W. Graham, Inc. et al.	2	4	Natural Gas Pipeline Co. of America (Fulton Beach Field Arkansas County, Tex., R.R. District No. 4).	9,135	3-8-71	4-8-71	9-8-71	18.0	\$21.09	RI68-167.
RI71-900..	Pennzoll Producing Co. et al.	224	10	Southern Natural Gas Co. (Dexter Field, Marion and Walthall Counties, Miss.).	6,969	3-4-71	4-4-71	9-4-71	23.7762	27.8379	RI71-216.
RI71-901..	Atlantic Richfield	242	37 13	Natural Gas Pipeline Co. of America (La Gloria Field, Brooks and Jim Wells Counties, Tex., R.R. District No. 4).	8,907	3-1-71	-----	5-2-71	14.0503	16.73370	RI70-621.
RI71-902..	Union Oil Company of California.	33	37 8	Texas Gas Transmission Corp. (Bayou Pigeon Field, Iberia Parish, Southern Louisiana).	40,545	3-4-71	-----	4-19-71	22.376	\$22.65	RI71-564.
RI71-903..	Kerr-McGee Corp....	27	10	Michigan Wisconsin Pipe Line Co. (Cameron Field, Cameron Parish, Southern Louisiana).	2,433	3-5-71	-----	6-2-71	25.33333	\$20.0	RI71-831.
RI71-904..	P. R. Rutherford et al.	5	8	United Gas Pipe Line Co. (Crescent Farms Field, Terrebonne Parish, Southern Louisiana).	2,835	3-8-71	4-8-71	Accepted 4-23-71	21.25	\$22.375	
RI71-905..	Cities Service Oil Co.	209	4	Texas Eastern Transmission Corp. (State Tract III, North Panther Reef Field Offshore Texas).	492	3-8-71	-----	5-9-71	15.0653	16.07	RI70-475.
RI71-906..	Davis Oil Co. et al..	11	3	United Fuel Gas Co. (Valentine Field, Lafourche Parish, Southern Louisiana).	15,500	3-8-71	-----	4-23-71	19.5	21.1	
RI71-907..	Woods Exploration and Producing Co. et al.	2	3	Tennessee Gas Pipeline Co., a division of Tenneco Inc. (East Bernard Field, Wharton County, Tex., R.R. District No. 3).	18,123	8-8-71	-----	5-9-71	16.0	18.16947	
RI71-908..	R. C. Turner et al..	1	1	Natural Gas Pipeline Co. of America (Escobas Queen City Field, Zapata County, Tex., R.R. District No. 4).	6,383	3-12-71	-----	5-13-71	16.0	17.06375	
RI71-909..	Kerr-McGee Corp....	113	1	Natural Gas Pipeline Co. of America (Mermentau River Field, Acadia Parish, Southern Louisiana).	47,129	3-12-71	-----	4-27-71	21.520	27.070	
RI71-910..	Amoco Production Co.	559	1	Transcontinental Gas Pipe Line Corp. (Luby and Petronilla Fields, Nueces County, Tex., R.R. District No. 4).	164,250	3-11-71	4-11-71	9-11-71	16.0	23.0	
RI71-911..	Joseph P. Mueller...	1	7	Florida Gas Transmission Co. (La Reforma Field, Starr County, Tex., R.R. District No. 4).	3,300	3-5-71	-----	5-6-71	16.0	19.0	
RI71-912..	Tonkano Gas Processing Co.	1	2	Transcontinental Gas Pipe Line Corp. (Nancy and East Nancy Fields, Clarke County, Miss.).	3,516	3-8-71	-----	5-9-71	20.6	21.5	
RI71-913..	Pennzoll Producing Co.	223	2 16	United Gas Pipe Line Co. ^b (Deer Island Field, Terrebonne Parish, Southern Louisiana).	16,031	3-8-71 3-10-71	-----	5-9-71 4-25-71	20.6 22.375	21.5 23.5	RI71-695.
.....do.....	do.....	225	16	United Gas Pipe Line Co. ^b (Bayou Rambo Field, Terrebonne Parish, Southern Louisiana).	8,630	3-10-71	-----	4-25-71	22.4924	23.8	RI71-695.
.....do.....	do.....	271	4	Sea Robin Pipeline Co. ^b (Block 22, Ship Shoal Area Offshore Louisiana).	15,300	3-10-71	-----	4-25-71	17.0	21.25	
RI71-914..	Tenneco Oil Co.....	60	2	Southern Natural Gas Co. (Dexter Field, Walthall and Marion Counties, Miss.).	9,831	3-9-71	4-9-71	9-9-71	21.5523	25.8665	
RI71-915..	Tenneco Oil Co. et al.	140	5	Tennessee Gas Pipe Line Co., a division of Tenneco, Inc. ^b (Trull Field, Matagorda County, Tex., R.R. District No. 3).	6,102	3-9-71	-----	5-10-71	16.16947	18.16947	
RI71-916..	Phillips Petroleum Co.	352	4	Florida Gas Transmission Co. (East Corpus Christi Bay Field Nueces County, Tex., R.R. District No. 4).	4,660	3-10-71	-----	5-11-71	17.5760	18.7869	RI62-495.
RI71-917..	Clark Oil Producing Co.	4	10	Southern Natural Gas Co. (Plum Point Field, Lafourche Parish, Southern Louisiana).	1,186	3-10-71	-----	4-25-71	18.5 20.0 22.375	23.0	RI71-695.

See footnotes at end of document.

APPENDIX—Continued

Docket No.	Respondent	Rate scheduled No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Cents per Mcf*		Rate in effect subject to refund in dockets Nos.
									Rate in effect	Proposed increased rate	
RI71-918...	Atlantic Richfield Co. et al.	59	32	United Gas P/L Co. (Sibley Field, Webster Parish, Northern Louisiana).	-----	3-8-71	4-8-71	" Accepted	-----	-----	-----
		59	33	do	277	3-8-71	4-15-71	" 5-9-71 Accepted	" 13.503	16.0	-----
		2	11	Mississippi River Transmission Corp. (North Ruston Field, Lincoln Parish, Northern Louisiana).	-----	3-15-71	4-15-71	" Accepted	-----	-----	-----
RI71-919...	Champlin Petroleum Co. et al.	2	12	do	2,777	3-15-71	4-12-71	" 5-10-71 Accepted	" 11.0039	" 13.75	-----
		53	7	Cities Service Gas Co. (Wichita Gasoline Plant, Oklahoma County) (Oklahoma Other Area).	-----	3-12-71	4-12-71	" Accepted	-----	-----	-----
		53	8	do	110,280	3-12-71	5-13-71	" 5-13-71	" 12.0	" 17.163	-----
RI71-920...	Tenneco Oil Co.	195	5	El Paso Natural Gas Co. (Jalmit Field, Lea County, N. Mex., Permian Basin).	3,694	3-11-71	5-12-71	" 5-12-71	" 12.57	" 17.00	-----
		254	4	do	619	3-11-71	5-12-71	" 5-12-71	" 12.57	" 17.00	-----
		-----	-----	-----	-----	-----	-----	-----	-----	-----	-----

* Unless otherwise stated, the pressure base is 15.025 p.s.i.a.
 † Temporary certificated rate. Refund condition to the just and reasonable rate presently in effect.
 ‡ Inclusive of B.t.u. adjustment of 1.065 cents for 1,100 B.t.u. gas.
 § Increase resulting from termination of moratorium in Southern Louisiana pursuant to Order No. 413, as amended.
 ¶ As corrected by filing transmitted by letter dated Mar. 1, 1971.
 ** Includes tax reimbursement of 1.6 cents for capable wells or 1.1 cents for incapable wells.
 †† For gas from reservoirs discovered prior to Oct. 1, 1963.
 ‡‡ For residue gas after processing.
 §§ For gas from reservoirs discovered on or after Oct. 1, 1963.
 ¶¶ 61 days from date of filing.
 *** 45 days from date of filing.
 ††† Applies to all known reservoirs except the Sub-Alliance, Midgysnoides, Camerina, and Reservoir A Sand Reservoirs.
 ‡‡‡ Decrease to contractually authorized tax reimbursement.
 §§§ Includes 6.11 cents B.t.u. adjustment for gas containing 1,297 B.t.u.
 ¶¶¶ Submitted as an amended filing to supplement an earlier increased rate filing which inadvertently failed to include all of the gas sold under such rate schedule. Being considered as an increase applicable to gas not covered earlier.
 *** For gas which does not require compression or which is compressed by buyer.
 ††† For gas compressed by buyer, the facilities which seller may elect to take over.
 ‡‡‡ For gas requiring compression, the facilities for which seller elects to maintain and operate.
 §§§ Subject to a 0.21931-cent reduction for all gas dehydrated by buyer.
 ¶¶¶ Based on the assumption that all gas was sold at 11.04125 cents and will be sold at 19 cents which may or may not be true, gas may be sold at one, two or three rates.
 *** Agreement dated Dec. 31, 1970, provides, among other things for extension of contract and for renegotiated rates specified herein.
 ††† Subject to Downward B.t.u. price adjustment.
 ‡‡‡ For gas from reservoirs discovered prior to Sept. 23, 1960.
 §§§ For gas from reservoirs discovered from Sept. 23, 1960 to June 17, 1970.
 ¶¶¶ For gas from reservoirs discovered on or after June 17, 1970.
 *** For dehydrated gas not compressed by seller.
 ††† For dehydrated gas compressed by seller using buyer's compressors.
 ‡‡‡ For dehydrated gas compressed by seller using its compressors.
 §§§ Unilateral increase due to expiration on Apr. 1, 1971, of the term of the basic contract.
 ¶¶¶ As amended.
 *** Includes documents required by Opinion No. 567 establishing the discovery date of New Reservoirs.
 ††† Applicable to reservoirs identified therein.
 ‡‡‡ For gas produced from reservoirs producing on Nov. 1, 1970. The Feb. 10, 1971, agreement provides for a rate of 23.25 cents.
 §§§ For gas produced from reservoirs discovered subsequent to Nov. 1, 1970. The Feb. 10, 1971, agreement provides for 23 cents.
 ¶¶¶ Applies only to gas from leases and reservoirs producing on Nov. 1, 1970. No gas presently being sold from reservoirs discovered after Nov. 1, 1970.
 *** One day from contractually due date.
 ††† As corrected.

The agreements filed by Peet Oil Co. and Edwin L. Jones Oil Co. in addition to providing for the proposed increased rates also provide for future escalations to any higher area ceiling or settlement rate prescribed by the Commission. The provisions relating to the area rate do not conform with § 154.93 (b-1) of the Commission's regulations. Consistent with Commission action taken on similar filings not in conformity with § 154.93 (b-1), the agreements are accepted for filing upon expiration of statutory notice with the condition that the provisions relating to the area rate will only apply upon the Commission's approval of a just and reasonable rate, or settlement rate, in an applicable area rate proceeding, for gas of comparable quality and vintage. Additionally such agreements are accepted for filing only insofar as they per-

tain to the reserves specified therein and the increases are limited only to gas produced from such reserves. Also, Respondents are advised that the acceptance of such agreements does not constitute any authorization to abandon any acreage covered by the original contracts which is not covered by these agreements.

The proposed decreases of Getty Oil Co. reflect a downward adjustment in the amount of tax reimbursement to which applicant is contractually entitled consistent with the tax reimbursement provisions under the respective contracts. The present rates became effective on December 2, 1970, subject to refund in Docket No. RI70-1744 and RI70-1743 respectively and Getty requests that the proposed decreases become effective on the same date. The proposed decreases are accepted for filing subject to refund in the existing

proceedings, effective as of the requested date.
 ††† Applicable to applicants pro rata increased quantity of gas covered by July 13, 1970, amendments.
 ‡‡‡ Pertains to the reservoirs identified therein.
 §§§ Pursuant to Opinion No. 427 and Order No. 413.
 ¶¶¶ Or 1 day from date the Commission authorizes Atlantic in Docket G-3257 to increase quantities per July 13, 1970, agreement, whichever is later.
 *** Increased rate limited to the rate prescribed in the Order issued Dec. 24, 1970, in Docket No. R-334.
 ††† Amendment dated Nov. 29, 1970, provides among other things, for the renegotiated rate of 23.5 cents.
 ‡‡‡ Initial In-Line certificated rate permitted for this sale in Opinion No. 475. Previously shown as 16.1637 cents.
 §§§ Subject to a 0.21931-cent dehydration charge.
 ¶¶¶ Proposed rate was the renegotiated rate of 23.70.
 *** Subject to B.t.u. adjustment if applicable, up to the contract price.
 ††† Gas well gas rates.
 ‡‡‡ Inclusive of B.t.u. adjustment.
 §§§ Or 1 day from the date of initial delivery, whichever is later.
 ¶¶¶ 10-cent rate is ESR in RI62-642.
 *** Both buyer and seller are wholly owned subsidiaries of Pennzoil United Inc.
 ††† Submitted as a correction to a previous filing made on Dec. 22, 1970. Being considered as an increase applicable to gas not covered by the prior filing.
 ‡‡‡ Pertains to gas produced from reservoirs discovered after Oct. 1, 1963, which was inadvertently omitted in earlier filings.
 §§§ Applicable to casinghead gas.
 ¶¶¶ See Robin is a Joint Venture of Southern Natural & United Gas P/L Co. and United & Pennzoil are affiliates.
 *** Both buyer and seller are affiliates of Tenneco, Inc.
 ††† Applicable to gas added by Supplement No. 8. (Agreement dated Oct. 8, 1970)
 ‡‡‡ For gas well gas.
 §§§ For casinghead.
 ¶¶¶ Amendment dated Feb. 10, 1971, provides for 10-cent contract rate and extends term of contract for 10 years.
 *** Includes 1.6-cent tax reimbursement.
 ††† Amendment dated Mar. 8, 1971, provides for 17-cent contract rate. Provides for tax reimbursement of 1.75 cents except that the reimbursement shall be 13 cents for all well gas having a well head pressure of less than 60 p.s.i.g. or from a gas well with less than 230 Mcf daily capacity, and extends contract term 10 years.
 ‡‡‡ Includes 1.75-cent tax reimbursement.
 §§§ Includes 1.333-cent tax reimbursement.
 ¶¶¶ Base rate subject to Downward B.t.u. adjustment.
 *** Includes 0.224-cent dehydration reimbursement paid by buyer.
 ††† Amendment dated Feb. 23, 1971, providing for 16 cents from Feb. 23, 1971 to Mar. 31, 1970, and 17 cents thereafter, provides for upward and downward B.t.u. adjustment from 1,000 B.t.u.'s per cubic foot and extends term of contract 10 years.
 ‡‡‡ Base rate subject to downward B.t.u. adjustment from 1,000 B.t.u./cf.
 §§§ Includes 1.165-cent upward B.t.u. adjustment base rate subject to upward and downward B.t.u. adjustment.
 ¶¶¶ Accepted for filing subject to the existing rate proceedings in Docket Nos. RI70-1744 and RI70-1743, respectively, to be effective as of Dec. 2, 1970.
 *** Accepted to become effective on the dates shown in the "Effective Date" column. The acceptance of the agreements filed by Peet Oil Co. and Edwin L. Jones Oil Co. is subject to the conditions prescribed elsewhere in this order.
 ††† The pressure base is 14.15 p.s.i.a.

proceedings, effective as of the requested date.

Union Oil Co. of California had previously filed a proposed increase under its FPC Gas Rate Schedule No. 165, to 20 cents per Mcf, applicable to gas well gas produced from newly discovered reservoirs. Such increase was suspended for 1 day and made effective subject to refund in Docket No. RI70-1423. Union now states that one of the reservoirs, the "Crist. Sub 9" reservoir, which it had claimed as a newly discovered reservoir, does not qualify for such status and therefore requests withdrawal of the documents pertaining to that reservoir. Accordingly, the order issued March 27, 1970, suspending the proposed increase in Docket No. RI70-1423 is amended to reflect that such increase does not apply to the "Crist. Sub 9" reservoir and that the documents relating to the "Crist. Sub 9" reservoir (Exhibit "A-3") are considered as withdrawn.

All of the Southern Louisiana increases are suspended for a period ending 45 days from the respective dates of filing or 1 day from the requested or contractually due dates, whichever is later, consistent with prior Commission action on Southern Louisiana increases exceeding the area rates set forth in Opinions Nos. 546 and 546-A. The proposed increased rates in areas outside Southern Louisiana which exceed the corresponding rate limitation for increased rates in Southern Louisiana are suspended for 5 months upon expiration of statutory notice period. All of the other increases are suspended for periods ending 61 days from the respective dates of filings or for 1 day from the requested or contractually due dates, whichever is later.

Certain respondents request either waiver of notice or effective dates for which adequate notice was not given. Good cause has not been shown for granting these requests and they were denied.

All of the producers' proposed increased rates and charges exceed the applicable area price levels for increased rates as set forth in the Commission's Statement of General Policy No. 61-1, as amended (18 CFR 256).

[FR Doc.71-4804 Filed 4-8-71;8:45 am]

SECURITIES AND EXCHANGE COMMISSION

[Release No. 34-9130]

NATIONAL ASSOCIATION OF SECURITIES DEALERS, INC.

Action Declaring Amendments to Plan To Be Effective

The Securities and Exchange Commission has announced that it has declared effective amendments filed by the National Association of Securities Dealers, Inc. (NASD) to its Rule 17a-10 plan. That plan, which was filed pursuant to paragraph (b) of Rule 17a-10 (17 CFR 240.17a-10) under the Securities Exchange Act of 1934, was declared effective by the Commission on April 30, 1970. Paragraph (b) provides that upon Commission approval of a plan filed by a national securities exchange or a registered national securities association, the members of such exchange or association need not file with the Commission the annual income and expense report required by paragraph (a) of Rule 17a-10. Thus, NASD members are required under the terms of the NASD plan to file an annual income and expense report (i.e., NASD Form 17a-10) with the NASD and are not required to file Form X-17A-10 (17 CFR 249.618) with the Commission.

The effect of one of the changes to that plan is to make it clear that all NASD members will continue indefinitely to file an annual income and expense report with the NASD. In addition, another amendment deletes a provision as to the deadline date for filing which was only applicable to the 1969 annual income and expense reports and is now

obsolete. A copy of the amendments is available for inspection at the Securities and Exchange Commission, 500 North Capitol Street, Washington, DC 20549.

Commission action. The text of the Commission action declaring effective the amendments to the NASD plan filed pursuant to paragraph (b) of § 240.17a-10 of Chapter II of Title 17 of the Code of Federal Regulation under the Securities Exchange Act of 1934 is as follows:

On April 30, 1970 the Securities and Exchange Commission declared effective a plan filed by the National Association of Securities Dealers, Inc. (NASD) with the Commission pursuant to paragraph (b) of § 240.17a-10 under the Securities Exchange Act of 1934.

The Securities and Exchange Commission acting pursuant to the Securities Exchange Act of 1934, particularly sections 17(a) and 23(a) thereof and § 240.17a-10(b) thereunder, deeming it necessary for the exercise of the functions vested in it, and having due regard for the public interest and for the protection of investors, hereby declares effective on March 30, 1970, the amendments to the NASD plan filed by the NASD with the Commission on March 1, 1971 subject to the same conditions as contained in the Commission action of April 30, 1970 referred to above. The Commission finds that notice and subsequent procedure specified in 5 U.S.C. 553 are unnecessary with respect to this action.

(Secs. 17(a), 23(a), 48 Stat. 897,901, as amended by 49 Stat. 1379 and 52 Stat. 1076; 15 U.S.C. 78q, 78w)

By the Commission.

[SEAL] ROSALIE F. SCHNEIDER,
Recording Secretary.

MARCH 30, 1971.

[FR Doc.71-4957 Filed 4-8-71;8:47 am]

[File No. 1-4192]

CANADIAN JAVELIN, LTD.

Order Terminating Summary Suspension of Trading

APRIL 1, 1971.

The common stock, no par value of Canadian Javelin, Ltd., being listed and registered on the American Stock Exchange and being traded otherwise than on a national securities exchange; and

The Commission having, on March 26, 1971, issued an order pursuant to sections 15(c)(5) and 19(a)(4) of the Securities Exchange Act of 1934 summarily suspending trading in said securities effective for the period March 27, 1971, through April 5, 1971; and

The Commission being of the opinion that the public interest does not require the continuance of said suspension of trading:

It is ordered, Pursuant to sections 15(c)(5) and 19(a)(4) of the Securities Exchange Act of 1934, that the suspension of trading pursuant to said order of March 26, 1971, shall terminate effective at the opening of business on April 5, 1971.

By the Commission.

ROSALIE F. SCHNEIDER,
Recording Secretary.

[FR Doc.71-4958 Filed 4-8-71;8:47 am]

[70-5011]

COLUMBIA GAS SYSTEM, INC.

Notice of Proposed Issue and Sale of Short-Term Notes to Banks and to Dealers in Commercial Paper and Exception From Competitive Bid- ding Requirements

APRIL 2, 1971.

Notice is hereby given that The Columbia Gas System, Inc. (Columbia), 20 Montchanin Road, Wilmington, DE 19807, a registered holding company, has filed an application with this Commission pursuant to the Public Utility Holding Company Act of 1935 (Act), designating section 6(b) thereof and Rule 50 (a) promulgated thereunder as applicable to the proposed transactions. All interested persons are referred to the application, which is summarized below, for a complete statement of the proposed transactions.

Columbia requests that the exemption from the provisions of section 6(a) of the Act afforded to it by the first sentence of section 6(b) thereof, relating to the issue and sale of short-term notes, be increased through May 31, 1972, from 5 percent to approximately 15 percent of the principal amount and par value of the other securities of Columbia then outstanding in order to permit Columbia to have outstanding up to \$180 million principal amount of proposed short-term notes, consisting of bank notes and commercial paper. Generally, Columbia will make the proceeds from the sale of these notes available to its subsidiary companies for construction, for the purchase of underground storage gas during the summer months, and for other short-term seasonal requirements, in accordance with the terms of another filing with this Commission (File No. 70-5010). Of the maximum of \$180 million to be borrowed, up to \$80 million will be used for the subsidiary companies' underground storage gas and other short-term seasonal requirements and will be repaid from cash generated during the winter months. The subsidiary companies' construction expenditures are estimated to aggregate approximately \$262,500,000 during 1971.

Columbia proposes to issue and sell, from time to time, commercial paper in the form of promissory notes to one or more dealers in commercial paper, up to \$180 million face amount to be outstanding at any one time. The aggregate amount of commercial paper notes and of bank notes outstanding at any one time will not exceed \$180 million. It is Columbia's intention to issue and sell commercial paper and continue to do so as long as the effective interest rate is less than the effective interest cost which Columbia would have to pay to banks for an equivalent amount of funds as of the date of borrowing, except that, in order to obtain maximum flexibility, commercial paper may be issued with a maturity of not more than 60 days from the date of issue with an effective interest cost in excess of such effective interest cost on bank borrowings.

¹ For a description of the NASD plan and the Commission action declaring it effective, see Securities Exchange Act Release No. 8876 (Apr. 30, 1970, 35 F.R. 7395).

The commercial paper notes will be of varying maturities, not to exceed 270 days, and none will be prepayable prior to maturity. The actual maturities will be determined by market conditions, effective interest cost to Columbia, and Columbia's anticipated cash requirements at the time of issue. Each commercial paper note will be issued in denominations of not less than \$50,000 and not more than \$1 million and will be sold to the dealers at a discount which will be not in excess of the discount rate per annum prevailing at the date of issuance for prime commercial paper of the particular maturity.

It is stated that no commission or fee will be payable in connection with the issue and sale of the commercial paper notes. Each dealer, as principal, will reoffer such notes at a discount rate of one-eighth of 1 percent per annum less than the discount rate to Columbia. The notes will be reoffered to no more than 100 customers of each dealer, identified and designated in a list (nonpublic) prepared in advance. In no event will the total number of customers, to which such notes will be reoffered, exceed 200. No additions will be made to such customer lists, which will consist of institutional investors which invest funds in commercial paper. It is expected that Columbia's commercial paper notes will be held by customers to maturity, but, if they wish to resell prior thereto, the dealers, pursuant to a repurchase agreement, will repurchase the notes and reoffer the same to others in its specified group of customers.

Columbia requests exception from the competitive bidding requirements of Rule 50 for the proposed issue and sale of its commercial paper. Columbia states that the proposed commercial paper notes will have a maturity of nine months or less, that it is not practical to invite competitive bids for commercial paper, and that current rates for commercial paper for such prime borrowers as Columbia are published daily in financial publications.

Columbia proposes that up to \$80 million of the aforesaid commercial paper will be converted into inventory bank loans on or before November 1, 1971, and Columbia has secured credit lines from a group of 32 banks in a maximum aggregate amount of \$80 million, borrowings thereunder to be repaid at maturity in February, March, and April of 1972 with cash generated from operations. The bank loans will bear interest at the minimum commercial lending rate in effect from time to time at Morgan Guaranty Trust Company of New York. The notes will be prepayable, in whole or in part, at any time without premium or penalty, except that no prepayments may be made with funds borrowed from banks at a lower rate of interest.

The fees and expenses to be paid by Columbia in connection with the proposed transactions are estimated at \$800. It is stated that no State commission and no Federal commission, other than this Commission, has jurisdiction over the proposed transactions.

Notice is further given that any interested person may, not later than April 26,

1971, request in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law raised by said application which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request should be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon the applicant at the above-stated address, and proof of service (by affidavit or, in case of an attorney at law, by certificate) should be filed with the request. At any time after said date, the application, as filed or as it may be amended, may be granted as provided in Rule 23 of the general rules and regulations promulgated under the Act, or the Commission may grant exemption from such rules as provided in Rules 20(a) and 100 thereof or take such other action as it may deem appropriate. Persons who request a hearing or advice as to whether a hearing is ordered will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

For the Commission, by the Division of Corporate Regulation, pursuant to delegated authority.

[SEAL] ROSALIE F. SCHNEIDER,
Recording Secretary.

[FR Doc. 71-4904 Filed 4-8-71; 8:47 am]

[File No. 500-1]

CROWN DRUG CO.

Order Suspending Trading

APRIL 1, 1971.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock of Crown Drug Co. (a Delaware corporation) and all other securities of Crown Drug Co. being traded otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to section 15(c) (5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period April 2, 1971, through April 11, 1971.

By the Commission.

[SEAL] ROSALIE F. SCHNEIDER,
Recording Secretary.

[FR Doc. 71-4959 Filed 4-8-71; 8:47 am]

[812-2753]

FUND OF LETTERS, INC.

Notice of Filing of Application for Order Exempting Proposed Transaction

APRIL 2, 1971.

Notice is hereby given that Fund of Letters, Inc. (Applicant), 1900 Avenue of

the Stars, Suite 2400, Los Angeles, CA 90067, a closed-end, diversified, management investment company registered under the Investment Company Act of 1940 (Act), has filed an application pursuant to section 17(b) of the Act for an order exempting from the provisions of section 17(a) of the Act the exchange by Applicant of an aggregate of 523,034 shares of common stock of Haven Industries, Inc. (Haven) owned by Applicant with Haven for an aggregate of 152,548 shares of The Service Group, Inc. (Service Group) common stock owned by Haven. All interested persons are referred to the application on file with the Commission for a statement of the representations made therein, which are summarized below.

Applicant owns 800,000 shares of voting common stock of Haven. These shares constitute approximately 7 percent of the outstanding voting securities of Haven. Haven owns approximately 12 percent of the outstanding voting securities of Service Group. Section 2(a) (3) of the Act defines the term "affiliated person" to include, in part, any person directly or indirectly owning, controlling, or holding with power to vote, 5 percent or more of the outstanding voting securities of such other person, and any person 5 percent or more of whose outstanding voting securities are directly or indirectly owned, controlled, or held with power to vote, by such other person. Accordingly, Applicant and Haven may be persons deemed to be affiliated with each other within the meaning of section 2(a) (3) of the Act.

Applicant and Haven have entered into an agreement of exchange pursuant to the terms of which Applicant would deliver to Haven 523,034 shares of Haven common stock and receive from Haven in exchange therefor 152,548 shares of Service Group common stock owned by Haven. The Haven shares owned by Applicant and the Service Group shares owned by Haven are restricted securities in that they have not been registered pursuant to section 5 of the Securities Act of 1933. However, registration rights satisfactory to Applicant, relating to the Service Group shares to be so acquired by Applicant, were granted to Applicant by Service Group.

The basis for the exchange of Haven shares for Service Group shares is a ratio of 0.29166 shares of Service Group common stock for each share of Haven common stock. Applicant represents that this ratio is roughly equivalent to the ratio between the market prices of freely tradeable securities of Service Group and those of Haven as quoted in the over-the-counter market at the time the proposed exchange was originally discussed between Applicant and Haven. The number of shares to be exchanged was determined on the basis of Applicant's investment policy that it will not acquire more than 10 percent of the outstanding voting securities of any one issuer.

Applicant asserts that after analyzing the respective managements, the financial condition, including liquidity, book value, cash flow, and growth rates of

each Service Group and Haven, the industry in which each is involved, and market factors affecting the common stock of each of such companies, it believes that the exchange as proposed is fair and reasonable to all parties. This analysis is set forth in more detail in the application, as amended.

Applicant's investment objective is to attain the maximum possible capital appreciation consistent with and primarily through its policy of investing principally in restricted securities. Applicant is of the opinion that its investment objectives in owning Haven stock are not likely to be met in the foreseeable future. Similarly, it represents that after a thorough review and analysis of Service Group, its condition (financial and other), and its prospects, an investment by Applicant in Service Group is likely to advance the investment objectives of Applicant. Applicant submits that the terms of the proposed transaction, including the consideration to be paid and received, are reasonable and fair and do not involve overreaching on the part of any person concerned; and further that the proposed transaction is consistent with the investment policy and general purposes of Applicant.

Section 17(a)(2) of the Act provides, in pertinent part, that it shall be unlawful for any affiliated person of a registered investment company knowingly to purchase from such registered company any security or other property. Section 17(b) of the Act provides that notwithstanding subsection 17(a), any person may file with the Commission an application for an order exempting a proposed transaction from one or more provisions of that subsection, and the Commission shall grant such application and issue such order of exemption if evidence establishes that:

(1) The terms of the proposed transaction, including the consideration to be paid or received, are reasonable and fair and do not involve overreaching on the part of any person concerned;

(2) The proposed transaction is consistent with the policy of each registered investment company concerned as recited in its registration statement and reports filed under the Act; and

(3) The proposed transaction is consistent with the general purposes of the Act.

Notice is further given that any interested person may not later than April 22, 1971, at 5:30 p.m., submit to the Commission in writing a request for a hearing on the matter accompanied by a statement as to the nature of his interest, the reason for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request shall be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon Applicant at the address stated above. Proof

of such service (by affidavit or in case of an attorney at law by certificate) shall be filed contemporaneously with the request. At any time after said date, as provided by Rule 0-5 of the rules and regulations promulgated under the Act, an order disposing of the matter herein may be issued by the Commission upon the basis of the information stated in the application, unless an order for hearing upon said proposal shall be issued upon request or upon the Commission's own motion. Persons who request a hearing or advice as to whether a hearing is ordered, will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

For the Commission, by the Division of Corporate Regulation, pursuant to delegated authority.

[SEAL] ROSALIE F. SCHNEIDER,
Recording Secretary.

[FR Doc.71-4960 Filed 4-8-71;8:47 am]

[70-5009]

NEW ENGLAND ELECTRIC SYSTEM

Notice of Proposed Issue and Sale of Common Shares by Holding Company

APRIL 1, 1971.

Notice is hereby given that New England Electric System (NEES), 20 Turnpike Road, Westborough, MA 01581, a registered holding company, has filed an application-declaration with this Commission pursuant to the Public Utility Holding Company Act of 1935 (Act), designating sections 6 and 7 of the Act and Rule 50 promulgated thereunder as applicable to the proposed transaction. All interested persons are referred to the application-declaration, which is summarized below, for a complete statement of the proposed transaction.

NEES proposes to issue and sell 1 million additional shares of its authorized but unissued common shares, par value \$1 per share. The proceeds of the sale of the common shares are to be added to the general funds of NEES and made available to its subsidiary companies in furtherance of their construction programs either by loans or the purchase of additional shares of their capital stock. The application-declaration states that such common shares will be sold under competitive bidding to be carried out in accordance with the requirements of Rule 50.

The application-declaration states that no State commission and no Federal commission, other than this Commission, has jurisdiction over the proposed transaction. It is further stated that the fees and expenses to be incurred in connection with the proposed transactions are estimated at \$125,000, of which \$60,000 are for services performed by the system service company at cost. The fees and expenses of counsel for the successful bidders will be supplied by amendment.

Notice is further given that any interested person may, not later than April

26, 1971, request in writing that a hearing be held on such matter, stating the nature of his interests, the reasons for such request, and the issues of fact or law raised by said application-declaration which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request should be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon NEES at the above-stated address, and proof of service (by affidavit or, in case of an attorney at law, by certificate) should be filed with the request. At any time after said date, the application-declaration, as filed or as it may be amended, may be granted and permitted to become effective as provided in Rule 23 of the general rules and regulations promulgated under the Act, or the Commission may grant exemption from such rules as provided in Rules 20(a) and 100 thereof or take such other action as it may deem appropriate. Persons who request a hearing or advice as to whether a hearing is ordered will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

For the Commission, by the Division of Corporate Regulation, pursuant to delegated authority.

[SEAL] ROSALIE F. SCHNEIDER,
Recording Secretary.

[FR Doc.71-4961 Filed 4-8-71;8:47 am]

[37-65]

NORTHEAST UTILITIES SERVICE CO. ET AL.

Notice of Filing of Posteffective Amendment Regarding Extension of Time Within Which Notes and Shares May Be Issued by Service Company and Acquired by Holding Company

APRIL 1, 1971.

In the matter of Northeast Utilities Service Co., Northeast Utilities, Post Office Box 270, Hartford, CT 06101; The Connecticut Light & Power Co., the Hartford Electric Light Co., Western Massachusetts Electric Co., Holyoke Water Power Co.

Notice is hereby given that Northeast Utilities Service Co. (NUSCO), a subsidiary service company of Northeast Utilities (Northeast), a registered holding company, and its above-named associate electric utility companies, have filed with this Commission a posteffective amendment to the joint application-declaration in this proceeding pursuant to the Public Utility Holding Company Act of 1935 (Act) designating sections 6(a), 7, 9(a), 10, 12, and 13(b) of the Act and Rules 40(b), 42(b)(2), 43, and 50(a) promulgated thereunder as applicable to the proposed transactions. All interested persons are referred to the posteffective

amendment, which is summarized below, for a complete statement of the proposed transactions.

By order dated June 30, 1966 (Holding Company Act Release No. 15519), the Commission, among other things, authorized NUSCO to issue and sell to Northeast for cash, and Northeast to acquire, during a 5-year period commencing June 30, 1966, up to \$3 million aggregate principal amount to be outstanding at any one time of long-term unsecured notes of NUSCO to bear interest at a rate of not more than one-quarter of 1 percent above the commercial bank prime rate on short-term loans in effect in Hartford, Conn.

By orders dated July 30, 1969, and January 29, 1971 (Holding Company Act Releases Nos. 16437 and 16980), the Commission, among other things, authorized NUSCO to issue and sell to Northeast for cash, and Northeast to acquire, during the remainder of the said 5-year period, additional long-term notes having the same terms and provisions as those originally authorized; subject to the following limitations: (1) That not more than \$10 million aggregate principal amount of NUSCO's old and new notes may be at any one time outstanding; and (2) that the aggregate capital of NUSCO, including its outstanding notes and capital stock, will be maintained at all times at an amount approximately equal to the sum of 2 months' operating expenses, plus an amount necessary to finance the inventory of materials and supplies proposed to be purchased by NUSCO and stored in its central warehouse, plus the cost of NUSCO's property less applicable reserves, prepayments, and petty cash working funds.

The applicants-declarants now request that the time within which the transactions authorized under the order of June 30, 1966, as modified by subsequent orders dated July 30, 1969, and January 29, 1971, be extended until June 30, 1976, subject to the same limitation on the aggregate capital of NUSCO as authorized under the above-named orders. The maximum principal amount of notes to be at any one time outstanding will be \$10 million.

It is stated that no fees or expenses will be incurred in connection with the proposed transactions, and that no consent or approval of any State commission or Federal commission, other than this Commission, is required in respect of the proposed transactions.

Notice is further given that any interested person may, not later than April 26, 1971, request in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law raised by said posteffective amendment to the application-declaration which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C.

20549. A copy of such request should be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon the applicants-declarants at the above-stated address, and proof of service (by affidavit or, in case of an attorney at law, by certificate) should be filed with the request. At any time after said date, the application-declaration, as now amended or as it may be further amended, may be granted and permitted to become effective in the manner provided by Rule 23 of the general rules and regulations promulgated under the Act, or the Commission may grant exemption from such rules as provided in Rules 20 (a) and 100 thereof or take such other action as it may deem appropriate. Persons who request a hearing or advice as to whether a hearing is ordered will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

For the Commission, by the Division of Corporate Regulation, pursuant to delegated authority.

[SEAL] ROSALIE F. SCHNEIDER,
Recording Secretary.

[FR Doc. 71-4362 Filed 4-8-71; 8:47 am]

[612-2891]

PITWAY CORP. ET AL.

Notice of Application for Exemption for Certain Transaction

APRIL 2, 1971.

Notice is hereby given that Pittway Corp. (Pittway), Metropolitan Nuns' Island Partnership (Metropolitan), a limited partnership, Bernard Weissbourd and Alan Levinson (referred to collectively as "Applicants"), 601 Skoldo Boulevard, Northbrook, IL 60062, have filed an application pursuant to sections 6(c), 17(b), and 17(d) of the Investment Company Act of 1940 (Act) and Rule 17d-1 thereunder for an order of the Commission permitting Applicants to engage in the real estate transaction described herein. All interested persons are referred to the application on file with the Commission for a statement of the representations therein which are summarized below.

Standard Shares, a closed-end, non-diversified management company registered under the Investment Company Act of 1940 (Act) owns in excess of 33 percent of the total outstanding common stock of Pittway. Pittway is primarily engaged in, among other things, the business of aerosol and other packaging, the manufacture of aerosol valves and burglar and fire alarm devices, and the publishing of trade magazines.

Applicants state that in December 1968, Pittway simultaneously entered into two separate but related agreements whereby it acquired partnership interests in two joint ventures. Pursuant to the first agreement, Pittway, with an investment of \$2,503,250 became a 10 percent

limited partner in Metropolitan Structures (Structures), an Illinois limited partnership engaged in the development of real estate in the Chicago, Illinois area. The general partners of Structures include Applicants Weissbourd and Levinson. The limited partners of Structures, in addition to Pittway, are two other Illinois limited partnerships, Pericles Investment Co., which owns 59 percent of the equity of Structures (and of which Applicants Weissbourd and Levinson are also the general partners) and Metstone Associates which owns the remaining 10 percent.

Applicants state that Structures, in addition, is the general partner of Metropolitan. Structures has a 54.8 percent interest in Metropolitan and is the nominee for individuals owning in total a 10 percent limited partnership interest. The remaining limited partners of Metropolitan are Island Associates and Montreal Partners. Pittway, pursuant to its second agreement, acquired a 50 percent equity interest in a joint venture with Metropolitan development of residential property on Nuns' Island, adjacent to Montreal, Canada. Applicants state that Pittway has invested \$3,114,000 Canadian (C\$) under the agreement and is committed to invest an additional C\$1,386,000 as units of residential property are built. In addition, and as part of the second agreement, Pittway acquired the right of first refusal to participate in the financing of any commercial or industrial development of Nuns' Island undertaken by Metropolitan. Applicants state that Structures owns a 99-year leasehold for Nuns' Island and has assigned this leasehold to a nominee of Metropolitan, Nuns' Island Real Estate Co. (Real Estate). This assignment was made in exchange for Structures interest in Metropolitan.

Applicants state that Metropolitan, through a separate partnership, Metropolitan Nuns' Island No. 8 (MNI No. 8), is now constructing on Nuns' Island a five-story 67,000 square foot office building (Canada Starch Building) on approximately 79,000 square feet of land subleased from Real Estate. This sublease provides for annual ground rental of C\$600 until December 1, 1975, and thereafter of C\$9.0718 per square foot, subject to certain reappraisal provisions.

Pursuant to its right of first refusal, Pittway proposes to participate with five individual investors in financing the construction of the Canada Starch Building with a right to obtain an equity interest therein. The proposed agreement provides that Metropolitan will cause its beneficial interest in the sublease held by MNI No. 8, which is valued at C\$300,000 by the Applicants, to be transferred to a new partnership. Metropolitan will be the limited partner and own 90 percent of the equity interest. Applicants Weissbourd and Levinson will be the general partners and each own 5 percent as nominees for Metropolitan. Pittway and the other five investors will advance in the aggregate a maximum of C\$1,500,000 to the new partnership to finance the construction which includes the repayment

of existing temporary construction loans from Metropolitan.

Pittway will advance in total C\$1,175,000 of which C\$940,000 will be in the form of notes with a face amount of C\$1,175,000 maturing December 31, 1975, bearing interest at an annual rate of 10 percent and secured by the equivalent of a first mortgage on the land and building. C\$235,000 will be used to acquire a warrant giving Pittway the right to acquire 39 percent of the equity in the new partnership.

The five individual investors will provide a total of C\$325,000 in the form of 5-year loans, also at 10 percent interest. C\$65,000 of the loans will be convertible into a 10 percent equity interest in the partnership.

Metropolitan, which Pittway represents has a net worth of at least C\$12,400,000, will guarantee the repayment of the interest and principal or the notes and loan and guarantee that the C\$1,500,000 will be sufficient to complete construction of the building.

The agreement provides that until such time as the lenders may exercise their rights to obtain an equity interest in the partnership, 100 percent of the cash flow of the partnership will be applied toward repayment of the notes and loans, after which 80 percent will be so applied. The projected cash flow of the project will be sufficient only to pay the interest and approximately C\$250,000 of the principal amount of the notes and loans at maturity. The balance is expected to be repaid from the proceeds of anticipated long-term financing.

Pittway will also receive a restricted right of first refusal so that in addition to its general right of first refusal Pittway would have the right to participate in the financing of future office buildings or other commercial structures on Nuns' Island to the extent of not more than 200,000 square feet of such space on the basis of C\$4 per square foot.

Applicants represent that the proposed transactions are fair and reasonable and do not involve overreaching and that the transactions are necessary and appropriate in the public interest and consistent with the protection of investors and the purposes fairly intended by the policy and provisions of section 17 and of the Act.

Applicants state that the proposed agreements were negotiated by unaffiliated persons at arms length. None of the general or limited partners of Structures or Metropolitan or any affiliated persons thereof were at the time of the 1968 agreements or have since had any affiliation with Pittway or Standard, or with their officers and directors, other than through the respective interests of such partners in Structures and/or Metropolitan.

Section 17(a) of the Act, as here pertinent, prohibits an affiliated person of a registered investment company from selling to such registered company any securities unless the Commission, upon application pursuant to section 17(b), grants an exemption from the provisions of section 17(a) if evidence establishes

that the terms of the proposed transactions, including the consideration to be paid, are reasonable and fair and do not involve overreaching on the part of any person concerned. In addition, the proposed transaction must be consistent with the policy of the registered investment company concerned and with the general purposes of the Act. Section 17(d) of the Act and Rule 17d-1 thereunder, taken together, provide among other things, that it shall be unlawful for any affiliated person of a registered investment company or any affiliated person of such a person, acting as principal, to participate in, or effect any transaction in connection with any joint enterprise or arrangement in which any such registered company, or a company controlled by such registered company, is a participant unless an application regarding such arrangement has been granted by an order of the Commission, and that, in passing upon such an application, the Commission will consider whether the participation of such registered or controlled company in such arrangement is consistent with the provisions, policies and purposes of the Act and the extent to which such participation is on a basis different from or less advantageous than that of other participants. A joint enterprise or arrangement, as used in Rule 17d-1 is defined as a written or oral plan, contract, authorization or arrangement, or any practice or understanding concerning an enterprise or undertaking whereby a registered investment company or a controlled company thereof and any affiliated person of such person have a joint or a joint and several participation, or share in the profits of such enterprise or undertaking.

Section 6(c) permits the Commission, upon application, to exempt a transaction or transactions from any provision of the Act if it finds that such an exemption is necessary or appropriate in the public interest and consistent with the protection of investors and the purposes fairly intended by the policy and provisions of the Act.

Pittway states that the C\$300,000 valuation for the land to be contributed by Metropolitan is fair and reasonable and has furnished an independent appraisal supporting this valuation.

Pittway represents that its security and guarantees minimize any down side risks in the transaction and that an attractive rate is assured by the 10 percent interest rate with possible substantial augmentation if the future success of the operation warrants exercise of its rights to obtain a 39½ percent equity interest in the enterprise. Pittway believes that success of this venture and similar ventures on Nuns' Island is expected to increase the demand for residential units in which Pittway has a substantial stake.

Notice is further given that any interested person may, not later than April 23, 1971, at 5:30 p.m., submit to the Commission in writing a request for a hearing on the matter accompanied by

a statement as to the nature of his interest, the reason for such request, and the issues of fact or law proposed to be controverted, or he may request that he be notified if the Commission shall order a hearing thereon. Any such communication should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request shall be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon applicant at the address set forth above. Proof of such service (by affidavit or in case of an attorney at law by certificate) shall be filed contemporaneously with the request. At any time after said date, as provided by Rule 0-5 of the rules and regulations promulgated under the Act, an order disposing of the application hearing may be issued by the Commission upon the basis of the information stated in said application, unless an order for hearing upon said application shall be issued upon request or upon the Commission's own motion. Persons who request a hearing or advice as to whether a hearing is ordered will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

For the Commission, by the Division of Corporate Regulation, pursuant to delegated authority.

[SEAL] ROSALIE F. SCHNEIDER,
Recording Secretary.

[FR Doc.71-4963 Filed 4-8-71;8:47 am]

DEPARTMENT OF LABOR

Wage and Hour Division

CERTIFICATES AUTHORIZING EMPLOYMENT OF FULL-TIME STUDENTS WORKING OUTSIDE OF SCHOOL HOURS AT SPECIAL MINIMUM WAGES IN RETAIL OR SERVICE ESTABLISHMENTS OR IN AGRICULTURE

Notice is hereby given that pursuant to section 14 of the Fair Labor Standards Act of 1938 (52 Stat. 1060, as amended, 29 U.S.C. 201 et seq.), the regulation on employment of full-time students (29 CFR Part 519), and Administrative Order No. 595 (31 F.R. 12981), the establishments listed in this notice have been issued special certificates authorizing the employment of full-time students working outside of school hours at hourly rates lower than the minimum wage rates otherwise applicable under section 6 of the act. While effective and expiration dates are shown for those certificates issued for less than a year, only the expiration dates are shown for certificates issued for a year. The minimum certificate rates are not less than 85 percent of the applicable statutory minimum.

The following certificates provide for an allowance not to exceed the proportion of the total hours worked by full-

time students at rates below \$1 an hour to the total number of hours worked by all employees in the establishment during the base period in occupations of the same general classes in which the establishment employed full-time students at wages below \$1 an hour in the base year.

Andy's Shopping Basket, Inc., foodstore; 821 East Center Street, Ithaca, MI; 12-14-71; 1407 North U.S. 27, St. Johns, MI; 11-30-71. Archer Avenue Big Store, Inc., variety-department store; 4181-93 Archer Avenue, Chicago, IL; 12-2-71.

Babcock's IGA Foodliner, Inc., foodstore; 425 West Vienna Street, Clio, MI; 12-19-71. Baker's Red & White, foodstore; 209 Main Street, Tabor City, NC; 11-26-71.

Ball & Christy Furniture Co., furniture store, 111 East D Street, Iron Mountain, MI; 12-7-71.

The Bargain Center, Inc., variety-department store; 2 Washington Street, Quincy, MA; 11-23-71.

Ben Franklin Store, variety-department store; 1250 North Green Street, McHenry, IL; 12-14-71.

Brenny's Market, foodstore; 314 West Third Street, Carroll, IA; 12-11-70 to 7-31-71.

Cohen's, Inc., apparel store; 712-16 Park Avenue, Norton, VA; 12-9-71.

Dillon Companies, Inc., foodstores, 11-30-71: No. 38, Arkansas City, Kans.; Nos. 1, 8, 10, and 25, Hutchinson, Kans.; No. 39, Junction City, Kans.; No. 45, Wellington, Kans.; No. 37, Winfield, Kans.

Dyche Jones Food Stores Inc., foodstore; 210 South Broad Street, London, KY; 11-22-71.

Ezell's Department Store, variety-department store; 604 West Main Street, Leesburg, FL; 11-27-71.

Farmers Investment Co., agriculture, 11-21-70 to 10-31-71; Agulla, Maricopa, Picacho, and Santa Cruz Valley Farms, Sahuarita, Ariz.

Farmers Market, Inc., foodstore; Waukon, Iowa; 12-10-71.

Fell & Ellermeyer, variety-department store; 211 South Main, Belen, NM; 12-9-71.

M. H. Fishman Co., variety-department store; No. 8, St. Albans, Vt.; 12-7-71.

Forrest Keeling Nursery, Inc., agriculture; Elsberry, Mo.; 12-9-71.

Fred M. Nye Co., apparel store; 2422 Washington Boulevard, Ogden, UT; 11-20-71. Gartin's, foodstore; Franklin, Neb.; 12-10-70 to 11-26-71.

Goldblatt Bros., Inc., variety-department stores; 1615 West Chicago Avenue, Chicago, IL; 11-21-71; 3701 Durand Avenue, Racine, WI; 12-10-71.

W. T. Grant Co., variety-department stores; No. 448, Elmhurst, Ill.; 12-13-71; No. 139, Massillon, Ohio; 12-4-71; No. 157, Uniontown, Pa.; 11-30-71; No. 484, Cayce, S.C.; 12-4-71.

Hillis Supermarket, foodstore; 1102 South Second Street, Lawton, OK; 11-15-71.

Holding's Little America, restaurant; Little America, Wyo.; 12-10-70 to 12-8-71.

Horn's Big Star, foodstore; 207 South Jackson Street, Houston, MS; 11-27-70 to 11-20-71.

Hy Wellbacher & Sons, Inc., variety-department store; 207 North Main Street, Columbia, IL; 12-9-71.

Jenny Lee Bakery, foodstore; 219 Forbes Avenue, Pittsburgh, PA; 12-14-71.

Key Drug Store, drugstore; 500 Fourth Street, Sioux City, IA; 11-30-71.

S. S. Kresge Co., variety-department stores; No. 295, Kewanee, Ill.; 11-21-71; No. 4076, Evansville, Ind.; 12-9-71; No. 670, St. Clair Shores, Mich.; 12-18-71; No. 4605, St. Cloud, Minn.; 12-7-71; No. 564, Fostoria, Ohio,

12-11-71; No. 162, Mansfield, Ohio; 11-22-71.

Kuhn Bros. Co., Inc., variety-department store; Front Street and Public Square, Winchester, TX; 11-29-71.

McCrory-McLellan-Green Stores, variety-department stores; No. 638, South Norwalk, Conn.; 12-14-71; No. 311, Key West, Fla.; 11-21-71; No. 1138, Silver Spring, Md.; 12-9-71; No. 323, Yazoo City, Miss.; 11-21-71.

The G. M. McKelvey Co., variety-department store; 210 West Federal Street, Youngstown, OH; 11-20-71.

McRae's Inc., variety-department store; 491 East Capitol Street, Jackson, MS; 11-29-71.

Melwood Drug Co., drugstore; 4631 Centro Avenue, Pittsburgh, PA; 12-2-71.

Memorial Hospital, hospital; 167 Swift Street, Refugio, TX; 12-9-71.

Meyer's Rexall Drugs, drugstore; West Bremer Avenue, Waverly, IA; 12-8-71.

Mickels Inc., restaurant; 12th and Chaburn, Harian, IA; 12-3-71.

Mitzelfeld's Inc., variety-department store; 312 Main Street, Rochester, MI; 11-26-71.

Morgan & Lindsey, Inc., variety-department stores; No. 3092, Vicksburg, Miss.; 12-13-71; No. 3093, Beaumont, Tex.; 12-14-71.

Myerson's, variety-department stores, 11-20-71: 6331 East Broadway and 42 West Congress, Tucson, AZ.

Nelsner Bros., Inc., variety-department store; No. 136, Miami, Fla.; 11-30-70 to 11-2-71.

J. J. Newberry Co., variety-department store; No. 144, Cincinnati, Ohio; 11-29-71.

Parlsian, Inc., apparel store; 1924 Second Avenue North, Birmingham, AL; 11-23-71.

Parsons, Inc., variety-department stores; Cumming, Ga.; 12-12-71; Duluth, Ga.; 11-20-71.

Peabody's Market, foodstore; 154 South Hunter Boulevard, Birmingham, MI; 12-17-71.

Piggly Wiggly, foodstore; No. 51, St. George, S.C.; 12-15-71.

Ream's Bargain Annex, foodstore; No. 3, American Fork, Utah; 12-16-70 to 12-13-71.

Robert Berlin, Inc., variety-department store; 22 South York Road, Hatboro, PA; 12-13-71.

Rogers Pharmacy, drugstore; 124 West Walnut, Rogers, AR; 11-22-71.

Rose's Stores, Inc., variety-department store; No. 2, Oxford, N.C.; 12-3-71.

Rozler Mercantile Co., foodstore; No. 2 East Ste. Marles Street, Perryville, MO; 12-16-70 to 8-15-71.

St. Charles Nursing Home, nursing home; Kyles Lane, Covington, KY; 11-24-71.

St. Luke's Hospital, hospital; South Seventh Avenue and First Street West, Crosby, ND; 12-18-70 to 12-10-71.

Schensul's Buffet, Inc., restaurant; 3235 North Plainfield Avenue, Grand Rapids, MI; 11-28-71.

Schneider's Department Store, variety-department store; 806-810 Main Street, Jasper, IN; 12-14-71.

Schulte & Treide, variety-department store; 7816 Harford Road, Baltimore, MD; 11-23-71.

J. F. Spillane, Inc., variety-department store; 500 West Marshall Street, Norristown, PA; 12-13-71.

Spurgeons, variety-department stores; 218 North Tremont, Kewanee, IL; 11-27-71; 14-18 West Third, Sterling, IL; 11-20-71; 39 West Main Street, Marshalltown, IA; 12-11-70 to 12-4-71; 117-119 First Avenue West, Newton, IA; 11-21-71; 13 North Frederick Street, Oelwein, IA; 12-4-71; 1013 16th Avenue, Monroe, WI; 12-10-71.

Sunset Home, nursing home; Bowman, N. D.; 12-9-71.

T.G. & Y. Stores Co., variety-department stores; No. 117, Wichita, Kans.; 11-20-71; No. 166, Memphis, Tenn.; 12-10-71.

Viewcrest Nurseries, agriculture; 9917 Northeast Burton Road, Vancouver, WA; 11-30-71.

Ward's IGA Foodliner, foodstore; Springfield, Ky.; 12-13-71.

Viewcrest Nurseries, agriculture; 9917 Northeast Burton Road, Vancouver, WA; 11-30-71.

Ward's IGA Foodliner, foodstore; Springfield, Ky.; 12-13-71.

The following certificates were issued to establishments relying on the base-year employment experience of other establishments, either because they came into existence after the beginning of the applicable base year or because they did not have available base-year records. The certificates permit the employment of full-time students at rates of not less than 85 percent of the statutory minimum in the classes of occupations listed, and provide for the indicated monthly limitations on the percentage of full-time student hours of employment at rates below the applicable statutory minimum to total hours of employment of all employees.

A M A Grocery, foodstore; 22d and Crockett, Tucson, AZ; carryout, cleanup, janitorial; 11 to 14 percent; 12-14-70 to 11-30-71.

Bashas' Market, Inc., foodstore, for the occupations of carryout, janitorial, 12-14-70 to 11-30-71: No. 4, Casa Grande, Ariz., 17 to 23 percent; No. 1 Chandler, Ariz., 23 to 27 percent; No. 11, Glendale, Ariz., 18 to 23 percent; No. 2, Mesa, Ariz., 25 to 32 percent; No. 10, Mesa, Ariz., 13 to 21 percent; No. 17, Mesa, Ariz., 23 to 27 percent; No. 3, Phoenix, Ariz., 19 to 23 percent; No. 5, Phoenix, Ariz., 13 to 21 percent; Nos. 8 and 12, Phoenix, Ariz., 18 to 23 percent; No. 9, Phoenix, Ariz., 23 to 27 percent; No. 18, Phoenix, Ariz., 25 to 32 percent; No. 7, Scottsdale, Ariz., 11 to 14 percent; Nos. 13 and 16, Scottsdale, Ariz., 18 to 23 percent.

Billows Inc., restaurant; 1046 Grand Avenue, Billings, MT; general restaurant worker; 10 to 25 percent; 11-18-71.

Casa Moore Furniture Co., variety-department store; 763 Kentucky Street, Bakersfield, CA; cashier, stock clerk, gift wrapper, office clerk; 1 to 6 percent; 11-27-70 to 10-31-71.

Community Memorial Hospital, hospital; Hettinger, N. Dak.; nurse's aide, receptionist, tray girl (boy); 4 to 12 percent, 10-4-71.

Conley's AG Supermarket, foodstore; Hann, Ark.; stock clerk, cashier; 22 to 43 percent; 11-17-71.

Dillon Companies, Inc., foodstore, for the occupations of cashier, checker, carryout, wrapper, maintenance, clerk; 11 to 32 percent; No. 103, Sileam Springs, Ark., 12-1-71; No. 163, Pryor, Okla., 10-31-71.

Dyche Jones Food Stores, foodstore; No. 3, London, Ky.; bagger, carryout, cleanup, pricing clerk, tagging clerk, cashier, stock clerk; 5 to 10 percent; 11-22-71.

Edward's Inc., variety-department stores, for the occupations of cashier, stock clerk, checker, layaway clerk, stock handler, price, 10 to 14 percent; 1733 Maybank Highway, Charleston, SC; 12-1-71; Lake City Plaza, Lake City, SC; 12-15-71; Laurens Plaza, Laurens, SC; 12-8-71.

Family Thrift Center, foodstore; 11th Street West and Fourth Avenue, Williston, ND; stock clerk, carryout; 7 to 23 percent; 12-16-70 to 11-23-71.

Fordway, Inc., foodstore; Fayette, Ala.; bagger; 15 percent; 12-7-71.

W. T. Grant Co., variety-department stores, for the occupations of cashier, office clerk, stock clerk, cashier, except as otherwise indicated: No. 1103, Escalante, Ill., 2 to 19 percent, 11-23-71; No. 971, Bedford, Ind., 6 to 15 percent, 12-4-71; No. 633, Somerville, N.J., 7 to 19 percent, 12-13-71 (cashier, office clerk,

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cashier; No. 1078, Lima, Ohio, O to 24 percent, 12-3-71.

H.E.B. Food Store, foodstore; No. 106, San Antonio, Tex.; package clerk, sacker, bottle clerk; 10 percent; 11-28-71.

Hamilton Supermarkets, Inc., foodstore; U.S. Highway 78, Hamilton, AL; bagger; 15 percent; 12-7-71.

Hammond Bros. Produce, Inc., foodstore; 240 North 13th Street, Decatur, IN; salesclerk, stock clerk, janitorial, checker-cashier, carryout; 14 to 32 percent; 11-5-71.

Handy Andy, Inc., foodstore; No. 31, San Antonio, Tex.; package clerk, stock clerk, checker-cashier, salesclerk, produce clerk, bottle clerk, porter; 23 to 30 percent; 10-31-71.

The International House of Pancakes, restaurant; 3260 Broadway, Kansas City, MO; kitchen helper, fry cook, bus boy (girl); 14 to 24 percent; 10-31-71.

Jerry's Markets, foodstore; 2117 South Weinbach, Evansville, IN; sacker, carryout; 10 percent; 12-8-71.

Kay Baum Grand Rapids, Inc., apparel stores, for the occupations of stock clerk, salesclerk, office clerk, cashier, 10 to 32 percent, 12-8-71; 18 Woodlawn Mall and 96 Monroe Avenue NW., Grand Rapids, MI.

Kentucky Fried Chicken, restaurant; 2201 Central SW., Albuquerque, NM; general restaurant worker; 25 to 37 percent; 12-14-71.

S. S. Kresge Co., variety-department stores, for the occupations of salesclerk, office clerk, stock clerk, checker-cashier, except as otherwise indicated: No. 4312, Huntsville, Ala., 11 to 22 percent, 12-14-71 (salesclerk, checker); No. 4392, Huntsville, Ala., 11 to 22 percent, 11-9-71 (salesclerk, checker); No. 14, Scottsdale, Ariz., 11 to 14 percent, 12-14-70 to 11-30-71 (carryout, cleanup, janitorial); No. 783, Merritt Island, Fla., 1 to 12 percent, 12-9-71 (salesclerk); No. 4298, Miami, Fla., 7 to 21 percent, 11-30-71 (salesclerk); No. 4242, Macon, Ga., 11 to 22 percent, 11-21-71 (checker-cashier, salesclerk); No. 4381, Bridgeview, Ill., 18 to 33 percent, 10-31-71; No. 4543, Chicago, Ill., 16 to 42 percent, 12-18-71; No. 4564, Chicago, Ill., 19 to 42 percent, 12-1-71; No. 4377, Bloomington, Ind., 5 to 21 percent, 11-11-71 (salesclerk, office clerk, stock clerk, checker-cashier, counter filler); No. 4268, Muncie, Ind., 4 to 10 percent, 12-1-71; No. 4289, Cedar Rapids, Iowa, 13 to 25 percent, 10-31-71; No. 4443, Overland Park, Kans., 16 to 25 percent, 10-31-71; No. 4174, Wichita, Kans., 16 to 25 percent, 12-11-70 to 12-4-71; No. 4382, Lansing, Mich., 10 percent, 10-31-71 (stock clerk, maintenance, office clerk, food preparation, salesclerk, cashier, customer service); No. 4177, St. Clair Shores, Mich., 10 percent, 11-27-71 (stock clerk, maintenance, office clerk, food preparer, salesclerk, register operation, counter filling, customer service); No. 4520, Duluth, Minn., 6 to 32 percent, 12-14-71; No. 4026, St. Joseph, Mo., 5 to 10 percent, 12-11-70 to 11-27-71; No. 4137, Charlotte, N.C., 11 to 22 percent, 11-30-71 (salesclerk); No. 4263, Eastlake, Ohio, 4 to 10 percent, 11-26-71 (stock clerk, maintenance, office clerk, food preparation, register operation, counter filling, salesclerk, customer service); No. 4149, Lorain, Ohio, 5 to 10 percent, 11-29-71 (stock clerk, maintenance, office clerk, food preparation, register operation, counter filling, salesclerk, customer service); No. 600, Northfield, Ohio, 10 percent, 11-20-71 (stock clerk, maintenance, office detail, food preparation, register operation, counter filling, salesclerk, customer service); No. 4168, Oregon, Ohio, 8 to 10 percent, 11-27-71 (stock clerk, maintenance, office clerk, food preparation, register operation, counter filling, salesclerk, customer service); No. 4166, Toledo, Ohio, 8 to 10 percent, 12-6-71 (stock clerk, maintenance, office clerk, food preparation, register operation, counter filling,

salesclerk, customer service); No. 4209, Toledo, Ohio, 8 to 10 percent, 11-23-71 (stock clerk, maintenance, office clerk, food preparation, register operation, counter filling, customer service, salesclerk); No. 4603, Aberdeen, S. Dak., 14 to 31 percent, 12-17-71; No. 4241, East Ridge, Tenn., 3 to 17 percent, 10-31-71 (salesclerk, stock clerk, office clerk, maintenance, checker-cashier, customer service); No. 4401, Abilene, Tex., 7 to 27 percent, 10-31-71 (salesclerk); No. 4402, Fort Worth, Tex., 7 to 27 percent, 11-30-71 (salesclerk); No. 4396, Pasadena, Tex., 7 to 27 percent, 11-30-71 (salesclerk); No. 4186, Texarkana, Tex., 7 to 27 percent, 11-5-71 (salesclerk); No. 4218, Appleton, Wis., 6 to 14 percent, 11-24-71; No. 4385, Greenfield, Wis., 15 to 37 percent, 10-31-71; No. 4380, Wauwatosa, Wis., 15 to 37 percent; 10-31-71.

McCrory-McLellan-Green Stores, variety-department stores, for the occupations of salesclerk, office clerk, stock clerk: No. 394, Detroit, Mich., 10 to 27 percent, 11-28-71; No. 174, Natchez, Miss., 2 to 9 percent, 10-31-71; No. 7505, Madison, Tenn., 4 to 17 percent, 12-17-71; No. 149, Fairmont, W. Va., 5 to 22 percent, 10-31-71.

McRae's, Inc., variety-department store; Battlefield Village, Vicksburg, Miss.; salesclerk, gift wrapper, porter; 3 to 11 percent, 11-20-71.

Martin's, variety-department store; 3100 Quintard Avenue, Anniston, Ala.; salesclerk; 9 to 19 percent; 12-8-71.

Millport Supermarkets, Inc., foodstore; Millport, Ala.; stock clerk, carryout, meat market clerk, produce clerk, cashier; 15 percent; 11-30-71.

G. C. Murphy Co., variety-department stores, for the occupations of salesclerk, stock clerk, office clerk, janitorial: No. 326, Decatur, Ind., 11 to 26 percent, 12-1-70 to 10-14-71 (Replacement); No. 98, Beckley, W. Va., 4 to 23 percent, 11-20-71.

Nelsner Brothers, Inc., variety-department stores, for the occupations of salesclerk, stock clerk, office clerk: No. 7, Homestead, Fla., 8 to 17 percent, 12-1-71; No. 41, Tampa, Fla., 10 to 29 percent, 11-22-71.

The Pantry Market, foodstore; 1120 Washington Street, Grand Haven, MI; carryout, cleanup, stock clerk; 21 to 35 percent; 12-10-71.

Parisian Inc., apparel stores, for the occupations of cashier, wrapper, ticket writer, salesclerk, office clerk, stock clerk, cleanup, 3 to 8 percent, 11-23-71, except as otherwise indicated: Eastwood Mall, Birmingham, Ala. (12-8-70 to 11-23-71); 702 Montgomery Highway and 2217 Bessemer Road, Birmingham, AL; Gateway Shopping Center, Decatur, AL.

Perry Brothers, Inc., variety-department store; No. 66, San Benito, Tex.; salesclerk, stock clerk; 4 to 11 percent; 11-11-71.

Red Bud Development, Inc., restaurant; 1207 Red Bud Trail, Buchanan, MI; bus boy (girl); 35 percent; 10-31-71.

Rose Drug, Inc., drugstores, for the occupations of salesclerk, stock clerk, soda fountain clerk, 32 to 50 percent, 12-16-71: 103 Main Street, Bentonville, AR.; 1150 West Walnut, Rogers, AR.

Rose's Stores, Inc., variety-department stores, 10-31-71: No. 194, Greenville, S.C., salesclerk, checker, 11 to 27 percent; No. 198, Chesapeake, Va., salesclerk, stock clerk, cashier, 20 to 30 percent.

Royal Chef Restaurant, restaurant; 4262 North Kent Mall, Grand Rapids, MI; general restaurant worker; 12 to 25 percent; 12-8-71.

St. Luke Lutheran Home, nursing home; Spencer, Iowa; dishwasher; 3 percent; 11-16-71.

Sansing's Super Market, Inc., foodstore; 320 East Milam, Wharton, TX; stock clerk, carryout; 9 to 10 percent; 11-20-71.

Schensul's Cafeteria, restaurant; Woodland Mall, Kentwood, Mich.; general restaurant worker; 49 to 77 percent; 11-30-71.

Sovine Brothers Super Market, Inc., foodstore; Culloden, W. Va.; carryout, stock clerk, cashier; 16 to 22 percent; 12-4-71.

Spee-D-Foods, Inc., foodstores, for the occupations of checkout, stock clerk, carryout, 20 percent, 11-18-71: 2502 11th Street SW., Canton, Ohio; 118 East Nassau, East Canton, Ohio; 2110 East Main Street, Louisville, Ohio.

Spurgeon's variety-department store; 204-208 East Main, Hoopston, Ill.; salesclerk, stock clerk, janitorial; 4 to 14 percent; 12-7-71.

Stephens Nursing Home, nursing home; 416 South Street, Waterloo, Iowa; nurse's aide; 5 percent; 11-8-71.

Sterling's Men's & Boys' Inc., apparel store; 218 Southwest First Avenue, Fort Lauderdale, Fla.; salesclerk, stock clerk, office clerk, gift wrapper; 6 to 32 percent; 12-12-71.

Sumiton Supermarkets, Inc., foodstore; Sumiton, Ala.; stock clerk, carryout, meat market clerk, produce clerk, cashier; 15 percent; 11-30-71.

Super Drive-Ins, foodstore; No. 8, Nashville, Tenn.; sacker, bottle clerk; 21 to 32 percent; 11-14-71.

T. G. & Y. Stores Co., variety-department stores, for the occupations of salesclerk, stock clerk, office clerk, except as otherwise indicated: No. 188, Tempe, Ariz., 20 to 30 percent, 11-30-71; No. 440, Jacksonville, Ark., 11 to 30 percent, 11-26-71; No. 519, Anaheim, Calif., 16 to 30 percent, 12-17-71; No. 513, Pico Rivera, Calif., 19 to 33 percent, 11-30-71; No. 562, West Covina, Calif., 16 to 30 percent, 12-17-71; No. 730, Clearwater, Fla., 10 to 29 percent, 12-17-71; No. 766, Jacksonville, Fla., 7 to 24 percent, 12-17-71; No. 721, Ocala, Fla., 7 to 24 percent, 12-17-71; No. 715, Orlando, Fla., 13 to 30 percent, 12-10-71; No. 321, Gonzales, La., 5 to 20 percent, 12-2-70 to 11-30-71; No. 308, Lafayette, La., 6 to 22 percent, 10-31-71; No. 474, Independence, Mo., 22 to 30 percent, 12-16-70 to 12-1-71; No. 303, Lee's Summit, Mo., 17 to 30 percent, 12-1-71; No. 299, St. Joseph, Mo., 22 to 30 percent, 12-17-71; No. 465, Blackwell, Okla., 14 to 30 percent, 11-21-71; No. 88, Oklahoma City, Okla., 22 to 30 percent, 10-31-71; No. 425, Oklahoma City, Okla., 18 to 30 percent, 11-30-71; No. 46, Stillwater, Okla., 14 to 30 percent, 12-12-71; No. 422, Tulsa, Okla., 21 to 30 percent, 12-14-71; No. 1004, Woodward, Okla., 22 to 30 percent, 11-30-71; No. 80, Yukon, Okla., 22 to 30 percent, 12-4-71; No. 1771, Taylors, S.C., 18 to 30 percent, 12-11-71 (salesclerk, stock clerk); No. 805, Borger, Tex., 13 to 30 percent, 12-14-71; No. 834, Houston, Tex., 30 percent, 11-20-71; No. 306, Jasper, Tex., 30 percent, 11-22-71; No. 303, San Antonio, Tex., 30 percent, 12-14-71.

Vernon Supermarkets, Inc., foodstore; 201 North Pond Street, Vernon, Ala.; bagger; 15 percent; 12-7-71.

Waconia Super Valu, foodstore; Waconia, Minn.; carryout, checker, cleanup, stock clerk; 14 to 21 percent; 12-16-71.

Worth's, apparel store; 920-75 Wolcott Road, Waterbury, Conn.; office clerk, stock clerk, salesclerk, receiving clerk, display assistant; 2 to 10 percent; 11-23-71.

Each certificate has been issued upon the representations of the employer which, among other things, were that employment of full-time students at special minimum rates is necessary to prevent curtailment of opportunities for employment, and the hiring of full-time students at special minimum rates will not create a substantial probability of reducing the full-time employment opportunities of persons other than those employed under a certificate. The certificates may be annulled or withdrawn, as

indicated therein, in the manner provided in Part 528 of Title 29 of the Code of Federal Regulations. Any person aggrieved by the issuance of any of these certificates may seek a review or reconsideration thereof within 30 days after publication of this notice in the FEDERAL REGISTER pursuant to the provisions of 29 CFR 519.9.

Signed at Washington, D.C., this 30th day of March 1971.

ROBERT G. GRONEWALD,
Authorized Representative
of the Administrator.

[FR Doc.71-4956 Filed 4-8-71;8:47 am]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATION FOR RELIEF

APRIL 6, 1971.

Protests to the granting of an application must be prepared in accordance with Rule 1100.40 of the general rules of practice (49 CFR 1100.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 42169—*Volume or unit train rates from, to, and between points in the United States.* Filed by Southern Freight Association (No. A6236), Traffic Executive Association-Eastern Railroads and Western Railroad Traffic Association, for interested rail carriers. Rates on volume or unit train rates of various commodities, from, to and between points in the United States.

Grounds for relief—Maintenance of different bases for rates.

By the Commission.

[SEAL] ROBERT L. OSWALD,
Secretary.

[FR Doc.71-4976 Filed 4-3-71;8:49 am]

[Notice 275]

MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

APRIL 5, 1971.

The following are notices of filing of applications for temporary authority under section 210a(a) of the Interstate Commerce Act provided for under the new rules of Ex Parte No. MC-67 (49 CFR Part 1131), published in the FEDERAL REGISTER, issue of April 27, 1965, effective July 1, 1965. These rules provide that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the date of notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protests must be served on the applicant, or its authorized representative, if any, and the

protests must certify that such service has been made. The protests must be specific as to the service which such protestant can and will offer, and must consist of a signed original and six copies.

A copy of the application is on file, and can be examined at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in field office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 17803 (Sub-No. 13 TA), filed March 30, 1971. Applicant: PREMIER TRUCKING SERVICE CO., Post Office Box 156, Downtown Station, Omaha, NE 68101. Applicant's representative: Donald L. Stern, 530 Univac Building, Omaha, NE 68108. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meat, meat products and meat byproducts and articles distributed by meat packinghouses*, from the plantsite and storage facilities of Beefland International, Inc., Council Bluffs, Iowa, to points in Illinois, Indiana, Michigan, Ohio, and Wisconsin, for 150 days. Supporting shipper: Beefland International, Inc., Council Bluffs, Iowa. Send protests to: Carroll Russell, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 705 Federal Office Building, Omaha, NE 68102.

No. MC 42261 (Sub-No. 103 TA), filed March 30, 1971. Applicant: LANGER TRANSPORT CORP., Route 1 and Foot of Danforth Avenue, Post Office Box 305, Jersey City, NJ 07303. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Metal containers and metal container ends*, when moving with such metal containers, from Long Island City, N.Y., to Cranston, R.I., for 150 days. Supporting shipper: Arthur G. Gee, National Can Corp., 2200 East Adams Avenue, Philadelphia, PA 19124. Send protests to: District Supervisor, Robert E. Johnston, Bureau of Operations, Interstate Commerce Commission, 970 Broad Street, Newark, NJ 07102.

No. MC 52657 (Sub-No. 679 TA), filed March 31, 1971. Applicant: ARCO AUTO CARRIERS, INC., 2140 West 79th Street, Chicago, IL 60620. Applicant's representative: S. J. Zangri (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Trailer chassis* in initial movements and truckaway service, and (2) *motor vehicle bodies*, from Buffalo, N.Y., to the following points, Manchester, N.H., Agawam, Mass., Grand Rapids, Mich., Indianapolis, Ind., Springfield, Mo., Pittsburgh, Pa., Atlantic Highlands, N.J., Worcester, Mass., Omaha, Nebr., Troy, Mich., Saginaw, Mich., Baton Rouge, La., Orlando, Fla., Milwaukee, Wis., Lebanon, Pa., Hialeah, Fla., North Haven, Conn., Hartford, Conn., South Merrimack, N.H., Charleston Heights, S.C., Farmville, N.C., Canton, Ohio, Lima, Ohio, Little Rock, Ark., Trotwood, Ohio, Martinez, Ga., Metairie,

Ga., Memphis, Tenn., Philadelphia, Pa., Trenton, N.J., Toledo, Ohio, Dallas, Tex., Collins, Miss., Birmingham, Ala., Erie, Pa., Baltimore, Md., Jacksonville, Fla., Chattanooga, Tenn., Des Moines, Iowa, Woodbridge, N.J., South Portland, Maine, Hudsonville, Mich., Cincinnati, Ohio, Hinesburg, Vt., Columbia City, Ind., Wichita, Kans., Cleveland, Ohio, Medford, Mass., St. Paul, Minn., Oklahoma City, Okla., Longview, Tex., St. Louis, Mo., Bridgeport, Conn., Moline, Ill., Detroit, Mich., Johnston, R.I., Peoria, Ill., Des Plaines, Ill., Plant City, Fla., Chicago, Ill., Knoxville, Tenn., Charlotte, N.C., Meridian, Miss., Savannah, Ga., New Bedford, Mass., South Bay, Fla., Ellenwood, Ga., Marion, Pa., Fredericksburg, Va., Nitro, W. Va., Winston-Salem, N.C., Columbus, Ga., Arlington, Mass., Green Bay, Wis., Westfield, Mass., Casper, Wyo., Morgantown, W. Va., Lansing, Mich., Lake Charles, La., Atlanta, Ga., Duluth, Minn., Barre, Vt., Irvington, N.J., Linden, Pa., Miami, Fla., and Elizabeth Port, N.J., for 150 days. Supporting shipper: Markel Electric Products Inc., 129-149 Seneca Street, Buffalo, NY 14203. Send protests to: Robert G. Anderson, District Supervisor, Interstate Commerce Commission, Bureau of Operations, Everett McKinley Dirksen Building, 219 South Dearborn Street, Room 1036, Chicago, IL 60604.

No. MC 86913 (Sub-No. 32 TA), filed March 31, 1971. Applicant: EASTERN MOTOR LINES, INC., Post Office Box 649, Office: U.S. No. 401 North, Warren, NC 27589. Applicant's representative: C. M. Bullock (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wood fiberboard, wood fiberboard faced or finished, with decorative and/or protective material, and accessories and supplies used in the installation thereof* (except commodities in bulk) from Monrovia, N.C., to points in Connecticut, Illinois, Indiana, Kentucky, Maine, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, and Vermont, for 100 days. Supporting shipper: Evans Products Co., 2200 East Devon Avenue, Des Plaines, IL 60018. Send protests to: Archie W. Andrews, District Supervisor, Interstate Commerce Commission, Bureau of Operations, Post Office Box 26398, Raleigh, NC 27611.

No. MC 103191 (Sub-No. 33 TA) (Correction), filed March 10, 1971, published FEDERAL REGISTER issue of March 20, 1971, and republished in part as corrected this issue. Applicant: THE GEO. A. RHEMAN CO., INC., Post Office Box 2095, Station A, Charleston, SC 29403. Applicant's representative: Harris G. Andrews, Post Office Box 4255, Greenville, SC 29603. Note: The purpose of this partial republication is to set forth the correct commodity description to read as follows: *Blasting sand* in lieu of *blasting and*, which was erroneously shown in previous publication. The rest of the application remains the same.

No. MC 105350 (Sub-No. 19 TA), filed March 30, 1971. Applicant: NORTH PARK TRANSPORTATION CO., 5150 Columbine Street, Denver, CO 80216. Applicant's representative: Leslie R. Kehl, 420 Denver Club Building, Denver, CO 80202. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fabricated steel products*, from the plantsites and storage facilities of the Midwest Steel and Iron Works Co. located at or near Denver and Pueblo, Colo., to Loving, N. Mex., for 180 days. Supporting shipper: Midwest Steel and Iron Works Co., 25 Larimer Street, Denver, CO 80204. Send protests to: Roger L. Buchanan, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 2022 Federal Building, Denver, CO 80202.

No. MC 107496 (Sub-No. 805 TA), filed March 30, 1971. Applicant: RUAN TRANSPORT CORPORATION, Third and Keosauqua Way, Post Office Box 855, 50304, Des Moines, IA 50309. Applicant's representative: H. L. Fabritz (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Acid base detergent sanitizer*, in bulk, in tank vehicles, from St. Paul, Minn., to St. Louis, Mo., and Rockford, Ill., for 150 days. Supporting shipper: Lyon Chemicals, Inc., 2313 Wycliff Street, St. Paul, MN 55114. Send protests to: Ellis L. Annett, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 677 Federal Building, Des Moines, IA 50309.

No. MC 108297 (Sub-No. 20 TA), filed March 29, 1971. Applicant: FOX TRANSPORT SYSTEM, 21 South Fifth Street, Philadelphia, PA 19106. Applicant's representative: Alan Kahn, Suite 1920, #2 Penn Center Plaza, J. F. Kennedy Boulevard, at 15th Street, Philadelphia, PA 19102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Dairy products*, in vehicles equipped with mechanical refrigeration, and (2) *fruit juices and fruit drinks* (except commodities in bulk in tank or hopper-type vehicles), from Fort Washington, Pa., to Exmore, Va., for 180 days. Supporting shipper: The Great Atlantic & Pacific Tea Co., Inc., 90 Delaware Avenue, Paterson, NJ 07503. Send protests to: Peter R. Guman, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 1518 Walnut Street, Room 1600, Philadelphia, PA.

No. MC 110589 (Sub-No. 4 TA), filed March 31, 1971. Applicant: J. E. LAMBERT TRANSFER, INC., 317 North Oak Street, Grand Island, NE 68801. Applicant's representative: J. Max Harding, Box 82028, Lincoln, NE 801. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, meat byproducts and articles distributed by meat packinghouses*, as described in section A of appendix 1 to the report in *Descriptions in Motor Carrier Certificates*

61 M.C.C. 209 and 766 (except skins and commodities in bulk) from Grand Island, Nebr., to points in Illinois, Iowa, Minnesota, Missouri, and Wisconsin, for 180 days. Supporting shipper: Swift Fresh Meat Co., Division of Swift & Co., 115 West Jackson Boulevard, Chicago, IL 60604. Send protests to: District Supervisor Max H. Johnston, Interstate Commerce Commission, Bureau of Operations, 320 Federal Building and Court-house, Lincoln, NE 68508.

No. MC 111412 (Sub-No. 8 TA), filed March 30, 1971. Applicant: J. I. HAILEY, INC., Post Office Box 1919, 2600 Navigation Boulevard, Corpus Christi, TX 78403. Applicant's representative: K. C. Hailey (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lumber*, from Falls City, Tex., to Uranium Extracting Plant located 8 miles southwest of Falls City, Tex., on FM Road 791, for 150 days. Supporting shipper: Simpson Timber Co., C. R. Brown, Traffic Manager, 2000 Washington Building, Seattle, WA 98101. Send protests to: Richard H. Dawkins, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 301 Broadway, Room 206, San Antonio, TX 78205.

No. MC 113624 (Sub-No. 58 TA), filed March 31, 1971. Applicant: WARD TRANSPORT, INC., Post Office Box 735, Pueblo, CO 81002. Applicant's representative: Leslie R. Kehl, 420 Denver Club Building, Denver, CO 80202. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Ammonium nitrate*, in bulk, from Laramie, Wyo., to points in Colorado, Idaho, Kansas, Nebraska, South Dakota, Utah, and Wyoming, for 150 days. Supporting shipper: Wycon Chemical Co., Inc., Post Office Box 1087, Colorado Springs, CO 80901. Send protests to: District Supervisor Herbert C. Ruoff, Interstate Commerce Commission, Bureau of Operations, 2022 Federal Building, Denver, CO 80202.

No. MC 117592 (Sub-No. 4 TA) (Correction), filed March 19, 1971, and published in FEDERAL REGISTER issue of March 27, 1971, and republished in part as corrected this issue. Applicant: GERALD L. KRAMER, Rural Delivery No. 4, Quakertown, PA 18951. Applicant's representative: Kenneth R. Davis, 999 Union Street, Taylor, PA 18517. Note: The purpose of this partial republication is to set forth the correct territory description in (1) above to read as follows: From East Greenville, Pa., in lieu of from Greenville, Pa. The rest of the application remains the same.

No. MC 135348 (Sub-No. 1 TA), filed March 30, 1971. Applicant: ELLIS B. WEBSTER, 400 East Fourth Street, Leadville, CO 80461. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Lead, zinc, gold, and silver concentrates*, from Black Cloud Mine in Iowa Gulch, Lake County, Colo., to Leadville, Colo., railroad loading spurs approximately a 6-mile haul over Lake County

Road No. 2, to Denver & Rio Grande Western Railroad siding at Oro Junction, for 180 days. Supporting shipper: American Smelting and Refining Co., Res-Asarco Joint Venture, Post Office Box 936, Leadville, CO 80461. Send protests to: District Supervisor Herbert C. Ruoff, Interstate Commerce Commission, Bureau of Operations, 2022 Federal Building, Denver, CO 80202.

No. MC 135439 (Sub-No. 1 TA), filed March 30, 1971. Applicant: MICHAEL J. MANNING TRANSFER, 820 24th Avenue SE., Minneapolis, MN 55414. Applicant's representative: Robert P. Sack (same address as above). Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Dairy products, dairy byproducts, fruit juices, and fruit drinks*, from St. Paul, Minn., to Amery, Baldwin, Chipewewa Falls, Hudson, LaCrosse, Luck, New Richmond, and Whitehall, Wis., for 180 days. Supporting shipper: Sanitary Farm Dairies, St. Paul Division of Land O'Lakes, Inc., Post Office Box 116, Minneapolis, MN 55440. Send protests to: A. N. Spath, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 448 Federal Building and U.S. Court House, 110 South Fourth Street, Minneapolis, MN 55401.

No. MC 135442 TA, filed March 30, 1971. Applicant: DONSON'S EXPRESS, INC., 1117 Livingston Avenue, North Brunswick, NJ 08902. Applicant's representative: Paul Keeler, Post Office Box 253, South Plainfield, NJ. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Carpeting*, in rolls, from New Brunswick, N.J., to Philadelphia, Pa., for 180 days. Supporting shipper: Coronet Carpets, Post Office Box 54, North Brunswick, NJ 08902. Send protests to: District Supervisor S. H. Vance, Bureau of Operations, Interstate Commerce Commission, 970 Broad Street, Newark, NJ 07102.

By the Commission.

[SEAL] ROBERT L. OSWALD,
Secretary.

[FR Doc.71-4977 Filed 4-8-71; 8:49 am]

[Notice 678]

MOTOR CARRIER TRANSFER PROCEEDINGS

APRIL 6, 1971.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 1132), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon

by petitioners must be specified in their petitions with particularity.

No. MC-FC-72757. By order of April 2, 1971, the Motor Carrier Board approved the transfer to Peoples Cartage, Inc., Massillon, Ohio, of Certificate No. MC-20927 issued to Citizens Transfer & Storage Co., a corporation, Parkersburg, W. Va., authorizing the transportation, of: Household goods, as defined by the Commission, between specified points in West Virginia, on the one hand, and, on the other, points in Ohio, Pennsylvania, Kentucky, North Carolina, Virginia, Maryland, New Jersey, New York, and the District of Columbia, and general commodities, with the usual exceptions, and oil field equipment and supplies, between specified points in West Virginia, Ohio, and Pennsylvania, James Muldoon, 50 West Broad Street, Columbus, OH 43215, attorney.

No. MC-FC-72773. By order of March 31, 1971, the Motor Carrier Board approved the transfer to A. B. & L. Transfer, Inc., Morristown, Ohio, of the operating rights in Certificate No. MC-22861 issued February 7, 1952, to John C. Baiocco and Tony Baiocco, doing business as John C. Baiocco & Son, Tiltonsville, Ohio, authorizing the transportation of building materials and such bulk commodities as are transported in dump trucks, between points in Brooke, Hancock, and Ohio Counties, W. Va., and that part of Ohio on Ohio Highway 7

between Toronto, Ohio, and Bridgeport, Ohio, including Toronto and Bridgeport, on the one hand, and, on the other, points in Ohio within 50 miles of Wheeling, W. Va., and in West Virginia within 100 miles of Wheeling. James M. Burtch, 100 East Broad Street, Columbus, OH 43215, attorney for applicants.

No. MC-FC-72775. By order of April 2, 1971, the Motor Carrier Board approved the transfer to Weleski Transfer, Inc., Tarentum, Pa., of the operating rights in Certificate No. MC-79320 issued May 21, 1963, to Andy L. Weleski and Anthony L. Weleski, a partnership, doing business as Weleski Transfer, Tarentum, Pa., authorizing the transportation of household goods between points in Butler, Armstrong, Westmoreland, and Allegheny Counties, Pa., on the one hand, and, on the other, points in Ohio, Maryland, Indiana, Illinois, Michigan, West Virginia, Virginia, New York, New Jersey, and the District of Columbia. John A. Vuono, 2310 Grant Building, Pittsburgh, PA 15219, attorney for applicants.

No. MC-FC-72783. By order of April 1, 1971, the Motor Carrier Board approved the transfer to Lester Leach, doing business as Leach Trucking, Gordon, Nebr., of the operating rights in Certificate No. MC-126256 (Sub-No. 2) issued April 13, 1965, to Arlan Kirk, Spencer, Nebr., authorizing the transportation of cement, in bags, from Rapid City, S. Dak., to Spencer, Atkinson, Naper, and Stuart,

Nebr. August F. Schuman, Spencer, Nebr. 68777, attorney for applicants.

[SEAL] ROBERT L. OSWALD,
Secretary.

[FR Doc. 71-4973 Filed 4-8-71; 8:49 am]

[Notice 672-A]

MOTOR CARRIER TRANSFER PROCEEDINGS

APRIL 6, 1971.

Application filed for temporary authority under section 210(a)(b) in connection with transfer application under section 212(b) and Transfer Rules, 49 CFR Part 1132:

No. MC-FC-72809. By application filed April 5, 1971, SHARKEY TRANSPORTATION, INC., 4 Valley View Drive, Burlington, IA 52601, seeks temporary authority to lease the operating rights of WARSAW TRUCKING CO., INC., 1102 West Winona Avenue, Warsaw, IN 46580, under section 210a(b). The transfer to SHARKEY TRANSPORTATION, INC., of the operating rights of WARSAW TRUCKING CO., INC., is presently pending.

By the Commission.

[SEAL] ROBERT L. OSWALD,
Secretary.

[FR Doc. 71-4973 Filed 4-8-71; 8:49 am]

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FEDERAL REGISTER

VOLUME 36 • NUMBER 69

Friday, April 9, 1971 • Washington, D.C.

PART II

CIVIL SERVICE COMMISSION

•

Employee Responsibilities and
Conduct



Title 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

SUBCHAPTER C—REGULATIONS GOVERNING EMPLOYEES OF THE CIVIL SERVICE COMMISSION

PART 1001—EMPLOYEE RESPONSIBILITIES AND CONDUCT

Subchapter C of Chapter I of Title 5 of the Code of Federal Regulations is revised in its entirety. The major changes made by the revision are to designate the General Counsel as the counselor for the Commission; to add a new § 1001.735-206 on "Safeguarding the examination process"; to clarify the definition of "employee"; to add a new paragraph (f) to § 1001.735-202; to update § 1001.735-214, "Miscellaneous statutory proceedings"; to add a new paragraph (c) to § 1001.735-303; to update § 1001.735-401; and to clarify § 1001.735-404. As revised, Subchapter C of Chapter I of Title 5 of the Code of Federal Regulations reads as follows:

Subpart A—General

- Sec.
1001.735-101 Purpose.
1001.735-102 Definitions.
1001.735-103 Remedial action.

Subpart B—Conduct and Responsibilities of Employees

- 1001.735-201 Prescribed actions.
1001.735-202 Gifts, entertainment, and favors.
1001.735-203 Outside employment and activity.
1001.735-204 Financial interests.
1001.735-205 Misuse of information.
1001.735-206 Safeguarding the examination process.
1001.735-207 Support of Commission programs.
1001.735-208 Disagreements between Government officials.
1001.735-209 Use of Government property.
1001.735-210 Indebtedness.
1001.735-211 Gambling, betting, and lotteries.
1001.735-212 Coercion.
1001.735-213 General conduct prejudicial to the Government.
1001.735-214 Miscellaneous statutory provisions.

Subpart C—Conduct and Responsibilities of Special Government Employees

- 1001.735-301 Use of Government employment.
1001.735-302 Use of inside information.
1001.735-303 Gifts, entertainment, and favors.
1001.735-304 Applicability of other provisions.

Subpart D—Statements of Employment and Financial Interests

- 1001.735-401 Employees required to submit statements.
1001.735-402 Employee's complaint on filing requirement.
1001.735-403 Form of statements.
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1001.735-408 Information prohibited.
1001.735-409 Review of statements.
1001.735-410 Confidentiality of statements.
1001.735-411 Effect of statements on other requirements.
1001.735-412 Submission of statements by Government employees.

AUTHORITY: The provisions of this Part 1001 issued under Executive Order 11222, 30 F.R. 6469, 3 CFR 1965 Supp., 5 CFR 735.101 et seq.

Subpart A—General

§ 1001.735-101 Purpose.

The maintenance of unusually high standards of honesty, integrity, impartiality, and conduct by employees and special Government employees is essential to assure the proper performance of the Commission's business and the maintenance of confidence by citizens in their Government. The avoidance of misconduct and conflicts of interest on the part of employees and special Government employees through informed judgment is indispensable to the maintenance of these standards. To accord with these concepts, this part sets forth the Commission's regulations prescribing standards of conduct and responsibilities and governing statements of employment and financial interests for employees and special Government employees.

§ 1001.735-102 Definitions.

In this part:

(a) "Employee" means an officer and an employee of the Civil Service Commission, but does not include a special Government employee.

(b) "Person" means an individual, a corporation, a company, an association, a firm, a partnership, a society, a joint stock company, or any other organization or institution.

(c) "Special Government employee" means a special Government employee as defined in section 202 of title 18 of the United States Code who is employed by the Commission.

§ 1001.735-103 Remedial action.

(a) A violation of this part by an employee or special Government employee may be cause for remedial action. Remedial action may include, but is not limited to:

- (1) Changes in assigned duties;
- (2) Divestment by the employee or special Government employee of his conflicting interest;
- (3) Disciplinary action which may be in addition to any penalty prescribed by law; or
- (4) Disqualification for a particular assignment.

(b) Remedial action, whether disciplinary or otherwise, shall be effected in accordance with any applicable laws, Executive orders, and regulations.

Subpart B—Conduct and Responsibilities of Employees

§ 1001.735-201 Prescribed actions.

An employee shall avoid any action which might result in, or create the appearance of:

- (a) Using public office for private gain;
- (b) Giving preferential treatment to any person;
- (c) Impeding Government efficiency or economy;
- (d) Losing complete independence or impartiality;
- (e) Making a Government decision outside official channels; or
- (f) Affecting adversely the confidence of the public in the integrity of the Government.

§ 1001.735-202 Gifts, entertainment, and favors.

(a) Except as provided in paragraphs (b) and (c) of this section, an employee shall not solicit or accept, directly or indirectly, any gift, gratuity, favor, entertainment, loan, or any other things of monetary value, from a person who:

(1) Has, or is seeking to obtain, contractual or other business or financial relations with the Commission;

(2) Conducts operations or activities that are regulated by the Commission; or

(3) Has interests that may be substantially affected by the performance or nonperformance of his official duty.

(b) The restrictions set forth in paragraph (a) of this section do not apply to:

(1) Obvious family or personal relationships, such as those between the employee and his parents, children, or spouse, when the circumstances make it clear that those relationships rather than the business of the persons concerned are the motivating factors;

(2) The acceptance of food and refreshments of nominal value on infrequent occasions in the ordinary course of a luncheon or dinner meeting or an inspection tour where an employee may be properly in attendance;

(3) The acceptance of loans from banks or other financial institutions on customary terms to finance proper and usual activities of employees, such as home mortgage loans; and

(4) The acceptance of unsolicited advertising or promotional material, such as pens, pencils, note pads, calendars, and other items of nominal intrinsic value.

(c) An employee shall not solicit a contribution from another employee for a gift to an official superior, make a donation as a gift to an official superior, or accept a gift from an employee receiving less pay than himself (5 U.S.C. 7351). However, this paragraph does not prohibit a voluntary gift of nominal value or donation in a nominal amount made on a special occasion such as marriage, illness, or retirement.

(d) An employee shall not accept a gift, present, decoration, or other thing from a foreign government unless authorized by Congress as provided by the Constitution and in 5 U.S.C. 7342.

(e) Neither this section nor § 1001.735-203 precludes an employee from receipt of bona fide reimbursement, unless prohibited by law, for expenses of travel and such other necessary subsistence as is compatible with this part for which no

Government payment or reimbursement is made. However, this paragraph does not allow an employee to be reimbursed, or payment to be made on his behalf, for excessive personal living expenses, gifts, entertainment, or other personal benefits, nor does it allow an employee to be reimbursed by a person for travel on official business under Commission orders when reimbursement is prescribed by Decision B-128517 of the Comptroller General dated March 7, 1967.

(f) A gift or gratuity, the receipt of which is prohibited by this section shall be returned to the donor with a written explanation why the return is necessary. A copy of the written explanation shall be submitted to the Commission's counselor on employee ethics and conduct or a deputy counselor (see CSC PM Chapter 735, section 1-2b) for filing in the employee's Official Personnel Folder. When the return of the gift is not possible, the gift or gratuity shall be submitted to one of the above mentioned officials with a written explanation why the return is not feasible. The counselor or deputy counselor shall turn the gift or gratuity over to a public or private charity or charitable organization.

§ 1001.735-203 Outside employment and activity.

(a) An employee shall not engage in outside employment or other outside activity not compatible with the full and proper discharge of the duties and responsibilities of his Government employment. Incompatible activities include, but are not limited to:

(1) Acceptance of a fee, compensation, gift, payment of expense, or any other thing of monetary value in circumstances wherein acceptance may result in, or create the appearance of, a conflict of interest;

(2) Outside employment or activity which tends to impair his mental or physical capacity to perform the duties and responsibilities of his position in an acceptable manner;

(3) Outside employment or activity which may bring criticism of, or cause embarrassment to, the Commission; or

(4) Outside employment or activity which is in violation of a statute, Executive order, or regulation, including applicable State and local statutes and ordinances.

(b) Employees are encouraged to engage in teaching, lecturing, and writing that is not prohibited by law, the Executive order, this part, or the agency regulations. However, an employee shall not, either for or without compensation, engage in teaching, lecturing, or writing, including teaching, lecturing, or writing for the purpose of the special preparation of a person or class of persons for an examination of the Commission or Board of Examiners for the Foreign Service, that depends on information obtained as a result of his Government employment, except when that information has been made available to the general public or will be made available on

request, or when the agency head gives written authorization for use of non-public information on the basis that the use is in the public interest. In addition, an employee who is a Presidential appointee covered by section 401(a) of the order shall not receive compensation or anything of monetary value for any consultation, lecture, discussion, writing, or appearance the subject matter of which is devoted substantially to the responsibilities, programs, or operations of his agency, or which draws substantially on official data or ideas which have not become part of the body of public information.

(c) Employees are encouraged to serve as members of committees or boards which plan or advise on training courses or programs offered by non-Government organizations, especially when the courses or programs are designed for, or are of particular interest to, Federal employees. However, before an employee may accept membership on such a committee or board, he shall request in writing and secure the approval of the Commission official authorized to grant the request. Bureau directors, regional directors, and heads of staff offices are authorized to grant requests made by their employees. The Commissioners and the Executive Director are the approving authorities for employees who report directly to them. The authorizing official shall transmit a copy of each approved request for inclusion in the employee's Official Personnel Folder.

(d) Employees are encouraged to accept appointments as faculty members for after-hours teaching. However, before an employee may accept such an appointment, he shall request and secure approval, and the approved request shall be included in his Official Personnel Folder, as provided in paragraph (c) of this section.

(e) An employee shall not receive any salary or anything of monetary value from a private source as compensation for his services to the Government.

(f) An employee who engages in any kind of outside paid employment on a substantially regular basis shall submit to his immediate supervisor a memorandum describing the employment and stating approximately how many hours per week he is so employed. The immediate supervisor shall forward the memorandum through his bureau director, regional director, or staff office head for inclusion in the employee's Official Personnel Folder.

(g) This section does not preclude an employee from:

(1) Participation in the activities of national or State political parties not proscribed by law;

(2) Participation in the local self-government activities in the community in which he resides to the extent permitted by law. However, an employee may not hold elective office in his local community government without the approval of the Executive Director; or

(3) Participation in the affairs of, or acceptance of an award for meritorious public contribution or achievement given

by, a charitable, religious, professional, social, fraternal, nonprofit educational and recreational, public service, or civic organization.

§ 1001.735-204 Financial interests.

(a) An employee shall not:

(1) Have a direct or indirect financial interest that conflicts substantially, or appears to conflict substantially, with his Government duties and responsibilities; or

(2) Engage in, directly or indirectly, a financial transaction as a result of, or primarily relying on, information obtained through his Government employment.

(b) This section does not preclude an employee from having a financial interest or engaging in financial transactions to the same extent as a private citizen not employed by the Government so long as it is not prohibited by law, Executive Order 11222, Part 735 of this chapter, or this part.

§ 1001.735-205 Misuse of information.

For the purpose of furthering a private interest, an employee shall not, except as provided in § 1001.735-203(b), directly or indirectly use, or allow the use of, official information obtained through or in connection with his Government employment which has not been made available to the general public.

§ 1001.735-206 Safeguarding the examination process.

(a) An employee shall notify his supervisor when he intends to file for a competitive examination or an internal, noncompetitive examination. He must give similar notice if he knows that a close relative, a member of his household, or a roommate intends to take a competitive examination.

(b) If the employee takes part in the construction of written tests, has access to test material or is involved in the examination rating process, his supervisor or other appropriate authority will arrange his duty assignments to prevent his contact with materials related to the examination or examinations applied for. If the test material involved in the forthcoming examination has already been exposed to the employee, arrangement will be made for the person concerned to be given an alternate test.

(c) The supervisor is responsible to see that notifications given by employees are transmitted promptly. In the central office, supervisors will forward this information to the Test Security Officer in the Bureau of Recruiting and Examining. In the regions, supervisors will give the information to Regional Directors.

§ 1001.735-207 Support of Commission programs.

(a) When a Commission program is based on law or Executive order, every employee has a positive obligation to make it function as efficiently and economically as possible and to support it as long as it is a part of recognized public policy. An employee may, therefore, properly make an address explaining and interpreting such a program, citing

its achievements, defending it against uninformed or unjust criticism, pointing out the need for possible improvements, or soliciting views for improving it.

(b) An employee shall not, either directly or indirectly, use appropriated funds to influence a Member of Congress to favor or oppose legislation in violation of 18 U.S.C. 1913. However, an employee is not prohibited from:

(1) Testifying as a representative of the Commission on pending legislation proposals before congressional committees on request; or

(2) Assisting congressional committees in drafting bills or reports on request, when it is clear that the employee is serving solely as a technical expert under the direction of committee leadership.

§ 1001.735-208 Disagreements between Government officials.

An employee shall not make public any disagreements with, or criticism of, officials, policies, or practices of the Commission or of other Federal agencies in areas relating to the Commission's functions. Such matters may be brought to the Executive Director's attention for appropriate action.

§ 1001.735-209 Use of Government property.

An employee shall not directly or indirectly use, or allow the use of, Government property of any kind, including property leased to the Government, for other than officially approved activities. An employee has a positive duty to protect and conserve Government property including equipment, supplies, and other property entrusted or issued to him.

§ 1001.735-210 Indebtedness.

(a) An employee shall pay each just financial obligation in a proper and timely manner, especially one imposed by law, such as Federal, State, or local taxes. For the purpose of this section, a "just financial obligation" means one acknowledged by the employee or reduced to judgment by a court.

(b) When an employee has a levy placed against his salary for failure to pay an indebtedness for Federal income taxes, he shall be issued a written reprimand stating that failure to make satisfactory arrangements regarding future tax liabilities will be grounds for removal.

(c) When an employee is the subject of a letter of complaint stating that he has not paid his State or local taxes and has failed to make satisfactory arrangements regarding the debt, he shall be interviewed by the Director of Personnel in the central office or by the regional director in a regional office. In this interview he shall be instructed to make satisfactory arrangements for the payment of his debt immediately and informed that failure to do so will be grounds for removal.

(d) When an employee is the subject of a letter of complaint regarding any other kind of indebtedness to a unit of government, Federal, State, or local, the procedure prescribed in paragraph (c) of this section shall be observed.

(e) When a creditor who holds a legal judgment against an employee requests that the Commission assist in collecting the debt, the employee shall be interviewed by the Director of Personnel or the regional director, as appropriate. In this interview he shall be instructed to pay the debt in full within 90 days, or within whatever longer period is specified by the Director of Personnel or regional director if he determines that a 90-day time limit would impose undue hardship on the employee, and informed that failure to do so will be grounds for removal.

(f) When an employee is the subject of a letter of complaint from a creditor who does not hold a legal judgment against the employee, the Director of Personnel or regional director shall forward a copy of the letter to the employee together with a memorandum calling the employee's attention to the provisions of this section. However, the Commission will not assist the creditor in collecting the debt.

§ 1001.735-211 Gambling, betting, and lotteries.

An employee shall not participate, while on Government-owned or leased property or while on duty for the Government, in any gambling activity, including the operation of a gambling device; in conducting a lottery or pool; in a game for money or property; or in selling or purchasing a numbers slip or ticket.

§ 1001.735-212 Coercion.

An employee shall not use his Government employment to coerce, or give the appearance of coercing, a person to provide financial benefit to himself or another person, particularly one with whom he has family, business, or financial ties.

§ 1001.735-213 General conduct prejudicial to the Government.

An employee shall not engage in criminal, infamous, dishonest, immoral, or notoriously disgraceful conduct, or other conduct prejudicial to the Government.

§ 1001.735-214 Miscellaneous statutory provisions.

The attention of each employee is directed to the following statutory provisions:

(a) House Concurrent Resolution 175, 85th Congress, 2d Session, 72A Stat. B12, the Code of Ethics for Government Service.

(b) Chapter 11 of title 18, United States Code, relating to bribery, graft, and conflicts of interest.

(c) The prohibition against lobbying with appropriated funds (18 U.S.C. 1913).

(d) The prohibitions against disloyalty and striking (E.O. 10450, U.S.C. 1918).

(e) The prohibition against the employment of a member of a Communist organization (50 U.S.C. 784).

(f) The prohibitions against:

(1) The disclosure of classified information (18 U.S.C. 793, 50 U.S.C. 783); and

(2) The disclosure of confidential information (18 U.S.C. 1905).

(g) The provision relating to the habitual use of intoxicants to excess (5 U.S.C. 7352).

(h) The prohibition against the misuse of a Government vehicle (31 U.S.C. 638a(c)).

(i) The prohibition against the misuse of the franking privilege (18 U.S.C. 1719).

(j) The prohibition against the use of deceit in an examination or personnel action in connection with Government employment (18 U.S.C. 1917).

(k) The prohibition against fraud or false statements in a Government matter (18 U.S.C. 1001).

(l) The prohibition against mutilating or destroying a public record (18 U.S.C. 2071).

(m) The prohibition against counterfeiting and forging transportation requests (18 U.S.C. 508).

(n) The prohibitions against:

(1) Embezzlement of Government money or property (18 U.S.C. 641);

(2) Failing to account for public money (18 U.S.C. 643); and

(3) Embezzlement of the money or property of another person in the possession of an employee by reason of his employment (18 U.S.C. 654).

(o) The prohibition against unauthorized use of documents relating to claims from or by the Government (18 U.S.C. 285).

(p) The prohibitions against political activities in subchapter III of chapter 73 of title 5, United States Code and 18 U.S.C. 602, 603, 607, and 608.

(q) The provision relating to the denial of the right to petition Congress (5 U.S.C. 7102).

(r) The prohibition against an employee acting as the agent of a foreign principal registered under the Foreign Agents Registration Act (18 U.S.C. 219).

(s) The prohibition against a public official appointing or promoting a relative, or advocating such an appointment or promotion (5 U.S.C. 3110).

(t) The prohibition against the employment of an individual convicted of felonious rioting or related offenses (5 U.S.C. 7313).

(u) The tax imposed on certain employees (e.g., Presidential appointees, employees excepted under Schedule C, employees in GS-16 or above, or a comparable pay level) who knowingly engage in self-dealing with a private foundation (26 U.S.C. 4941, 4946). "Self-dealing" is defined in the statute to include certain transactions involving an employee's receipt of pay, a loan, or reimbursement for travel or other expenses from, or his sale to or purchase of property from a private foundation.

Subpart C—Conduct and Responsibilities of Special Government Employees

§ 1001.735-301 Use of Government employment.

A special Government employee shall not use his Government employment for a purpose that is, or gives the appearance of being, motivated by the desire for

private gain for himself or another person, particularly one with whom he has family, business, or financial ties.

§ 1001.735-302 Use of inside information.

(a) A special Government employee shall not use inside information obtained as a result of his Government employment for private gain for himself or another person either by direct action on his part or by counsel, recommendation, or suggestion to another person, particularly one with whom he has family, business, or financial ties. For the purpose of this section, "inside information" means information obtained under Government authority which has not become part of the body of public information.

(b) A special Government employee may engage in teaching, lecturing, and writing to the same extent, and subject to the same restrictions, as provided in § 1001.735-203(b) for employees.

§ 1001.735-303 Gifts, entertainment, and favors.

(a) Except as provided in paragraph (b) of this section, a special Government employee, while so employed or in connection with his employment, shall not receive or solicit from a person having business with the Commission anything of value as a gift, gratuity, loan, entertainment, or favor for himself or another person, particularly one with whom he has family, business, or financial ties.

(b) The restrictions set forth in paragraph (a) of this section do not apply to:

(1) Obvious family or personal relationships, such as those between the special Government employee and his parents, children, or spouse, when the circumstances make it clear that those relationships rather than the business of the persons concerned are the motivating factors;

(2) The acceptance of food and refreshments of nominal value on infrequent occasions in the ordinary course of a luncheon or dinner meeting or other meeting or on an inspection tour where an employee may properly be in attendance;

(3) The acceptance of loans from banks or other financial institutions on customary terms to finance proper and usual activities of special Government employees, such as home mortgage loans; and

(4) The acceptance of unsolicited advertising or promotional material, such as pens, pencils, note pads, calendars, and other items of nominal intrinsic value.

(c) A gift or gratuity, the receipt of which is prohibited by this section shall be returned to the donor with a written explanation why the return is necessary. A copy of the written explanation shall be submitted to the Commission's counselor on employee ethics and conduct or a deputy counselor (see CSC PM Chapter 735, section 1-2b) for filing in the employee's Official Personnel Folder. When

the return of the gift is not possible, the gift or gratuity shall be submitted to one of the above mentioned officials with a written explanation why the return is not feasible. The counselor or deputy counselor shall turn the gift or gratuity over to a public or private charity or charitable organization.

§ 1001.735-304 Applicability of other provisions,

The provisions of §§ 1001.735-206 through 1001.735-213 apply to special Government employees in the same manner as to employees.

Subpart D—Statements of Employment and Financial Interests

§ 1001.735-401 Employees required to submit statements.

The following employees shall submit statements of employment and financial interests in accordance with §§ 1001.735-402 through 1001.735-411:

- (a) The Executive Director.
- (b) The Deputy Executive Director.
- (c) The Assistant Executive Director.
- (d) The Director, Office of Labor-Management Relations.
- (e) The General Counsel.
- (f) The Deputy General Counsel.
- (g) The Chairman, Board of Appeals and Review.

(h) The Director, Office of Hearing Examiners, and all employees in Hearing Examiner positions.

(i) The Director, Bureau of Management Services.

(j) The Deputy Director, Bureau of Management Services.

(k) The Director of Personnel.

(l) The Chief, Office Services Division, Bureau of Management Services.

(m) The Assistant Chief, Office Services Division, Bureau of Management Services.

(n) The Chief, Budget and Finance Division, Bureau of Management Services.

(o) The Assistant Chief, Budget and Finance Division, Bureau of Management Services.

(p) The Director, Bureau of Retirement, Insurance, and Occupational Health.

(q) The Deputy Director, Bureau of Retirement, Insurance, and Occupational Health.

(r) The Assistant to the Director, Bureau of Retirement, Insurance, and Occupational Health.

(s) The Chief, Legislative and Policy Division, Bureau of Retirement, Insurance, and Occupational Health.

(t) The Chief Actuary, Office of the Actuary, Bureau of Retirement, Insurance, and Occupational Health.

(u) Assistant to the Chief (Contracts and Instructions Specialists) GS-14 and GS-15, Legislative and Policy Division, Bureau of Retirement, Insurance, and Occupational Health.

(v) Supervisory Accountant, GS-15, Systems and Audits, Bureau of Retirement, Insurance, and Occupational Health.

(w) Systems Accountant, GS-14, Systems and Audits, Bureau of Retirement, Insurance, and Occupational Health.

(x) Auditors (Financial Activities), GS-13, Systems and Audits, Bureau of Retirement, Insurance, and Occupational Health.

(y) The Director, Bureau of Training.

(z) The Deputy Director, Bureau of Training.

(aa) The Assistant Director for Training Operations, Bureau of Training.

(bb) The Director, Bureau of Personnel Management Evaluation.

(cc) The Deputy Director, Bureau of Personnel Management Evaluation.

(dd) Each Regional Director.

(ee) The Director, Federal Executive Institute.

(ff) Each Executive Seminar Center Director.

§ 1001.735-402 Employee's complaint on filing requirement.

An employee who feels that his position has been improperly included in the list in § 1001.735-401 as one requiring the submission of a statement of employment and financial interests may obtain a review of his complaint under the Commission's internal grievance procedure.

§ 1001.735-403 Form of statements.

An employee required to submit a statement of employment and financial interests shall submit that statement in the format prescribed by the Personnel Division.

§ 1001.735-404 Time for submission of statements.

An employee required to submit a statement of employment and financial interests by § 1001.735-401 shall submit that statement no later than 30 days after the date of entrance on duty in the position covered by § 1001.735-401.

§ 1001.735-405 Supplementary statements.

Changes in, or additions to, the information contained in an employee's statement of employment and financial interests shall be reported in a supplementary statement, in the format prescribed by the Personnel Division, as of June 30 each year. If no changes or additions occur, a negative report is required. Notwithstanding the filing of the annual report required by this section, each employee shall at all times avoid acquiring a financial interest that could result, or taking an action that would result, in a violation of the conflicts-of-interest provisions of section 203 of title 18, United States Code, or Subpart B of this part.

§ 1001.735-406 Interests of employees' relatives.

The interests of a spouse, minor child, or other member of an employee's immediate household are considered to be interests of the employee. For the purpose of this section, "member of an employee's immediate household" means those blood relations who are residents of the employee's household.

§ 1001.735-407 Information not known by employees.

If any information required to be included on a statement of employment and financial interests or on a supplementary statement, including holdings placed in trust, is not known to the employee but is known to another person, the employee shall request that other person to submit the information in his behalf.

§ 1001.735-408 Information prohibited.

An employee is not required to submit on a statement of employment and financial interests, or on a supplementary statement, any information relating to the employee's connection with, or interest in, a professional society or a charitable, religious, social, fraternal, recreational, public service, civic, or political organization or a similar organization not conducted as a business enterprise. For the purpose of this section, educational and other institutions doing research and development or related work involving grants of money from or contracts with the Government are deemed "business enterprises" and are required to be included in an employee's statement of employment and financial interests.

§ 1001.735-409 Review of statements.

(a) The Executive Director, the Deputy Executive Director, the Assistant to the Chairman, the General Counsel, the Deputy General Counsel, and the Chairman of the Board of Appeals and Review shall submit their statements of employment and financial interests, and their supplementary statements, directly to the Commission for review.

(b) Bureau directors, regional directors, and the heads of staff offices who report to the Executive Director shall submit their statements of employment and financial interests, and their supplementary statements, directly to the Executive Director for review.

(c) All other employees covered under § 1001.735-401 shall submit their statements of employment and financial interests, and their supplementary statements, directly to the Director, Bureau of Management Services, for review.

(d) When a statement submitted under paragraph (b) or (c) of this section indicates a conflict between the interests of an employee and the performance of his services for the Government, and when the conflict or appearance of conflict cannot be resolved by the reviewing official, he shall report the information concerning the conflict or appearance of conflict to the Chairman through the counselor for the Commission. The employee concerned shall be given an opportunity to explain the conflict or appearance of conflict before remedial action is initiated.

§ 1001.735-410 Confidentiality of statements.

Each statement of employment and financial interests, and each supplementary statement, shall be held in confidence and retained in limited access files of the reviewing official. The use of information on the statements shall be limited to that necessary to carry out the purposes of this part. Information from a statement or a supplementary statement shall not be disclosed except by decision of the Chairman of the Commission.

§ 1001.735-411 Effect of statements on other requirements.

The statements of employment and financial interests and supplementary statements required of employees are in addition to, and not in substitution for or in derogation of any similar requirement imposed by law, order, or regulation. The submission of a statement or supplementary statement by an employee does not permit him or any other person to participate in a matter in which he or the other person's participation is prohibited by law, order, or regulation.

§ 1001.735-412 Submission of statements by special Government employees.

(a) Each special Government employee shall submit a statement of employment and financial interests not later than the time of his employment. Each special Government employee shall keep his statement current throughout his period of employment by the submission of supplementary statements.

(b) A special Government employee shall submit his statement of employment and financial interests in the format prescribed by the Personnel Division. The statement is filed with the Director, Bureau of Management Services, and is accorded the confidentiality prescribed in § 1001.735-410.

(c) The provisions of §§ 1001.735-406 through 1001.735-411 apply to special Government employees in the same manner as to employees.

(d) The Chairman of the Commission may waive the requirement in paragraph (a) of this section for the submission of a statement of employment and financial interests in the case of a special Government employee who is not a consultant or an expert when he finds that the duties of the position held by that special Government employee are of a nature and at such a level of responsibility that the submission of the statement by the incumbent is not necessary to protect the integrity of the Government. For the purposes of this paragraph, "consultant" and "expert" have the meanings given those terms by Chapter 304 of the Federal Personnel Manual.

UNITED STATES CIVIL SERVICE COMMISSION,

[SEAL] JAMES C. SPRY,
Executive Assistant to
the Commissioners.

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